For Official Use Only

MANUAL OF ACCOUNTING PROCEDURE

PART-III

EMPLOYEES' PENSION SCHEME, 1995

Employees' Provident Fund Organisation

(Ministry of Labour, Government of India)

Head Office :

Bhavishya Nidhi Bhawan, 14, Bhikaiji Cama Place, New Delhi - 110 066

THE EMPLOYEES' PENSION SCHEME, 1995

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NOTE:- The Paragraphs in the Scheme, other than the above, are dealt with in the Part I / II of this Manual.

CHAPTER 1

INTRODUCTION

1.1.1 Consequent to introduction of the Employees' Pension Scheme, 1995, the need for a working manual is considered essential as the entire operation is aimed at Computer. However, before embarking on the total computerisation and also to meet the requirement of offices that are yet to be equipped with the Computer, the procedure and system of operation of the new Scheme has been attempted to suit the manual operation as well as computerised application.

1.1.2 The Manual of Accounting Procedure (Vol.I - Part -III) on Employees' Family Pension Scheme, 1971, drafted in the year 1982 and updated in the year 1987 may be consulted to deal with the cases that are to be decided under the provision of ceased Employees' Family Pension Scheme, 1971.

1.1.3 The provisions of this Manual should be strictly adhered to for uniform operation in all Regional Offices/Sub-Regional Offices and no deviation in the prescribed procedure should be made without the prior approval of the Central Provident Fund Commissioner. The Audit should ensure this and any departure noticed should be highlighted in their reports.

EMPLOYEES' PENSION SCHEME, 1995

1.2 COMMENCEMENT

1.2.1 Employees' Provident Fund and Miscellaneous Provisions Act, 1952 has been amended through an Ordinance (13 of 1995) to institute Employees' Pension Scheme for the Provident Fund subscribers. The Ordinance has been replaced by the Employees' Provident Fund and Miscellaneous Provisions (Amendment) Act, 1996 (25th of 1996 dated 16.08.1996) by the Parliament.

1.2.2 The Scheme has come into effect from 16.11.1995. However, the commencement of this Scheme is from 1.4.1993 in respect of certain category of employees. On introduction of Employees' Pension Scheme, 1995, the Employees' Family Pension Scheme, 1971 got merged with the Employees' Pension Scheme, 1995 and it ceased to operate thereafter. However, the details of family of a member furnished through Form 2 under Employees' Family Pension Scheme, 1971/ Employees' Provident Fund Scheme, 1952 and all orders/ authorisation of Pension Payment Orders issued under the ceased Employees' Family

Pension Scheme, 1971 should be deemed to have been issued under the Employees' Pension Scheme, 1995.

1.2.3 Employees' Family Pension Scheme, 1971 provided pension either to the widow/widower or son/daughter only in the case of death of the member, while in service. In other cases, a lumpsum survivorship benefit was provided. Employees' Pension Scheme, 1995 provides for Superannuation Pension, Retirement Pension, Short Service Pension, Permanent and total Disablement Pension to member and Family Pension to widow/widower, Children (including orphan and disabled children) and nominee. In addition, the Employees' Pension Scheme, 1995 also provides for commuted value of Pension and Return of Capital on certain contingencies. Thus, the Employees' Pension Scheme, 1995 provides enlarged benefits when compared to the Employees' Family Pension Scheme, 1971.

1.2.4 Consequent to framing of the Employees' Pension Scheme, 1995 under the Employees' Provident Fund and Miscellaneous Provisions Act, 1952 certain provisions of the Act namely, Definitions (Section 2), Employees' Family Pension Scheme (Section 6A & 6B) and provisions for grant of exemption (Section 17 (1C) and Schedule 3) have been suitably amended.

1.2.5 EMPLOYEES' PENSION SCHEME, 1995 - PENSION FUND

The Central Government has framed the Employees' Pension Scheme, 1995 under the provisions of Section 6A of the Employees' Provident Fund and Miscellaneous Provisions Act, 1952. It came into force on 16.11.95. The Pension Scheme may provide for all or any of the matters specified in Schedule III of the Act.

On framing of the Employees' Pension Scheme, 1995, the Pension Fund was set up. The following amount are due to be paid to the Pension Fund.

(a) 8.1/3% of the basic wages & DA including retaining allowance from the employers share of PF contribution in respect of any employee who is a member of the Pension Scheme, payable by the PF unexempted establishments;

(b) 8.1/3% of basic wages and DA including retaining allowance from the employer's share of PF of the employees of the establishments, exempted under Section 17 of the Act or under Para 27/27A of the Employees' Provident Fund Scheme, 1952;

(c) The net assets of the Employees' Family Pension Fund under the Employees' Family Pension Scheme, 1971 as on the date of establishment of the Pension Fund;

(d) 1.1/6% of basic wages and D.A. including retaining allowance of the members of the Employees' Pension Scheme, 1995 payable by the Central Government after due appropriation by Parliament.

The Pension Fund shall vest in and be administered by the Central Board.

DISPOSAL OF THE FUND:

(1) Subject to the provisions of the Act and the Scheme, the Fund Shall not, except with the prior sanction of the Central Government be expended for any purpose other than the payments envisaged in this Scheme, for continued payment of Family Pension, life assurance benefit and retirement-cum-withdrawal benefit sanctioned under the Employees' Family Pension Scheme, 1971, prior to the date of introduction of this Scheme or which may be sanctioned under that Scheme after the 16th November, 1995 in respect of cases arising before that date.

(2) Not exceeding 16% of the administrative expenses shall be met from and out of the Employees' Pension Fund. The remaining administrative expenses shall be met from the Administration Accounts set up under the Employees' Provident Fund Scheme, 1952. The cost of remittance of Pension shall be charged on the Pension Fund.

1.3 APPLICABILITY

1.3.1 The Employees' Pension Scheme, 1995 applies to all establishments to which the Employees' Provident Fund and Miscellaneous Provisions Act, 1952 applies. Thus, it includes all the establishments to which exemption from the operation of Employees' Provident Fund Scheme, 1952 has been granted or Relaxation Order issued. Wherever exemption from the operation of Employees' Pension Scheme, 1995 is granted to an establishment, the Scheme is not applicable to such establishment from the date it is exempted under Section 17 (1C) of the Act, as may be notified in the Gazette.

1.4 MEMBERSHIP

1.4.1 A member under the Employees' Pension Scheme, 1995 shall mean, an employee who becomes a member of the Employees' Pension Fund in accordance with the provisions of the Scheme.

'Eligible member' means an employee, who is eligible to join the Employees' Pension Scheme, 1995.

'Existing member' means an existing employee who is a member of the Employees' Family Pension Scheme, 1971.

The membership under the Employees' Pension Scheme, 1995 are of two categories viz., compulsory and optional.

The following employees are compulsorily required to become the members of the Employees' Pension Scheme, 1995.

(a) The employee, who having been the member of the ceased Employees' Family Pension Scheme, 1971 and continue in employment on 16.11.1995 provided, he has not attained the age of 58 years as on 16.11.1995;

(b) The employee, who has become member of the Provident Fund either in an unexempted or exempted establishment (i.e. establishment exempted from the operation of the Employees' Provident Fund Scheme, 1952 including employees exempted under Para 27 & 27A of the Employees' Provident Fund Scheme, 1952) for the first time on or after 16.11.1995 provided he has not attained the age of 58 years on the date of becoming a member of the provident Fund;

(c) An 'excluded employee', as defined in Para 2 (f) or 80 or 81 of the Employees' Provident Fund Scheme, 1952, on opting to join the Employees' Provident Fund Scheme, 1952 will also become a member of the Employees' Pension Scheme, 1995; provided he has not attained the age of 58 years.

(d) The member of the ceased Employees' Family Pension Scheme, 1971 who was out of employment as on 16.11.1995 and has not withdrawn the benefits payable under EPF & EFP-Scheme, 71 and not attained the age of 60 years on 15.11.95 shall be a member of the Employees' Pension Scheme, 1995.

A member of the Employees' Pension Scheme, 1995 retains his membership as long as the benefit accrued to him under the Scheme is not withdrawn. However, his membership shall cease on attaining the age of 58 years.

A member of the Employees' Pension Scheme is entitled to carry over the period of his membership from one establishment to the other by availing the facility of Scheme Certificate. In case the due benefit is availed, the membership will cease and hence cannot be carried over.

1.4.2. Cessation of membership

1) On attaining the age of 58 years, an employee ceases to be a member of the Employees' Pension Scheme, 1995

2) A person who has drawn the pension (including reduced Pension and disabled pension) also cease to be a member of the Employees' Pension Scheme, 1995. In case of rejoining an establishment, he will not be eligible to become a member

1.4.3 MEMBERSHIP (OPTIONAL)

The Employees' Pension Scheme, 1995 provides for option to join the Scheme:-

(i) Member of the Employees' Provident Fund or Exempted Provident Fund, but not being a member of the Employees' Family Pension Scheme, 1971, can exercise his option only from retrospective effect from 1.3.1971 to become eligible for membership of Employees' Family Pension Scheme, 1971 and to qualify for membership in the Employees' Pension Scheme, 1995 from 16.11.1995, provided he has not attained the age of 60 years as on 15.11.1995. Only from 16.11.95 or thereafter such member is entitled to draw pension.

(ii) The employee who ceased to be a member of the Employees' Family Pension Scheme, 1971 between 1.4.1993 to 15.11.1995 on account of his attaining the age of 60 years or cessation of employment, can exercise his option to become member of the Employee's Pension Scheme, 1995 from the date of cessation/ exit from the employment;

A member who ceased his membership on attaining the age of 60 years between 1.4.1993 - 15.11.1995 and continues in service thereafter, can exercise the option from the date of cessation of his memberhsip on attaining the age of 60 years.

(iii) A member who was not in employment as on 1.4.1993 but retains his membership by virtue of proviso 6 of the ceased Employees' Family Pension Scheme, 1971 and also retains his P.F. membership as on that date, is eligible to exercise option to become a member of the Employees' Pension Scheme, 1995 provided he has not attained the age of 60 years as on 31.3.1993.

(iv) The employee who ceased to be member of the Employees' Family Pension Scheme, 1971 between 1.4.1993 - 15.11.1995 and died during that period, shall be deemed to have exercised option to join the Employees' Pension Scheme, 1995 on the date of his death.

(v) A member of the ceased Employees' Pension Scheme, 1971 who left service between 1.4.93 & 15.11.95 and died after 16.11.95 without exercising any option to join the Employees' Pension Scheme, 1995, the family would be entitled to Pension provided the member had not attained the age of 58 years as on 15.11.95 and whether availed or not the withdrawal benefit. However, if the member had attained the age of 58 years as on 16.11.1995 and thereafter, member Pension followed by Widow Pension shall be allowed. If the member availed the Withdrawal Benefit during 1.4.93 & 15.11.95, the family would not be entitled for Pension in the event of death of the member on or after 16.11.95

1.4.4 The above persons can exercise their option subject to the following conditions:-

(i) The persons referred against clause (i) & (ii) of Para 1.4.3 should exercise their option in the prescribed form (Form 1).

(ii) In the case of persons referred to in clause (iv), on receipt of a letter from the beneficiary requesting for payment of pension under Employees' Pension Scheme, 1995 instead of Employees' Family Pension Scheme, 1971, Regional Office/Sub-Regional Office should review such cases and take further necessary action, if the beneficiary shall receive higher benefits determined as on the date of death of the member under the Employees' Pension Scheme , 1995.

(iii) The Persons referred to in Para 1.4.3 (i) should pay the arrears of both shares of the Family Pension Fund contribution from 1.3.1971 to 15.11.1995 either by diversion from Provident Fund account or by remittance, calculated on the wages reckoned for recovery of Family Pension Fund contribution viz., the contributions which could have been diverted from the Provident Fund (both shares) together with the interest @ 8.5% p.a. The interest should be calculated upto the date of payment. If the wage particulars from 1.3.1971 are not forthcoming from the establishment, the contribution may be calculated on the pay ceiling fixed for payment of Family Pension Fund contribution from time to time with due interest as indicated above. Alternatively, the wages may be notionally arrived at with reference to the annual PF contributions in the ledger card/ Form24 and the FPF contributions may be worked out. Thus, the maximum amount of diversion would be Rs. 31,550/- upto 15.11.95. In addition, the actual Employees' Pension Scheme, 1995 contribution due @ 8.33% of the wages from 16.11.1995 onwards should be diverted from the Provident Fund along with interest at the rate declared and manner prescribed under para 60 of the Employees' Provident Fund Scheme, 1952.

(iv) The Option should be exercised before attaining the age of 60 years as on 16.11.95 and before authorisation of Provident Fund dues. A Provident Fund member who has not attained the age of 58 years as on 16.11.1995, may opt before he attains the age of 58 years and before authorisation of his Provident Fund account.

(v) Erroneous recovery of Family Pension Fund contributions in respect of non-optee made subsequent to 1.3.1971 should be diverted to Provident Fund/refunded, wherever account settled. In case, such member /widow desires, they can opt by paying the dues from 1.3.1971 to the date of erroneous recovery. Employees who died on or after 16.11.1995 but without exercising option cannot be given option, except when he was prevented from opting, on account of pending Writ Petition on the applicability of the Scheme to the establishment.

(vi) The persons referred to in Para 1.4.3 (ii) should refund the retirement-cum-withdrawal benefit, if any, received by him together with Interest @ 8.5% p.a. from the date of payment (date of cheque) of retirement-cum-withdrawal benefit to the date of refund of the amount.

(vii) The beneficiary in respect of the deceased member referred to in Para 1.4.3 (iv) should refund the Life Assurance Benefit paid, if any, together with the interest @ 8.5% from the date of payment (cheque date) of Life Assurance Benefit to the date of refund of the amount, The Family Pension paid should, however, be adjusted from the pension payable under Employees' Pension Scheme, 1995.

1.4.5 A Provident Fund member, who has finally withdrawn his Provident Fund accumulations prior to 16.11.1995 is not eligible to exercise option to join the Employees' Pension Scheme, 1995. However, if the part payment is made and the membership is retained as per provisions of Para 26A of the Employees' Provident Fund Scheme, 1952 he can exercise the option, subject to payment of dues as stated above. Any payment of supplementary/arrears of contribution due to the member on account of wage revision, settlement, etc., by the employer or otherwise and the same is required to be released to the member, as supplementary payment shall not be treated as part payment for the above purpose.

If the Provident Fund account of the member is fully and finally settled after 16.11.1995 but retained the Pension Fund membership alone on account of his not withdrawing the benefit and he takes up employment in a covered establishment or not he is not required to exercise his option to join the Employees' Pension Scheme, 1995. He shall become a compulsory member of the Employees' Pension Scheme, 1995 from the date of his joining the covered establishment.

1.4.6 A Family Pension Fund member, who left service between 1.4.1993 and 15.11.1995 and subsequently died during that period, shall also deemed to have exercised option. If the member has availed retirement-cum-withdrawal benefit under Employees' Family Pension Scheme, 1971, the amount of benefit availed should be refunded alongwith the interest @ 8.5% calculated from the date of payment (cheque date) to the date on which the amount is deposited in Account No. 10. In such cases, the refund may be accepted from the beneficiary under the Employees' Pension Scheme, 1995.

1.4.7 Family Pension Fund member, who crossed the age of 58 years but not 60 years before 1.4.1993 and continued in service till the age of 60 and above and left the service between 1.4.1993 and 15.11.1995, is also eligible to exercise option.

ELIGIBILITY FOR MEMBERSHIP IN RESPECT OF BELATED COVERAGES

1.4.8 In the case of belated implementation (retrospective coverage) of the establishment, the employer should be directed to deduct the contribution towards Employees' Family Pension Scheme, 1971 and Employees' Pension Scheme, 1995 from the date he is liable to implement provisions of the Act and the Schemes and not from a prospective date i.e. date after the issue of coverage letter allotting the Code Number. Wherever the employee's share of contribution for a pre-discovery period, is waived, both the shares of Family Pension Fund contributions due upto 15.11.1995 should be diverted from the employees'/employer's share of Provident Fund contributions to Employees' Pension Fund. The contribution due to Employees' Pension Fund at the statutory rate (presently 8.33%) should also be diverted from 16.11.1995 onwards from the employer's share of Provident Fund contribution. Even in past cases of belated implementation retrospective coverage, similar action should be taken to extend the eligible benefits under Employees' Family Pension Scheme, 1971/ Employees' Pension Scheme, 1995. The belated enrolment should also be regularised accordingly.

CHAPTER 2

EMPLOYEES' PENSION FUND CONTRIBUTION

2.1.1 (a) From and out of the Employer's share of P.F. contributions payable by the employer in each month under Section 6 of the Act or under the rules of the Provident Fund of the establishment which is exempted under Section 17(1) (a) / (b) of the Act or whose employees are exempted under Para 27/27A of the Employees' Provident Fund Scheme, 1952, a part of contribution representing 8.33% of the employees' pay shall be remitted by the employer to the Employees' Pension Fund within 15 days of the close of every month into EPF Account No. 10 viz., Employees' Pension Fund contribution Account maintained in the State Bank of India

(b) Where the pay of the member exceeds Rs. 5000/- per month, the contribution payable shall be limited to the amount payable on his pay of Rs. 5000/- only. However, at the option of the employer and the employee, contribution at 8.1/3% may be paid on pay exceeding Rs. 5000/- per month, from the date of commencement of the Scheme or from the date pay exceeds Rs. 5000/- whichever is later.

(c) The option should be for the payment of contribution on the pay actually drawn in excess of Rs. 5000/- and will be inforce till the retention of membership. Option once exercised is final.

(d) Option initially given may continue even if his pay increases thereafter and contributions will be deducted on the increased pay from time to time.

(e) Where the option is given for the (full) pay in excess of pay ceiling, the contribution will be recovered on that pay and pensionable salary determined subject to ceiling of pay opted and paid.

(f) Where the rate of contribution is more than 8.33% a sum equivalent to 8.33% of pay shall be bifurcated from and out of the employer's share of contribution towards Pension Fund and deposited in Account No. 10.

(g) The balance of employer's share of contribution shall be paid as Provident Fund contribution to Employees' Provident Fund Account No.1 or to Exempted Provident Fund, as the case may be.

(h) The amount of pension contribution shall be calculated to the nearest rupee i.e. 50 paise or more to be accounted as next higher rupee and fraction of rupee i.e. less than 50 paise may be ignored.

2.1.2 The contribution in respect of each member of an unexempted establishment should be reflected in Form 3A (EPF) and submitted by the employer along with Form 6A (EPF) within one month from the close of each financial year. The Form 12A will reflect the dues and remittances in respect of Pension Fund members for a month.

2.1.3 The contribution received in respect of a member after attaining the age of 58 years or on the pay exceeding Rs. 5000/- without the option for payment thereof, should be transferred to Provident Fund account of the member.

2.1.4 The exempted establishments (Exempted from the Employees' Provident Fund Scheme only) are required to furnish the details of recovery and remittance of contribution in Form 6 (Pension Scheme) every month. The Pension Fund contributions in respect of each member should be reflected in contribution Card in Form 7(PS). It should be submitted to Regional Office along with Form 8 (PS) within one month from the close of every financial year (i.e. 30th April).

2.1.5. The dues and remittance should be reconciled at the close of each year through the DCB Register.

2.2 DUE DATE FOR PAYMENT OF CONTRIBUTIONS:

2.2.1 Contributions to the Pension Fund are payable on or before 15th of the month following the month to which the contribution relates. However, 5 days grace period is allowed to the employer to pay the dues.

2.3. RECONCILIATION OF DUES AND RECEIPT

Dues and remittances towards pension fund should be watched through Form 12A /6 (PS) and posted in the DCB Register. The procedure for audit and acceptance of dues and remittance is dealt in Part - I of this Manual.

The Return in Form 3A /Form 7 (PS) should be sent to EDP Cell to calculate the Pension Fund dues for the month and also to extract the period of non contributory service to Form 24. A reconciliation of remittance made in Account No. 10 (Pension Fund contribution Account) should also be drawn in Form 6A /Form 8 (PS). If the total Pension Fund Contribution shown in the Form 6A/ Form 8 (PS) is found to agree with the details of dues and remittances shown in the DCB Register in respect of establishment for the year, it would mean that the aggregate of the contribution shown in the Form 6A /Form 8 (PS) has been reconciled with the actual receipt as recorded in the Cash Book. All receipt of contributions should be verified with the schedule of receipts received from Cash Section every month.

2.4 CONTRIBUTIONS OF EXEMPTED ESTABLISHMENTS

The Exempted establishments which are having branches at various places will have to render necessary returns/ deposit Pension Fund contributions to the Regional Provident Fund Commissioner of the Regional/Sub-Regional Offices, where the Inspection charges are being remitted. Howerver, where the exempted establishments are permitted to deposit the Pension Fund contribution separately with respective Regional Office/ Sub-Regional Office, wherein their Branches/ Offices are located, the same may be accepted.

2.5. CONTRIBUTION DUE FROM OPTEES TO THE EMPLOYEES' PENSION SCHEME

The employees who are eligible to opt for the Employees' Pension Scheme, 1995 (w.e.f 1.3.71 only) are required to remit the past period contribution (with interest thereon), with effect from 1.3.1971. The procedure for remittance has been explained in Chapter 1.4.4 (iii) of this part of the Manual.

2.6 DEFAULTING ESTABLISHMENTS

The Accounts Section should prepare a defaulter list of establishment through EDP which have not paid the dues towards Employees' Pension Fund, with reference to the entries in the DCB Register and Schedule of receipt by the 5th of every month and send it to Enforcement Branch for initiating recovery proceedings, and penal action against the defaulting establishment. On receipt of defaulters list from the Accounts Section. Enforcement branch should take expeditious action to recover the dues. <u>None of the pensionary benefits due to any member or beneficiary shall be denied due to non-remittance of contributions by the employers</u>. However, the employers shall not be absolved of their liability.

2.7 LEVY OF DAMAGES

2.7.1 The belated remittance of Pension contribution due to the Employees' Pension Fund will attract levy of damages under Section 14-B of the Act read with para 5 of the Employees' Pension Scheme, 1995

2.7.2 The Accounts Section should prepare list of establishments through the EDP, which have paid the dues belatedly with reference to entries in DCB Register and Schedule of receipt, by the 5th of every month and send it to Damages Cell.

2.7.3 The procedure for levy of damages is incorporated in Part I of this Manual.

2.7.4 The penal damages realised should be deposited in Employees' Provident Fund Account No. 10.

2.8 APPLICATION OF THE PROVISIONS OF THE EMPLOYEES' PROVIDENT FUND SCHEME, 1952

Para 38 of the Employees' Pension Scheme, 1995 provides for application of the corresponding provisions of Employees' Provident Fund Scheme, 1952 in regard to matters for which either there is no provision or there is inadequate provisions in the Employees' Pension Scheme, 1995. Before invoking this provisions, the proposed application of Employees' Provident Fund Scheme, 1952 should be referred to the Controller of Pension in Regional Office for examination and uniform application with the approval of Central Provident Fund Commissioner, wherever necessary.

2.9 POWER TO ISSUE DIRECTIONS AND INTERPRETATION

2.9.1 Any difficulty in the matter of disbursement of Pension and other benefits and implementation or securing compliance to enforce the provisions of the Scheme which may arise in the course of working, should be first examined by the concerned Regional Office/Sub Regional Office with reference to the Employees' Pension Scheme 1995 and the provisions of this manual before taking the matter with the Controller of Pension of the region concerned. No reference should be made direct to the Central Office or to the Government of India. All such references should be examined by the Controller of Pension and unresolved issues will be taken up with the Central Provident Fund Commissioner along with his comments on the specific cases referred to him. No hypothetical case should be referred to at any stages.

The Pension Wing of the Central Office will endorse of a copy of the letter seeking directions from the Central Government to all the Controller of Pension for their information. As and when a decision is received from the Central Government, it should be conveyed to all Controllers of Pension, Regional Office/Sub-Regional Offices, Training and Audit Wing of the Organisation.

2.9.2 The above procedure should be adopted in regard to seeking of interpretations of the provisions of the Employees' Pension Scheme, 1995.

CHAPTER 3

EXEMPTION

EXEMPTION FROM THE OPERATION OF EMPLOYEES' PENSION SCHEME,1995

3.1 Section 17 (1C) of the Employees' Provident Fund and Miscellaneous Provisions Act, 1952 read with Para 39 of the Employees' Pension Scheme, 1995 provides for grant of exemption from the operation of Employees' Pension Scheme, 1995. This exemption is applicable to an establishment or a class of establishments. (The class of establishment shall be construed as a group of establishments functioning under a single corporate body). As such, no exemption can be allowed to an individual employee or class of employees in an establishment from the operation of the Employees' Pension Scheme 1995.

An establishment seeking exemption for its establishment, excluding its contract employees, even in cases where a separate/ sub-code No. is given for the contract employees, is not eligible for grant of exemption.

The establishment which is already having a Pension Scheme of its own as well as an establishment which proposes to formulate a Pension Scheme, (wherein the pensionary benefits are at par or more favourable than the Employees' Pension Scheme, 1995) may apply for exemption from the operation of the Employees' Pension Scheme 1995.

3.4 The authority empowered to grant exemption is the appropriate Government i.e. State/ Central Government, as the case may be. The appropriate Government is defined under Section 2(a) of the Act.

3.5 The establishment or a class of establishments should fulfill the following criteria to become eligible for exemption:-

The Pensionary benefits available to the employees of the establishment under the existing or the proposed scheme of the establishment or class of establishments should be at par or more favourable than the benefits available under the Employees' Pension Scheme, 1995

NON-REMITTANCE OF PENSION CONTRIBUTION PENDING GRANT OF EXEMPTION

3.6 There is no provision under the Act/ Scheme for issue of relaxation Order for non-implementation of Employees' Pension Scheme, 1995 pending disposal of application for grant of exemption. However, the establishment, which has sought for exemption, after fulfilling the prescribed conditions and by submitting the requisite documents /certificates to the satisfaction of the Regional Provident Fund Commissioner concerned need not remit employer's share of contribution to the Pension Fund but should be retained in Provident Fund. In the event the application for exemption is not entertained/rejected, the employer shall be liable to pay the pension contribution together with interest at statutory rate thereon.

3.7 After ensuring that the establishment has fulfilled all the requirements and found considered fit for grant of exemption, the Regional Provident Fund Commissioner may forward such application for grant of exemption to the Central Provident Fund Commissioner for his consideration.

3.8 Wherever the employer has remitted the Pension Fund contribution pending disposal of his application for grant of exemption, on grant of exemption by the appropriate Government, such amount of contribution shall be refunded with interest at statutory rates under Employees' Provident Fund Scheme, 1952.

3.9 The benefits of retirement-cum-withdrawal benefits available to the employees of such establishments under the ceased Employees' Family Pension Scheme, 1971 as on the date of grant of exemption shall also be paid to the Pension Fund of the establishment subject to the consent of the employees.

3.10 The establishment seeking exemption should submit an application to the appropriate Government along with the supporting certificates/documents to the satisfaction of the Regional Provident Fund Commissioner.

3.11 The format of application to be submitted by the establishment and the connected documents, the contents of the Pension Scheme of the establishment, form for giving consent of majority employees, certificate on enrolment of all category of employees, certificate from the Board of Trustees on investment of Pension Fund, comparative statement of benefits, actuarial certificate, (alongwith the details of valuation made) and form of undertaking are given in the Form A and B annexed to this Chapter.

PROCESSING OF EXEMPTION APPLICATION:

3.12 The Employees' Pension Scheme, 1995 specifically provides a time limit for disposal of applications seeking exemption. Accordingly, the application should be disposed of within a period of six months from the date of its receipt or such further time that may be extended for reasons to be recorded in writing. If the application is not disposed of within the period of six months from the date of its receipt or such further time that may be extended for reasons to be recorded in writing, the exemption applied for shall be deemed to have been granted. The period of six months will count from the date on which the application for exemption is given in complete form to the satisfaction of the Regional Provident Fund Commissioner.

3.13 In order to ensure prompt disposal of applications, the Assistant Provident Fund Commissioner, incharge of exemption should personally monitor the receipt and disposal through a Watching Register.

3.14 While scrutinising the application, the following checks should be exercised:-

(a) whether the application is in the prescribed form;

(b) all supporting documents listed out in Form B are received and complete in all respects;

(c) whether the benefits compared are at par or more favourable than the Employees' Pension Scheme, 1995 with particular reference to the provisions relating to coverage, eligibility, entitlement, pensionable salary and quantum of pension;

(d) whether the establishment, if exempted from the operations of Employees' Provident Fund Scheme, 1952 fully complying with the conditions governing the grant of exemption.

3.15 On satisfying that the establishment has fulfilled the requisite criteria for considering the grant of exemption by the appropriate Government, the Regional Provident Fund Commissioner should forward the application, along with comparative statement (Annex-H) and his comments to the Central Provident Fund Commissioner through Controller of Pension for obtaining his recommendation.

3.16 On receipt of the recommendations of the Central Provident Fund Commissioner, the application alongwith the recommendation of Central Provident Fund Commissioner should be forwarded to the appropriate Government for a decision in the matter of grant of exemption.

3.17 The decision of the Government, on its receipt shall be communicated to the establishment, along with a copy of the Gazette notification.

3.18 On grant of exemption, the Enforcement Section shall ensure that the conditions governing grant of exemption are properly compiled.

FORM *A
Name of the Estt. &
Address:-

No.

Dated:

To
The Regional Provident Fund Commissioner**

** By Name to:
R.P.F.C. Exemption

Subject Employees' Pension Scheme, 1995 - Grant of Exemption under Section 17 (1C) of the Act read with Para 39 of the Employees' Pension Scheme, 1995 - Regarding.

Ref.: Establishment's Code No.

Sir,

We are enclosing herewith our application addressed to the appropriate authority seeking exemption from the operation of the Employees' Pension Scheme, 1995, to the Employees' of this establishment under Section 17 (!C) of the Employees' Provident Funds and Miscellaneous Provisions Act, 1952, read with Para 39 of the Employees' Pension Scheme, 1995.

2. Our establishment has framed a Pension Scheme wherein the pensionary benefits are at par with more favourable than, the benefits provided under the Employees' Pension Scheme, 1995.

3. The following documents/certificates (in triplicate) are enclosed herewith:

(i) Application seeking exemption from the appropriate Government;

(ii) Pension Scheme of the establishment with reference to Annexure "A";

(iii) Approved Registered Trust Deed;

(iv) I.T. Recognition received/applied for the set up of the Pension Fund;

(v) Consent of majority of employees (Annexure-B);

(vi) Certificate of the employer providing Pension Scheme to all category of employees associated with the establishment as per Annexure "C";

(vii) Declaration by the Trustees on investment as per Annexure "D";

(viii) Actuarial evaluation in Annexure "E"

(ix) Actuary's Certificate confirming solvency and adequacy of the Fund in Annexure "F";

(x) Certificate of the establishment on submission of Annual Certificate / Accounts etc. in Annexure "G";

Yours faithfully,

Encls: As above

NAME & DESIGNATION / SEAL

Form - B

Name and address of the
Establishment:

No.

Date:

To

The Secretary,
Ministry/Department of Labour
Government of ____ (Appropriate Govt.)

Through: The Regional P.F. Commissioner,

Sir,

Sub: Employees' Pension Scheme, 1995 - Exemption under Section 17 (1C) of the Act read with Para 39 of the Employees' Pension Scheme, 1995 - Requested - Regarding.

Ref: Code No.

Our establishment has formulated a Pension Scheme and established a Pension Fund for all the employees with effect from ________________. Our employees are members/ propose to be members of this Pension Scheme. The Pension Fund has been approved by the Commissioner of Income Tax. Comparing the benefits provided under the Employees' Pension Scheme, 1995 with that of the benefits provided under the Pension Scheme of this establishment, the benefits under the Company's Pension Scheme is at par with / more favourable than, the benefits which would be otherwise entitled to under the Employees' Pension Scheme, 1995.

2. In support of the Pension Scheme, the following documents are furnished

(a) Pension Scheme of the establishment with reference to Annexure "A";
(b) Approved Trust Deed;
(c) IT Recognition received /applied for the set up of the Pension Fund;
(d) Consent of majority of employees (Annexure -B)
(e) Certificate of the employer providing Pension Scheme to all category of Employees associated with the establishment as in Annexure -"C";
(f) Declaration by the Trustees on investment as per Annexure-"D";
(g) Actuarial evaluation in Annexure "E";
(h) Actuary's certificate confirming solvency and adequacy of the Fund in Annexure "F";
(i) Certificate of the establishment on submission of Annual Certificate / Accounts etc. in Annexure "G";

3. We request you to kindly grant us exemption from the operation of the provisions of the Employees' pension Scheme, 1995 with effect from ______________________.

Yours faithfully,

NAME & DESIGNATION / SEAL

Encl: As above

ANNEXURE 'A'

PROVISION TO BE MADE IN THE EXEMPTED PENSION FUNDS

Trust Deed and Trust Rules should contain the following:

1. The Employer shall establish a Board of Trustees for the management of the Pension Fund following the directions as may be given by the Central Provident Fund Commissioner or by the appropriate Government, as the case may be from time to time. Such Board of Trustees shall have atleast one employee's representative.

2. The Pension Fund shall vest in the Board of Trustees who will be responsible for and accountable to the Employees' Provident Fund Organisation, inter-alia for proper accounting of the receipts into and payments from the Pension Fund and the balances in their custody.

3. The Board of Trustees shall meet atleast once in every three months and shall function in accordance with the guidelines that may be issued from time to time by the appropriate Government/ Central Provident Fund Commissioner or any other Officer authorised by him.

4. The accounts of the Pension Fund maintained by the Board of Trustees shall be subject to audit by a qualified independent Chartered Accountant annually. Where considered necessary, the Central Provident Fund Commissioner shall have the right to have the accounts re-audited by any other qualified auditor and the expenses so incurred shall be borne by the employer.

5. A copy of the audited annual Pension Fund accounts together with the audited Balance Sheet of the Fund for each accounting year shall be submitted to the Regional Provident Commissioner within 6 months after the close of the financial year. For this purpose, the financial year of the Pension Fund shall be 1st April to 31st March.

6. The Employer shall transfer to the Board of Trustees the contribution payable to the Pension Fund by the 15th of each month following the month for which the contribution is payable. The Employer shall be liable to pay damages for any delay in transfer of the funds to the Board of Trustees.

7. The Board of Trustees shall invest the monies in the Pension Fund as per directions that may be given by the Government/ Central Provident Fund Commissioner from time to time. The securities shall be obtained in the name of Board of Trustees and shall be kept in the custody of a Scheduled Bank under the credit control of the Reserve Bank of India.

8. Failure to make investment as per directions of the Government shall make the Board of Trustees severally and jointly liable to surcharge that may be imposed by the Central Provident Fund Commissioner or any other Officer authorised by him.

9. The Board of Trustees shall maintain a scrip wise register and ensure timely realisation of interest/ redemption proceeds.

10. The Board of Trustees shall maintain detailed accounts to show the Pension contributions received, pension amount disbursed and interest received on the Pension Fund.

11. The Board of Trustees may issue pass books showing their Pension Fund accretion to every employee. These pass books shall remain in the custody of employees and will be brought up to date by the Board on presentation by the employees.

12. The employer shall make good any loss that may be caused to the Pension Fund to theft, burglary, defalcation, mis-appropriation or any other reason.

13. The employer as well as the Board of Trustees shall submit such returns that may be prescribed by the Regional Provident Fund Commissioner/ Central Provident Fund Commissioner/appropriate Government from time to time.

14. Notwithstanding anything contained in the Pension Fund rules of the establishment, if on the cessation of any individual from the membership of the Pension Fund consequent on retiring from service or on taking up the employment in some other establishment, it is found that the benefits under Pension Fund Rules of the establishment are less favourable as compared to those under the statutory scheme, the difference shall be borne by the employer.

15. The employer shall bear all the expenses of the administration of the Pension Fund including the maintenance of accounts, submission of returns etc.

16. The employer shall display on the Notice Board of the establishment, a copy of the rules of the Pension Fund as approved by the appropriate authority and as and when amended thereto alongwith a translation of the salient points thereof in the language of the majority of the employees.

17. The appropriate Government may lay down any further conditions for exemption of the establishment from the operation of the Statutory Scheme.

18. In the event an employee who is already a member of the Pension Scheme (either in exempted or in unexempted establishment) is employed in his establishment, the employer shall immediately enroll him as a member of Pension Scheme and arrange to have the accumulation in the Pension Fund account of such employee with his previous employer transferred and credited to Pension Fund account.

19. Employer should undertake either to provide or bear the cost for extending managerial and financial expertise to the Pension Fund Trust.

20. Income Tax and other statutory recognition required for operating Pension Fund be obtained and furnished.

21. The exemption will be liable to be concelled for violation of any of the above conditions.

ANNEXURE 'B'

The Establishment i.e. ______________________________

has advised that they have created an Exempted Pension Fund at par with that of EPS, 1995.

we, the following undersigned, have opted in favour of this exempted Pension Fund.

NAMES	SIGNATURES	DATE

Attested
Establishment:

ANNEXURE 'C'

We,

the duly Constituted attorneys of ______________________________ _______ do hereby confirm:

1. All permanent employees of this Company have been covered under this scheme.
2. All Temporary employees of this Company have been covered under this scheme.
3. All Casual employees of this Company have been covered under this scheme.
4. All seasonal employees of this Company have been covered under this scheme.
5. All contractor's Labour have been covered under this Scheme.
6. The following employees have not been covered under this Scheme:

SIGNATURE OF THE EMPLOYER

NAME & DESIGNATION:

OFFICIAL SEAL:

ANNEXURE 'D'

We, the Trustees of ____

Employees' Pension Scheme, do hereby confirm that all the investments of the Fund during the Financial year ending ________ ________, has been made as per approved format of investments. No securities has been sold at a loss to the Fund/ any loss on sale of securities has been reimbursed by the Company.

SIGNATURES:

(WITH FULL NAME IN CAPITAL LETTERS)

OFFICIAL SEAL

TRUSTEES

ANNEXURE 'E'

EVALUATION OF PENSION SCHEME OF THE ESTABLISHMENTS
VIS -A VIS
EMPLOYEES' PENSION SCHEME, 1995

CRITERION	EMPLOYEES' PENSION SCHEME, 1995	PENSION SCHEME OF THE ESTABLISHMENT
1. Contribution	9.1/2% of wage	
2. Retirement Age	58	
3. Members Pension	1/ 70 x Salary x service	
4. Minimum Pension	Rs. 500/- p.m.	
5. Maximum Pension	60% of Salary	
6. Death in Service	widow Pension = man's Pension Children's Pension = 25% of widow Pension Orphan Pension = 75% of widow Pension	
7. Death after retirement	Widow = 50% of man's Pension Children = 25% of widow pension Orphan = 75% of Widow Pension	
8. Bachelors Pension	Pension to Nominee after Retirement	
9. Pension Options	Pension for life. 90% of original pension for life, 100 times original pension on death of pensioner	
10. Pension increase	On every Actuarial Valuation.	

Conclusion:

SIGNATURE OF THE ACTUARY
(WITH FULL NAME IN CAPITAL LETTERS)

ADDRESS

ANNEXURE 'F'

Actuary's Certificate Includes following items:

1. Liability of the Fund as at 31st March of that year.
2. Asset of the Fund as at 31st March of that year.
3. Contribution to the Fund as at 31st March of that year
4. Solvency of the Fund on long term basis.
5. Adequacy of the Fund to meet the liability as and when it arises i.e no Cash flow problem.

SIGNATURE OF THE ACTUARY WITH SEAL

FULL NAME IN CAPITAL LETTERS:

ANNEXURE 'G'

CERTIFICATE OF THE ESTABLISHMENT FOR FURNISHING THE ANNUAL ACCOUNTS / ACTUARIAL VALUATION ETC.

I hereby undertake to furnish the following documents certificates by 30th September of every year to the Regional Provident Fund Commissioner in respect of the Pension Fund formulated for the employees of M/s. -- ____.

(a) Audited accounts of the Pension Fund by a Chartered Accountant.

(b) Annual Actuarial Valuation of the Fund by an Actuary.

(c) Confirmation by Trustees that investment of the Fund is as per the pattern.

(d) Certificate confirming that the benefits paid to employees in no case was less than that available under Employees' Pension Scheme, 1995.

Signature

Name with designation:

Official Seal of the Establishment

ANNEXURE 'H'

COMPARISION OF ESTABLISHMENT PENSION SCHEME VIS -A -VIS EMPLOYEES' PENSION SCHEME, 1995

S.NO.	CRITERION	STATUTORY SCHEME EPS, 1995	ESTABLISHMENT Pension Scheme	CONCLUSION	COMMENTS/ RECOMMENDATIONS/ OF RPFC (INCHARGE OF REGION)
(1)	(2)	(3)	(4)	(5)	(6)
				AT PAR/ SUPERIOR/ INFERIOR	
1.	MEMBERSHIP	(i) Every employee of the Establishment contributing to EPF Scheme, 1952/Exempted P.F. Scheme and EFP Scheme,1971. (ii) All new entrants joining the establishment w.e.f. 16.11.95 (Para 6)			
2.	CONTRIBUTION	(i) 8.33% of Employer share (ii) 1.16% of wages as Govt. share.			
3.	MONTHLY MEMBERS PENSION	(a) Superannuation Pension on completion of eligible service of 20 years and on attaining the age of 58 years. (b) Retirement Pension On completion of eligible service of 20 years and on retirement before attaining the age of 58 years. (c) Short Service Pension On completion of eligible service of 10 years or more but less than 20 years. (Para 12 (1)) (d) Eligible Service: 10 Years (e) Superannuation Age: 58 years			

(1)	(2)	(3)	(4)	(5)	(6)
4.	PERMANENT TOTAL DISABLEMENT PENSION	One months' contribution to the Pension Fund is required (Para 15)			
5.	BENEFITS ON LEAVING SERVICE BEFORE BECOMING ELIGIBLE FOR MONTHLY MEMBER PENSION.	(a) Refund of contri bution as per Table "D" for the service less than 10 years. (Para 14) (b) Alternatively, Member can obtain scheme certificate retaining the services for future Pension/ Family Pension benefits. (Para 12 (8))			
6.	PENSION FORMULA	1/70 x Pensionable Salary x Pensionable Service. (Para 12 (2)			
7.	PENSIONABLE SERVICE	(a) Contributory Service (b) Can go upto maximum of 40 years. (c) 2 years bonus weightage after completion of 20 years (Para 10)			
8.	ROUNDING UP OF PENSIONABLE SERVICE	6 months and above will be deemed as full year, less than 6 months. (Para 9)			
9.	PENSIONABLE SALARY	12 months average preceding to the date of exit (Para 11).			
10.	COMMUTATION	1/3rd of Pension can be commuted on or after 15.11.1998 (Para 12A)			
11.	OPTION FOR RETURN OF CAPITAL	(a) Three options available for reduced Pension. (b) 100/90 times of the Original Pension as Return of Capital as per the option exercised. (Para 13)			

(1)	(2)	(3)	(4)	(5)	(6)
12.	NOMINEE PENSION	Pension to Nominee in the case of death of Bachelor/ Spinster or person not leavng any eligible family member (Para 16 (5) (a))			

(1)	(2)	(3)	(4)	(5)	(6)
13.	FAMILY PENSION	(a) Death while in service with one month contribution. (b) Death away from service while holding Scheme Certificate. (c) Death as Pensioner. (Para 16)			
14.	CHILDREN/ ORPHAN PENSION	(a) Provision for payment of Pension at the rate of 25% of widow Pension to two eligible children upto the age of 25 Years alongwith widow Pension. (b) If the parents are not alive 75% of Widow Pension to each orphan will be paid for two orphans concurrently, upto the age of 25 years. (Para 16)			
15.	ACTUARIAL VALUATION	Provision for Annual Valuation exist. (Para 32)			
16.	GENERAL OBSERVATIONS (IF ANY)				

CONTROLLER OF PENSION /
RPFC OF (REGION)

CHAPTER 4

4.1 AUDIT AND ACCEPTANCE OF FORMS

The following are the forms designed for implementing the provisions of Employees' Pension Scheme, 1995.

Sl.No.	Purpose	Form prescribed for		
		Unexempted Estts.	Estts. exempted from PF only	Common for both un-exem. & Exem. estts.
1.	Option form to join the Employees' Pension Scheme, 1995	-	-	F/1
2.	Declaration/nomination Form to furnish the list of family members and also the nominee(s)	-	-	F/2(Revised)
3.	Return of employees required or entitled to become member of the fund on the commencement of Scheme to the Estt.	F/9 (Revised)	F/3 (PS)	
4.	Monthly return of employees qualifying to become members of the fund during the preceding month	F/5	F/4 (PS)	
5.	Return of employees leaving service of the establishment during the preceding month	F/10	F/5 (PS)	
6.	Statement of contribution due and remitted during the month	F/12A	F/6 (PS)	
7.	Contribution card	F/3A	F/7 (PS)	-
8.	Consolidated employee-wise annual contribution statement	F/6A	F/8 (PS)	-
9.	Declaration of person taking up employment in a covered establishment	-	-	F/11
10.	Return of ownership of the establishment	-	-	F/5A
11.	Application for claiming the withdrawal benefit and Scheme Certificate	-	-	F/10C
12.	Application for claiming Monthly Pension	-	-	F/10D

The procedure for audit and acceptance of these forms except Form 1,2, 10C & 10D are explained in Part II of this Manual.

4.2 AUDIT AND ACCEPTANCE OF FORM 1 - OPTION FORM

Employees who have the option to join the Employees' Pension Scheme, 1995, as indicated in Chapter I of the Manual, should give their option in Form 1. The option for joining the Employees' Pension Scheme is subject to payment of contribution due under the ceased Employees' Family Pension Scheme, 1971 and Employees' Pension Scheme, 1995. The manner and procedure for calculation of contribution due has already been explained in Chapter 1. Only, after ensuring the realisation of contribution for the past period, the option form should be accepted. The fact of acceptance of option should be indicated in Form 9 (Revised) / Form 3 (PS). The fact of the acceptance of option should also be incorporated in the Employees' Master file maintained by EDP Section. The option once exercised is final and irrevocable. The option form should be preserved for a period of 3 years.

4.3 FORM 2 (REVISED) - DECLARATION & NOMINATION FORM

4.3.1 The declaration and nomination form is common for both Employees' Provident Fund and Pension Fund members. It contains two portions one for Employees' Provident Fund and another for Pension Fund. The particulars relating to the Pension Fund should be sent to the EDP Cell for maintaining the data on the list of family members and also the nominee particulars in the Employees' master file. In addition, the particulars of the member, his service etc., will also be kept recorded. This form on its receipt should be verified with reference to Form 9 (Revised) /Form 3 (PS). Form 2 (Revised) should be preserved carefully as it is an important document for the purpose of giving pension to a nominee. Any change in the nomination should be accepted and the records updated duly cancelling the earlier nomination in Form 2 (Revised).

4.3.2 The family of a member includes spouse, sons and daughters (including legally adopted children). The children, whose age is beyond 25 years also falls under the definition of ' family'. A member is required to execute nomination in favour of a person to receive pension under certain contingencies.

The person nominated should fall within the definition of family. A member, who is not married or who does not have a living spouse and children, irrespective of their age or marital status may nominate a person of his choice. The nomination should be in favour of one person only. If a member acquires a family subsequently, the nomination so made, shall be invalid. (Nomination in favour of spouse has no relevance as the spouse is an automatic beneficiary). As and when the member acquires family he may nominate a person.

4.3.3 The member while applying for pension in Form 10-D, is required to furnish the details of nominee with present address etc. This nomination shall be construed as a modification to the nomination earlier exercised by member, if any.

4.3.4 The form of Nomination i.e. Form 2 (Revised) should be verified with the claim in Form 10-D so as to ensure the correctness of 'family' members. However, the list of 'family' members as furnished by the member in Form 10-D should be accepted and acted upon as the position of his family is updated at the time of claiming the pension. When the Form 10-D is preferred by widow/ widower and children, the inclusion of all family members so verified from Form 2 (Revised) should be ensured. Any omission of persons should be got clarified. Additional children given, if any, in Form 10-D may be accepted.

CHAPTER 5

ADMINISTRATION ACCOUNT

5.1.1 There is no levy of administrative charges from the establishment under the Employees' Pension Scheme, 1995. However, the scheme provides for maintenance of a separate account viz., Employees' Pension Administration Account for recording all the administrative expenses under various budget heads. There is no need to maintain a separate bank account. However, a proforma account should be maintained to record the administrative expenditure charged to the pension fund. Only upto 16% of the total administrative expenditure of the Organisation can be charged to the Employees' Pension Fund. Any excess expenditure should be charged to the Employees' Provident Fund Administration Account.

5.1.2 The cost of remittance of Pension shall not be treated as administrative expenditure and therefore it should not be accounted for while assessing the administrative expenditure. The commission payable to the disbursing agencies and other incidental charges thereto should be charged to the Pension Fund. This also includes the commission payable to the Postal Department for disbursement of benefits under the ceased Employees' Family Pension Scheme, 1971.

BANKING

5.2 The procedure regarding the maintenance of Cash Books etc., and the related banking arrangements under the Employees' Pension Scheme, 1995 are incorporated in Part I of this manual.

INVESTMENT

5.3.1 Consequent to the introduction of Employees' Pension Scheme, 1995, the net assets that stand to the credit of ceased Employees' Family Pension Scheme, 1971 as on 16.11.1995 shall stand transferred and merged to the Pension Fund under the Employees' Pension Scheme, 1995.

5.3.2 Prior to the introduction of Employees' Pension Scheme, 1995, the Employees' Family Pension Fund moneys were kept in deposit with the Public Account of the Government of India.

5.3.3 The accumulations as on 16.11.1995 in the Public Account of Government of India shall continue to remain in that account.

5.3.4 The Central Government contribution to the Pension Fund @ 1.1/6% of the pay of the members of the Employees' Pension Scheme, 1995 shall continue to be invested in the Public Account.

5.3.5 The Central Government allowed interest on such deposits @ 5.5% upto 31.3.1981, 7.5% from 1.4.1981 to 31.3.1988 and 8.5% from 1.4.1988 onwards.

5.3.6 All moneys accruing to the Employees' Pension Fund Account, except the Central Government contribution, shall be invested in accordance with the pattern of investment prescribed for investment of Employees' Provident Fund moneys.

5.3.7 The method, manner and procedure of investment etc., are explained in Part I of this manual under the caption "Investment".

PREPARATION OF CLASSIFIED SUMMARY OF RECEIPT AND PAYMENT AND FINAL ACCOUNTS

5.4 The procedure and the time schedule for the preparation of monthly classified summary of Receipts and Payments under Employees' Pension Scheme, 1995 and also the final accounts viz. the Receipt and Payment Account in respect of contribution and Administrative expenses and Balance-sheet are incorporated in Part-I of the Manual.

CHAPTER 6

6.1 AGE:

6.1.1 The age is playing a vital role in determining the eligibility for membership, pension and also the quantum of pension and other benefits. On attaining the age of 58 years, the member can normally draw the pension. However, if he is not in employment, he can draw the reduced pension from the age not earlier than 50 years. Thus, the age is to be determined accurately to reckon the benefit. The age should be determined with reference to date of birth. Wherever the date of birth is not given, it shall be determined in the following manner:-

i) Where the year of birth is given but not the exact date, 1st July shall be treated as the date of birth

ii) Where the year and month are given, the 16th of the month shall be treated as the date of birth; and

iii) Where only the age is indicated the member shall be assumed to have completed that age on that date of the medical certificate accompanying Form 2 and where no medical certificate is attached to Form 2, on the date of filling Form 2.

6.1.2 On attaining the age of 58 years the member is not required to pay the pension contribution and the benefit under the Scheme are payable. Further, the age as on 16.11.1995 is also relevant to determine the monthly members pension, to the members of the Employees' Family Pension Scheme 1971, who have become members of Employees' Pension Scheme 1995. In the case of employees who were already members of the Family Pension Fund, the payment of pension is determined with reference to date of entry into the Pension Scheme, 1995 (16.11.1995). They are divided into three groups i.e.

i) those who have not attained the age of 48 years ;

ii) those who have attained the age of 48 years but less than 53 years; and

iii) those who have attained the age of 53 years or more.

6.1.3 The particulars of age of the member as available in Form 9 (revised) /Form 3(PS) / Form 2 (Revised) should be relied upon to determine the eligibility for benefits, etc.

6.1.4 Wherever there is a variation in the date of birth/age is noticed, the age, as furnished by the employer through Form 9/3 (PS) and Form 5/4 (PS) alone should be relied upon.

6.1.5 All employees, who are below the age of 58 years and on becoming a member of the Employees' Provident Fund Scheme, 1952, shall compulsorily become members of the Employees' Pension Scheme 1995.

6.1.6 A member, who is enrolled as a member of the Employees' Provident Fund on attaining the age of 58 years, is not eligible to become a member under Employees' Pension Scheme 1995. Similarly, a member of the Employees' Pension Scheme on attaining the age of 58 years shall cease to be a member of Employees' Pension Scheme, 1995 and shall discontinue the payment of Pension contribution.

6.1.7 The completed age of the member alone should be taken into account for all purpose and as such the question of rounding off of age does not arise.

6.1.8 In the case of children, on attaining 18 years of age they become major. Till then, the guardian is to be appointed to receive the benefit.

6.1.9 Even though the family includes all children irrespective of their age, the eligibility for pension in respect of children (after the issue of amendment to the Scheme) (except disabled children) is only upto the age of 25 years.

6.1.10 A member is entitled to draw reduced pension at the earliest age of 50 years. However, this age restriction is not applicable to members who left service on account of total and permanent disablement and in respect of widow & children pension.

SERVICE

6.2.1 Service is defined under the Employees' Pension Scheme, 1995 under different context. They are past service, actual service, eligible service, pensionable service, contributory service and non-contributory service. The importance of each service in determining the eligibility and quantum of pension is given below:-

PAST SERVICE:

6.2.2 Past service is the period of service rendered by an existing Family Pension Fund member from the date of joining Family Pension Fund till 15.11.1995 or the date of exit (i.e. death or leaving service) whichever is earlier. In case of a pensioner, who ceased to be member of the Employees' Family Pension Scheme 1971, between 1.4.1993 to 15.11.1995 due to his exit or attainment of 60 years, his past service is the period of service from the date of joining the Employees' Family Pension Scheme 1971 to the date of exit or attainment of 60 years, whichever is earlier.

6.2.3 The period of past service would mean the period for which Family Pension Fund contributions were payable on the wages due to the members. This includes the period for which the employer had defaulted to pay the contributions and such period should not be construed as break. The period for which the contributions were not payable due to non-eligibility for wages on account of leave on loss of pay, temporary closure of establishment, strike, lockout or of similar nature or otherwise or for any other reason, should be treated as break in service and the same is required to be regularised and in the process to ensure the realisation of contribution due for such period.

6.2.4 The benefits due under the Scheme should not be deprived due to non-availability of option form or non-posting of breaks in service particulars or contribution in the Ledger Card. In such cases, the period of breaks, as furnished by the employer may be accepted. In transfer cases, the period of breaks as furnished in the Annexure "K" and extracted to Ledger Card, may be taken. Wherever, there is no details of breaks in service in the Annexure K / Ledger Card, it shall be treated as Nil.

6.2.5 ROUNDING OF PAST SERVICE:

A member of the Employees' Pension Scheme 1995 is entitled to past service benefit for the period of past service rendered by him. For the purpose of determining the total period of past service, the period of past service for less than 6 months shall be ignored and the total past service for a period of 6 months and above shall be rounded to a year.

ACTUAL SERVICE:

6.2.6 Actual service is the aggregate of period of service from 16.11.1995 or from the date of joining the establishment covered under the Act, whichever is later, to the date of exit from the employment of the establishment (leaving service or death) or attainment of 58 years of age, whichever is earlier. This service includes the period of contributory and also non-contributory period of service. The period of actual service is calculated to determine the period of eligible service. The fraction of service for 6 months or more shall be treated as one year, and less than 6 months shall be ignored.

6.2.7 In the case of employees either employed in a seasonal establishment/factory or employed seasonally in an establishment, even if their actual period of service is less than a year in any year, the period of 'actual service will be reckoned as one year.

6.2.8 The unemployment period between two spells of employment periods should be excluded to arrive at the actual service. The period of non-contributory service during the period of his employment should not be deducted to arrive at the actual service. However, such non contributory service will have a bearing on the Pensionable service.

PENSIONABLE SERVICE:

6.2.9 Pensionable service is the service rendered by the member from 16.11.1995 onwards and for which Pension Fund contributions have been received or receivable. The Pensionable service is one of the factor to determine the quantum of Monthly Member Pension.

6.2.10 The period of pensionable service is arrived at by reducing the period of non-contributory service during the period of employment falling on or after 16.11.1995 till the date of exit from the employment or attainment of 58 years, whichever is earlier from the actual service. The fraction of service for 6 months or more shall be treated as one year and the service of less than 6 months may be ignored.

6.2.11 The period for which the employer defaulted to pay the pension contributions will be treated as pensionable service, as the dues are receivable.

6.2.12 The 'non-contributory period of service' of employees employed seasonally in any establishment reckoned as ' actual service' shall not be treated as 'pensionable service'.

6.2.13 Wherever the pensionable service is 20 years or more, irrespective of the age, an additional weightage of 2 years is to be given, so as to determine the quantum of pension. As the Scheme stands as on 31.3.97, the weightage is due to be given only in the year (November) 2015.

ELIGIBLE SERVICE

6.2.14 The eligibility for pension is determined with reference to 'eligible service'. This comprises of the services namely, 'past service' and 'actual service'. The period of past service relates to service rendered by the employees under the Employees' Family Pension Scheme from 1.3.1971 to 15.11.1995. The actual service is the period of service rendered by the employees commencing from a date on or after 16.11.1995 till the date of exit from the employment or attainment of 58 years of age, whichever is earlier. The period either under past service or under actual service or both, as the case may be, will constitute eligible service. The eligibility for monthly pension to the member is determined with reference to 'eligible service' only. The period of 'past service' and 'actual service' should be rounded off separately to the nearest year to determine the eligibility for pension. If on account of rounding off alone the eligibility is denied such cases may be referred to Central Office.

6.2.15 The method of computing eligible service is as under:-

DETERMINATION OF ELIGIBLE SERVICE:

1. Period of Past Service:
   a) Date of leaving service or 15.11.95, whichever is earlier:
   b) Minus(-) Date of joining FPS, 1971 :

   ----

   c) Past Service x x x

   d)* Less- Non contributory service (if not, regularised)

   ----

   e) Net Past Service

   ((rounding off)

2. Period of Actual service
   a) Date of exit
   (Leaving date or 58 years) whichever is earlier

* *All breaks under EPFS, 1971 requires to be regularised*

b) Minus (-) (i) 16.11.95 or date of joining EPS, 1995 ________ ____________

Less (ii) Unemployment period between two spells of employment

c) Actual service ____ ____ __________(rounding off)

3. <u>Eligible Service:</u>
Add: 1(e) + 2(c) =

6.2.16 A period of 10 years eligible service is prescribed to become eligible for pension. This period of 10 years may be wholly fall either under past service or under actual service or under both. The service rendered by a member of ceased Employees' Family Pension Scheme 1971 has been termed as ' past service' and it should not be misconstrued as ' Pensionable service'. The 'eligible service' need not necessarily be a 'contributory service'.

6.2.17 The minimum period of 10 years eligible service for entitlement of pension is only for granting member pension (other than disabled pension) and not for widow and children pension.

6.3 SALARY

6.3.1 Similar to the term 'service' the term 'salary' is also equally relevant and it is vital factor in determining the quantum of benefits payable to the member as well as to his family.

6.3.2 The rate of pension contribution is 8.1/3% of the pay. It should be restricted to the maximum pay ceiling of Rs. 5000/- p.m. or at the option of the employee and employer on the entire pay i.e. pay reckoned for PF from the date of commencement of the Scheme or the date on which the pay exceeds Rs. 5000/- whichever is later.

6.3.3 •The 'pensionable salary' is one of the factor to determine the quantum of monthly members pension. Pensionable salary shall be the average monthly pay drawn on which contribution to Employees' Pension Fund paid or payable during the contributory period of service in the span of 12 months preceding the date of exit from the employment. The total wages during the 12 months span shall be divided by actual number of days for which wages has been drawn and the amount so derived shall be multiplied by 30 to work out the average monthly pay.

[illegible] The average monthly pay is calculated as under:

[illegible] date of exit .28.3.1997
[illegible] Period reckoned 1.4.1996 to 28.3.1997

Month		Pay earned	
		Actual No. of days	Amount Rs.
1.	4/96	31	4500
2.	5/96	20	3000
3.	6/96	Nil	..
4.	7/96	15	2250
5.	8/96	31	4500
6.	9/96	15	3000
7.	10/96	30	5000
8.	11/96	25	4800
9.	12/96	Nil	...
10.	1/97	15	2500
11.	2/97	31	5000
12.	3/97	28	5000
		241	39550

Average pay = 39550 / 241
= 164.10 x 30 = 4923.23
Rounded to Rs. 4923/-

NOTE: In case of monthly paid employees, weekly holidays need not be shown as non-contributory service.

6.3.5 Even if the span of pay for 12 months falls prior to 16.11.1995, the average pay should be worked as per the Employees' Pension Scheme. Where there were no wages for the earlie period of 12 months, then only the period of reckoning should be stretched backward to th preceding block of 12 months. For example, if the exit falls on 5.10.96 and where there was no pay drawn from 9/95 onwards, his block of 12 months will be reckoned from 9/94 to 8/95.

6.3.6 The past service benefit of pension payable to existing members is reckoned with reference to their pay at two different slabs; i.e. salary upto Rs. 2500/- and salary more tha Rs. 2500/-. This salary is with reference to the one drawn on 16.11.95 /Date of exit, whichever i earlier.

The term salary would mean pay/wages on which contribution is due.

6.3.7. No average pay need be calculated for arriving at the widow pension payable unde Table C, which shall be calculated on the pay at the day of death or the withdrawal benefit pay able under Table A and return of contribution under Table D which shall be calculated on the pay at the day of exit from employment.

Where there is an abnormal variation on wages with reference to the previous month/s, necessary precaution to be taken and check should be exercised with reference to the previous month/s wages. In such cases, where the variation is upto 10% the same may be accepted (exit month). Beyond this, Regional Commissioner in charge of sub-Regional office/Regional Provident Fund Commissioner (Finance and Accounts) may decide the wages to be taken, after consulting the establishment, if necessary.

6.3.8 The number of days for which pay drawn in the month of exit shall be divided by the actual number of days for which wages earned and the amount so derived shall be multiplied by 30. However, any abnormal variation with reference to earlier period, the Asstt. P.F. Commissioner concerned may order for reckoning the pay in the method of arriving pensionable salary, as explained in para 6.3.4

As regards piece-rated employees, the average total wage is required to be reckoned with reference to the total wages earned during the period of 12 months divided by 365 days and the product will be multiplied by 30. However, where there is no wages earned for the entire month that month may be treated as period of non-contributory service.

Considering the difficulties involved in determining the monthly wages i.e. wages for the month of the exit in respect of deceased piece-rated employees (for applying table 'C') the actual wages earned for th period of 12 months (actual pensionable service wherever the period is less than 12 months) may be divided by 365/ period of pensionable service and the product may be multiplied by 30.

As regards daily rated employees, the procedures prescribed in the scheme to determine the average wage may be adopted.

6.3.9 The pay last drawn as taken from Form 3A/ Form 7 (Pension Scheme) should be relied upon. The pay, as given in Form 10-D, should be verified with Form 3A/Form 7 (PS) to ensure the correctness.

6.3.10 Wherever the average pay/last pay exceeds Rs. 5000/- it should be verified, whether the pension contribution has been recovered on such pay.

CHAPTER 7

BENEFITS

7.1.1 The beneficiaries for pensionary benefits can be classified into two categories viz.,

a) Eligible for the benefits under the ceased Employees' Family Pension Scheme 1971

b) Eligible for the benefits under the Employees' Pension Scheme, 1995

7.1.2 The following cases shall be regulated under the provisions of the ceased Employees' Family Pension Scheme, 1971

i) Cessation of membership/employment/death of the member occurred prior to 1.4.1993;

ii) Cessation of employment of the member (other than death) between 1.4.1993 and 15.11.1995 but the member has not opted for Employees' Pension Scheme, 1995;

iii) Death of the member occurred between 1.4.1993 and 15.11.1995 and the quantum of benefits under Employees' Family Pension Scheme 1971 on date of death found more favourable than EPS, 1995

In these cases, the forms prescribed for claiming the benefits under the ceased Employees' Family Pension Scheme, 1971 will be used to authorise the benefit i.e. (Forms 10-A,/ 11(FPF) and 10-B).

7.1.3 The following cases are to be regulated under the Employees' Pension Scheme, 1995;

iv) Cessation of employment / death of the member occurred on or after 16.11.1995

v) Members of the ceased Employees' Family Pension Scheme 1971, who left service between 1.4.93 and 16.11.95 and exercised option for joining the Employees' Pension Scheme, 1995.

vi) Members of the ceased Employees' Family Pension Scheme 1971 who died between 1.4.1993 and 15.11.1995 and the quantum of benefits under Employees' Pension Scheme 1995 are found more favourable than the ceased Employees' Family Pension Scheme, 1971. The comparison of benefit should be restricted as on the date of death.

vii) In respect of Family Pension members who left service between 1.4.1993 to 15.11.1995 and subsequently died during that period either before or after availing the retirement -cum- withdrawal benefit.

ACCOUNTING OF BENEFITS UNDER EMPLOYEES' FAMILY PENSION SCHEME, 1971 PAYABLE (ON OR AFTER 16.11.1995)

7.1.4 The amount payable towards Family Pension, Life Assurance benefits and Retirement-cum-Withdrawal benefits sanctioned under the ceased Employees' Family Pension Scheme, 1971 either prior to 16.11.1995 or on or after 16.11.1995 shall be paid from Employees' Pension Fund. The amount of commission due to the disbursement agencies and the amount of the pension due to the beneficiaries under the ceased Employees' Family Pension Scheme 1971 shall be charged to the Employees' Pension Fund i.e. EPF Account No. 10.

7.2 TYPES OF BENEFITS:

1. Withdrawal benefit
2. Scheme Certificate
3. Pension
   - a) Superannuation Pension
   - b) Retirement Pension
   - c) Short Service Pension
   - d) Disabled Pension

   (a–d: Member Pension)

4. Commuted Pension to member
5. Return of Capital to --

Member	Nominee: Family members	Nominee: Non-family members	Lump-sum one time payment

6.
   - a) Widow pension
   - B) Children Pension (including disabled)
   - c) Orphan Pension
   - d) Nominee Pension

   (a–d: Family Pension)

Note: All the above benefits shall be calculated to the nearest rupee.

7.3 WITHDRAWAL BENEFIT

7.3.1 The Return of contribution/withdrawal benefit is payable to a member on exit from employ-[illegible]ndering the eligible service for a period of less than 10 years on the date of exit or on attaining [illegible] of 58 years of age, whichever is earlier. However, if the member has not attained the age of [illegible]ars on the date of exit, he may opt for Scheme Certificate. It is clarified that the period of eligible [illegible] for 9 years and 6 months and above should be construed as 10 years and in such cases the [illegible]nt of Return of contribution/withdrawal benefit does not arise.

a) While calculating the period of eligible service certain period may partly fall, prior to 16.11.1995 i.e. past service and partly thereafter i.e. Actual service;

b) In respect of those who were members of ceased Employees' Family Pension Scheme, 1971 and left service during the period between 1.4.1993 and 15.11.1995 and exercised option to join the Employees' Pension Scheme, 1995 and having eligible service of less than 10 years (i.e. less than 9 years and 6 months) their entire period of service is known as Past Service only.

c) In the case of new entrants to the Employees' Pension Scheme, 1995 i.e. those who join on or after 16.11.1995, the period of actual service shall be treated as eligible service.

QUANTUM OF BENEFIT

7.3.2 This benefit is to be calculated with reference to Tables A & B & D (i.e. A x B + D).

In case of (a) above, the withdrawal benefit is with reference to the No. of full years contributions paid during the period of Past service and pay on which FPF contributions received (Restricted to Rs. 3500/- upto 30.09.94 and Rs. 5000/- thereafter). The No. of years to be arrived at should be rounded off to the nearest full year. The proportion of Pay shown under Col. 2 of Table -A should be first arrived at. The amount arrived at as per Table - 'A', shall be multiplied by the Factor in Table - B with reference to the period lapsed from 16.11.1995 to the date of exit/date of attaining 58 years whichever is earlier.

For the period of actual service rendered from 16.11.1995 the benefit is to be calculated with reference to Table -D. Pay as on date of exit from employment/attaining the age of 58 years whichever is earlier should be multiplied by proportion of wages shown under column No. 2 of Table -D depending on the years of service.

The 'years of service' under Table-D is exclusive of non-contributory service.

Where the fraction of a year i.e. less than 6 months to be ignored and 6 months and above taken as 1 year to reckon the benefit, applying Table A,B &D. Wherever the period of past service or actual service is less than 6 months, the actual contribution should be refunded.

The amount arrived at for the period of past service as well as actual service should be totaled up to determine the amount payable.

In case of (b) above, the quantum of benefit should be worked out with reference to Table A only, as explained above.

In case of (c) above, the quantum of benefit should be worked out for the actual service with reference to Table D only, as explained above.

7.3.3 In the following cases no withdrawal benefit under the EPS 1995 will be allowed :-

a) Where the eligible service on exit is 10 years or more in respect of a member of EPS 1995 (including optees)

b) Those who were members of the Family Pension Fund and possess 10 years eligible service between 1.4.1993 and 15.11.1995 and died during this period.

It should be noted that the admissibility for withdrawal benefit is only with reference to the eligible Service (Not pensionable service). Period of 9 years and 6 months to be reckoned as 10 years.

NOTE: In case of death of a member before authorisation of the withdrawal benefit the payment becomes infractuous and the entitlement for Family Pension to be examined.

7.3.4 PROCEDURE FOR CALCULATION OF WITHDRAWAL BENEFIT

The various steps that are required to be followed in deciding the eligibility and determining the quantum of withdrawal benefit is given in the worksheet. (Refer Annexure I to Para 9.4).

7.4 SCHEME CERTIFICATE

7.4.1 The Scheme Certificate will enable the member to carry over the accrued pensionable benefits as and when he changes his employment. The different spells of membership under different employers will enable the member to consolidate his service so as to get the pensionary benefits subject to fulfilling other eligibility conditions. However, the non-issue/non-claim of Scheme Certificate will not forfeit the membership.

7.4.2 The member who has put in eligible service for a period of less than 10 years is also eligible to get the Scheme Certificate or he may avail withdrawal benefit, if he so desires. A Scheme Certificate shall necessarily to be provided to a member on his exit who has put in an eligible service of 10 years and not attained 58 years of age. In such cases, no withdrawal benefit should be allowed under any circumstances. However, if the member attains the age of 50 years and opts for reduced pension, he may be paid pension. The Scheme Certificate is a valuable document which will be issued under the signature of the Assistant Provident Fund Commissioner (Pension) with embossing seal. This should be laminated before despatch.

7.4.3 Where a member holding a Scheme Certificate has not put in eligible service of 10 years and not availed withdrawal benefit during his life time, on his death, before attaining 58 years, the widow/children will be eligible for family pension. In case the death of the member occurs after attaining the age of 58 years, the family will be eligible only for withdrawal benefit and not Family Pension. Such member even on attaining the age of 58 years, will be eligible only for withdrawal benefit and not monthly Member Pension.

7.4.4 The Scheme certificate, in the form prescribed (see Annexure), should be generated by the Computer with a Control No. indicating the Regional Office/ Sub-Regional Office Code/Serial No. The record of Scheme Certificate is to be retained until the receipt of confirmation on lodging of the same with other Regional Office/Sub-Regional Office.

7.4.5 The Scheme Certificate received along with Form 5 /Form 4 (Pension Scheme) should be received in Accounts Section and forwarded to EDP Section through Pension Section. The Pension Section will keep proper records on the issue of Scheme Certificate and receipt from other Regional Office/Sub-Regional Office. The Employees Master file kept in Computer should be updated with reference to the Scheme Certificate received/issued. On surrender of Scheme Certificate the application in Form -10-D may be entertained after ensuring the eligibility etc. by the Pension Section.

7.4.6 The advantages of availing the Scheme Certificate by a member is given in the instructions to claim application in Form-10C. As the Scheme is mainly intended to provide pensionary benefits the members should be discouraged to avail the withdrawal benefits and in lieu thereof Scheme Certificate may be given. The employers should be educated and advised to forward the application in Form-10-C for issue of Scheme Certificate. Considering the benefits that will accrue to the famil of the member on his premature death before attaining 58 years and during the period of his unemployment, the Scheme Certificate may be given.

7.4.7 The Scheme Certificate will be issued only on obtaining application in Form 10-C (EPS).

ANNEXURE

Note: (To be surrendered on joining a new Establishment covered under the Act for onward transmission to Regional Provident Fund Commissioner concerned)

Control No.

R.O. S.R.O. S.No. YEAR

EMPLOYEES' PROVIDENT FUND ORGANISATION
EMPLOYEES' PENSION SCHEME, 1995

PARA: 12(8) & 14
SCHEME CERTIFICATE

Certified that the Member mentioned hereunder has opted for Scheme Certificate and his service particulars are given for reckoning to determine the benefits.

Particulars of the Member of Employees' Pension Scheme, 1995

1.	Name of the Member	:
2.	Employees' Provident Fund A/c No./Pension Fund A/c. No.	:
3.	Date of birth	:
4.	Father's/Husband's name	:
5.	Date of joining FPS/EPS	:
6.	Date of cessation of membership	:
7.	Reason for cessation of membership	:
8.	Age as on 16.11.1995	:
9.	Date of attaining 58 years of age	:
10.	Age on date of exit	:
11.	Past Service upto 15.11.1995 (actual period)	: Y - M - D
12.	Actual service from 16.11.1995 (actual period)	: Y - M - D
13.	Eligible service	:
14.	Pensionable service	:
15.	Non-contributory service	:
16.	Period intervening two spells of employment	:
17.	Pay as on 16.11.1995*	:Rs.
18.	Pensionable salary	:Rs.
19.	Details of wages for 12 months	:
20	Details of Nominee & Family members	:

Sl.No.	Name	Relationship with the member	Date of birth
	Nominee:		
	Family members:		

Amount of pension due on the date of exit :
(in words) :Rs.

A.P.F.C.

*For on leaving service (prior to 16.11.1995)

7.5 MONTHLY MEMBER PENSION:

7.5.1 Pension is defined as the Pension payable under the Employees' Pension Scheme, 1995 and include the Family Pension admissible and payable under the ceased Employees' Family Pension Scheme, 1971.

Pension depends upon 3 factors:-

1. Pensionable salary;
2. Pensionable service; and
3. Pension factor

7.5.2 Pension is classified broadly into 2 categories:-

a) Pension to the members;
b) Pension to the family.

7.5.3 Pension to the members is known as Monthly Member's Pension. The Monthly Member's Pension is of different classes as under:-

a)	Superannuation Pension	-	If a member has rendered eligible service of 20 years or more and retires on attaining the age of 58 years;
b)	Retirement Pension	-	if he has rendered eligible service of 20 years or more and retires or other-wise ceases to be in the employment before attaining the age of 58 years;
c)	Disabled Pension	-	If he is permanently and totally disabled during the employment. Disablement should occur on or after 1.4.1993

7.5.4 The Pension is payable monthly, from the date following the date of attaining 58 years of age in case of superannuation, even though he may continue in service.

7.5.5 Whenever a member leaves service, he may avail the reduced pension on or after attaining the age of 50 years. However, a disabled member, on leaving service, on account of his total and permanent incapacity, is entitled for pension, from the date of invalidation while in service, irrespective of his age.

7.5.6 Monthly Member's Pension is applicable in respect of the following categories of members:

a) 'New entrants' and
b) Existing Members i.e. Members of the ceased Employees' Family Pension Scheme 1971.

'New entrants' are those who join the Employees' Pension Scheme, 1995 directly by joining a covered establishment and thereby acquires a membership for the first time, from a date commencing from 16.11.95 or thereafter.

The other category, includes those persons who were members of the ceased Employees' Family Pension Scheme, 1971 and joined the Employees' Pension Scheme, 1995 by being a member of that Scheme, as on 15.11.95 and includes those Family Pension Fund members, who were out of employment during 01.04.93 to 15.11.95 and opted for the Employees' Pension Scheme, 1995 (excluding deemed optees). These members are termed as "existing members".

7.5.7 The Monthly Member Pension is calculated through a factor prescribed in the Scheme, viz.,

$$\text{Monthly Member Pension} = \frac{\text{Pensionable Salary} \times \text{Pensionable service*}}{70}$$

*(Note : where pensionable service is more than 20 years, 2 years weightage will be given)

7.5.8 In the case of those falling under the category of 'new entrants', the Monthly member Pension is computed only through the above factor.

PENSION FOR 'NEW ENTRANTS':

7.5.9 The 'new entrants' are eligible for pension, only when their eligible service is 10 years or more and payable at reduced rate after attaining 50 years of age and full pension at the age of 58 years.

In this category, the completion of eligible service by any new entrant will not arise before 16.5.2005. Here , the eligible service is only the actual service rendered from 16.11.95 or the subsequent date of joining the Scheme to the date of exit. Where a member having served in different establishments and continued his membership, the period of unemployment intervening the two spells of employment should be excluded.

After arriving at the aggregate of actual service, the period of non contributory service, if any, should be deducted. The period thus arrived is known as 'Pensionable Service'. There is no stipulation of minimum period of Pensionable service. It may be less than 10 years also.

The minimum eligible service of 10 years is only to determine the entitlement of pension; whereas the quantum of pension is to be computed with reference to pensionable service, adopting the factor prescribed.

7.5.10 Where the pensionable service is 20 years or more, a weightage of 2 years is to be added. As the Scheme stands as on 31.03.98, the application of weightage will arise only in the year 2015.

7.5.11 In respect of those falling under the category of 'existing members', the Monthly Member's Pension is computed as under:-

(a) Pension as per the formula given above i.e., Pensionable service rendered from 16.11.95 onwards

and

(b) Past service pension benefit.

The aggregate of (a) and (b) above will be the Monthly Member's Pension.

7.5.12 While reckoning this Monthly member's Pension, the following factors are considered:

i) age of the member as on 16.11.95
ii) years of past service
iii) salary
iv) Quantum of Past service benefit as on 16.11.95
v) Factor to multiply the past service pension, for period between 16.11.95 and date of attaining 58 years age;
vi) Minimum quantum prescribed for - factor pension;

- pension with 24 years of past service
- pension with service less than 24 years.

7.5.13 To determine the age as on 16.11.95, the existing members are divided into 3 categories - viz

(1) Not attained the age of 48 years ;
(2) Attained the age of 48 years but less than 53 years; and
(3) Attained the age of 53 years or more.

7.5.14 The years of past service is grouped into 4 categories i.e.

(i) upto 11 years
(ii) More than 11 years but upto 15 years
(iii) More than 15 years but less than 20 years
(iv) beyond 20 years.

7.5.15 The salary as on 16.11.95, was divided into two groups, i.e.

(i) Salary upto Rs. 2,500/- per month
(ii) Salary more than Rs. 2,500/- per month.

7.5.16 The quantum of past service benefit payable on completion of 58 years of age as on 16.11.95, with regard to past service and salary is as under:

Years of Past Service		Salary upto Rs. 2,500/- p.m.	Salary more than Rs. 2,500/- p.m.
(i)	Upto 11 years	80	85
(ii)	More than 11 years but upto 15 years	95	105
(iii)	More than 15 years but less than 20 years	120	135
(iv)	Beyond 20 years	150	170

7.5.17 Wherever the member completes the age of 58 years after 16.11.95, the quantum of Past service pension benefit, given in the Table above will be multiplied by the factor given in Table - 'B' corresponding to the period between 16.11.95 and date of attainment of 58 years of age.

7.5.18 In the case of optees, who are eligible for Pension commencing from a date prior to 16.11.95, the past service benefit willbe given as per Table above without the application of Table -B. In that case salary for the purpose of Table should be taken as the one drawn on the date of exit. <u>NOTE</u>: (The Table - B should be enlarged to cover the period of more than 24 years to 40 years so as to apply to the cases that may arise after 2019).

7.5.19 The minimum Pension prescribed at different stages are as under:-

Age at 16.11.95	Minimum for formula Pension	Minimum for 24 years Past Service	Minimum for Service less than 24 years.
(1)	(2)	(3)	(4)
	Rs.	Rs.	Rs.
Less than 48	635	800	450
Between 48 and less than 53	438	600	325
53 and above	335	500	265

The wages as on 16.11.1995 is required to be preserved in the Employees' master file. Till the creation of Employees master file, the wages for the month of November, 1995 should be indicated in Form 24 in continuation of the name of the member, a letter suffixing (A) & (B). An explanation with preprinted note as under:-

A = *Wages for November '95' is above Rs. 2,500/-*
B = *Wages for November ' 95 is up to Rs. 2,500/-*

While determining the quantum of past service benefit the Form 24 should be consulted to extract the wage particulars. Alternatively the wage details may be kept noted in the master ledger card of the member.

PENSION FOR 'EXISTING MEMBERS'

7.5.20 **PROCEDURE FOR CALCULATION:**

The quantum of Monthly member's Pension is calculated through Computer with the following principal input data:-

1. Date of birth :
2. Date of joining Employees' Family Pension Scheme, 1971 :
   Date of joining Employees' Pension Scheme, 1995 :
3. Period of non-employment between two spells of employment :
4. Period of non-contributory service :
5. Date of exit :
6. Reason for exit :
7. Salary as on 15.11.1995 :
8. Salary for 12 months prior to exit :

Reckoning of Pension to 'existing members' - Manual Process"

7.5.21 The following steps are to be followed in arriving at the Monthly Member Pension to existing members.

(1) Extract the following data from Form - 9/3(PS) Form - 2, Form 3A/7 (PS) etc.

(a) Date of joining Employees' Family Pension Scheme, 1971;
(b) Date of cessation Employees' Family Pension Scheme, 1971. 16.11.95 /earlier date.
(c) Non-contributory service
(d) Date of joining Employees' Pension Scheme;
(e) Date of exit;
(e1) Non contributory service;
(f) Pay as on 16.11.95
(g) Pensionable salary;
(h) Age as on 16.11.95;
(i) Age as on exit;
(j) Age as on the date of application (Form -10D)

(2) Calculate Past service
(3) Calculate Actual service
(4) Calculate Eligible Service;
(5) Calculate Pensionable Service;
(5(a) Determine the age group, with reference to age as on 16.11.1995;
(6) Calculate and determine the factor Pension (subject to minimum)
(7) Calculate and determine Past Service benefit, with reference to Table.
(8) Apply factor in Table - B, to the benefit (factor with reference to period between 16.11.95 and attainment of 58 years) i.e. 58 - (age) as on 16.11.95"
(9) Add factor Pension (S.No. 6) and Past Service benefit (Subject to minimum for actual service and past service).
(10) Multiply the amount as arrived in Col.9 by Actual past Service divided by 24. This will, however, be the minimum prescribed.

EMPLOYEES' PENSION SCHEME, 1995

WORK SHEET

PART -A

Particulars of the Member of Employees' Pension Scheme, 1995

Draft P.P.O.No.

1. Name of the Member : xxxxxxxxxxxxxxxxx
2. Employees' Provident Fund A/c No. : TN/10426/54
3. Date of Birth : 31.03.1939
4. Father's/Husband name : xxxxxxxxxxxxxxxxx
5. Date of joining FPS/EPS : 01.08.1974
6. Date of Cessation of Membership : 31.03.1997
7. Reason for Cessation of Membership : Retirement
8. Age at which Pension Preferred : 58
9. Age as on 16.11.95 : 56 years
10. Date attained age 58 on : 30.03.97
11. Date of entitlement to pension w.e.f. : 31.03.97
12. Details of Family Member/Nominee eligible for Pension in the event of Death of Member

Sl. No.	Name	Relationship with the member	Date of birth

COMPUTATION OF PENSION
PART -- B

1.	Age on Date of Exit	:	58 years
2.	past Service upto 15.11.1995	:	21 years
3.	Actual Pensionable Service	:	1 years
4.	Weightage of 2 years	:	Nil
5.	Eligible Service	:	22 years
6.	Pensionable Salary	:	Rs. 3500/-
6.A	Salary as on 16.11.1995	:	Rs. 2000/-
7.	years to Age 58	:	0 year
8.	(A) Pension as per Formula (Subject to min. Pension on the basis of age as on 16.11.95	:	Rs. 335

X - For 48 years Min. Rs. 635/-

Y - For = 48 & 53 years Rs. 438/-

Z - For = 53 years Rs. 335/-

(B) Past Service Benefits under FPS, 1971	:	Rs. 173
Total pension payable (A+B) (Subject to Min. of Rs. 800/-, 600/-, 500/- for X,Y,Z age group respectively)	:	Rs. 508

9. Monthly Member pension (Pension*Eligible Service)/24 : Rs. 445
(Subject to Minimum of Rs. 450/-, 325/-, 265/- for X,Y,Z age group respectively)

Note:

8 (B) Past service benefit for 21 years w.r. to salary of Rs, 2000/- as on 16.11.95 : Rs. 150

Period elapsed from 16.11.95 date of exit - Less than 2 years

Total benefit : 150 x 1.154 = Rs. 173

9 Monthly Member pension : $\frac{508 \times 21}{24} = 445$

7.6 REDUCED PENSION/PENSION BELOW THE AGE OF 58

7.6.1 Paragraph 12 (7) of the Scheme provides for drawal of a reduced Pension by a member.

Pension is payable only on attaining the age of 58 years. In such case the full amount of the accrued pension is payable from the date following the day on which a member attains the age of 58 years. The full pension at the age of 58 years may be drawn irrespective of the position whether the member is in employment or out of employment. Thus, an employee being a member of EPS - 95 with an eligible service of 10 years is entitled to draw full pension on attaining the age of 58 years while continuing in employment. As the member exits from the EPS membership at the age of 58, he becomes entitled to receive the pension.

7.6.2 A member is eligible to draw pension even before attaining the age of 58 years on the following conditions:-

(a) the member should not be in service and the date of leaving service may be at any date/age and for any reason.

(b) the member should have attained the age of 50 years

(c) The member should have completed the eligible service of 10 years.

(d) the member should give his option to draw reduced pension.

(Note: A member who leaves the service due to his permanent and total disablement during the employment is entitled to draw pension irrespective of his age, but subject to additional reduction in pension in case of his drawal of pension before attaining the age of 50 years.)

As the pension is opted before the age of 58, reduction is applied. The quantum of reduction in the case of reduced pension will be @ 3% for every year the age falls short of 58 years. The reduction will be made on the reduced amount of the earlier stage and not at flat rate of 3% for each year.

Eg. Pension at the age of	57	-	97%
	56	-	94.09%
	55	-	91.27%
	54	-	88.54%
	53	-	85.89%
	52	-	83.32%
	51	-	80.82%
	50	-	78.40%

The option for reduced pension should be given by the member in his application in Form 10-

7.6.4 The member may opt for reduced pension at any age between 50-57 and it is not necessary to claim immediately on leaving service. A member who leaves service after rendering the requisite eligible service at the age below 50, may apply for reduced pension at any age between 50-57.

7.6.5 The criteria for determination of reduced pension will be on the age at which the member opted for reduced pension and not the date of his leaving service or the date of attaining 50 years.

7.6.6 The age is determined for the above purpose, as on the date of application. (Form 10-D (EPS) and the reduction of 3% at reducing balance is applied. The date given in the application by the member, if not the employer or in the absence of both, the date of receipt of application in the office, with reference to dated office seal affixed by the inward section, should be taken into account. Only the completed age on the date of application should be taken and there is no rounding off of age.

7.6.7 A member holding a Scheme Certificate and eligible to draw reduced pension should surrender his Scheme Certificate along with the application.

7.6.8 In case an application is received, duly signed by the member without specifying his option for reduced pension at the appropriate column, the application may also be entertained for reduced pension with the prior approval of Assistant Provident Fund Commissioner. The mere fact that the member had submitted the application after going through the instructions appended to the claim would mean that the member has claimed for drawal of pension he is entitled under the Scheme. Keeping this in view, the application may be processed.

7.6.9 The option exercised by the member for reduced pension in the application is final and no change should be entertained after the issue of PPO. An example showing the calculation of reduced pension is given below.

PROCEDURE FOR CALCULATING THE REDUCED PENSION

7.6.10 The software calculating the Monthly Member's Pension in respect of those drawing pension below the age of 58 years is modified as under to remove the anomaly when compared to the benefit admissible to those who draw pension at the age of 58.

The formula pension, Past Service benefit with Factor Table B both put together to be taken as 500 only. Thereafter, (i) reduce with reference to number of years of past service falls short of 24 years and (ii) No. of years falls short of 58 years of age.

PROCEDURE FOR CALCULATION OF THE REDUCED PENSION ON MANUAL BASIS

The following procedure should be adopted to arrive at the reduced pension, payable between 50-57 years of age:-

1. Determine the Past Service
2. Determine the Actual Service
3. Determine the Eligible Service
4. Determine the Pensionable Service
5. Age as on the date of application (F/10-D)
6. Salary as on 16.11.1995
7. Pensionable salary
8. Determine No. of years to reach 58 (With reference to age as on 16.11.95)
9. Arrive at Formula pension with reference to salary at S.No. 7
10. Arrive at Past Service benefit
11. Multiply the benefit as at S.No. 10 with factor in Table B relevant to years i.e. 58 - Age as on 16.11.95
12. Arrive at total minimum pension payable (9+11)

To be taken as Rs. 500/- only

13. Arrive at Members Monthly Pension $= \dfrac{\text{Pension} \times \text{Past Service}}{24}$

    = Rs.
14. Apply Reduction factor @ 3% (on reducing balance) = Rs.
15. Reduced Pension = Rs.

NOTE: Since the reduced pension is payable from the date following the date of application in Form 10-D, wherever the death of the member occured after the receipt of application in the office, the quantum of reduced pension from the date of application to the date of death of the member is payable to the heirs of the deceased. The widow pension is payable in such cases under para 16(1) (e)

EMPLOYEES' PENSION SCHEME, 1995

WORK SHEET

PART - A

Particulars of the Member of Employees' Pension Scheme 1995 Draft P.P.O No. : TN/MAS/19

1.	Name of the member	:	xxxxxxxxxxxxxxxxxxxxxxx
2.	Employees' Provident Fund A/c No.	:	TN/10426/54
3.	Date of Birth	:	31/03/1946
4.	Father's/Husband name	:	xxxxxxxxxxxxxxxxxxxxxxx
5.	Date of Joining FPS/EPS	:	01/08/1994
6.	Date of Cessation of membership	:	31/03/1997
7.	Reason for Cessation of membership	:	Retirement
8.	Age at which Pension preferred	:	51
9.	Age as on 16.11.1995	:	49 years
10.	Date attained age 58 on	:	30/03/2004
11.	Date of entitlement to pension w.e.f.	:	01/04/1997
12.	Details of Family members/Nominee eligible for Pension in the event of death of member	:	

Sl.No.	Name	Relationship with the member	Date of birth
1.	B. Ravichandran	Son	03.07.1991
2.	B. Mahalakshmi	daughter	30.05.1974

COMPUTATION OF PENSION

PART - B

1.	Age on Date of Exit	:	51 Years
2.	Past service upto 15.11.1995	:	21 years
3.	Actual Pensionable Service	:	1 year
4.	Weightage of 2 years	:	Nil
5.	Eligible Service	:	22 years
6.	Pensionable Salary	:	Rs. 3500
7.	Years to Age 58	:	7 years

8. (A) Pension as per Formula : Rs. 50/-
(Subject to Min. pension on the basis of age as on 16.11.95)

X -	For 48 years	Min. Rs.	635/-
Y -	For 48 & 53 years	Rs.	438/-
Z -	For 53 years	Rs.	335/-

(B) Past Service Benefit under FPS 1971 Rs. 382/-

Total pension payable (A+B) Rs. 500/-
(subject to Min. of Rs. 800/-, 600/-, 500/- for X,Y,Z age group respectively)

9. Monthly Member Pension (Pension * Eligible Service)/24 Rs. 438/-

(subject to minimum of Rs. 450/-, 325/-, 265/- for X,Y,Z age group respectively)

10. Monthly Member Pension if opted for pension before 58 Rs. 354/-

11. If opted for reduced Pension and Capital Return

i) 90% of Monthly Member Pension : Rs.
ii) 90% of Monthly member pension and 80% of monthly member pension to widow pension : Rs.
Capital return : Rs.

iii) 87.5% of Monthly member pension for 20 yrs. Rs.
The pension will cease after 20 yrs
Capital return Rs.

12. Monthly Pension to be paid to the member bearing Account No. TN/10426/54 is Rs. 354 w.e.f. 01.04.1997

Certified that the above entries are correct and entered from the members EPF/FPF records.

7.7 DISABLED MEMBER PENSION

CONTINGENCY FOR PAYMENT

7.7.1 If an employee retires from service on account of any bodily or mental infirmity, which pe. manently and totally incapacitated him for performing all work, which he was capable of performin just before his disablement, he is entitled for pension under paragraph 16 of the Employees' Pensio Scheme, 1995

7.7.2 Permanent and total disablement means such disablement of permanent nature whi incapacitates an employee for all work which he/she was capable of performing at the time of disable ment, regardless whether such disablement is sustained in the course of employment or otherwis

7.7.3 In the case of a member, who is permanently and totally disabled during the period of h. her employment, he/she should undergo a medical Examination before the Medical Board of th area constituted either by the Central or State Government or the Employees' State Insurance Co poration or any other local authority competent to constitute such a medical Board.

7.7.4 For this purpose, Regional Provident Fund Commissioner should request the compet authority of the hospital to constitute a Medical Board, to examine the employee and issue the Med cal Certificate in the prescribed form. The employee may be requested to appear before the Medi Board and obtain the Medical Certificate. He should be asked to pay the charges for the issue Medical Certificate to the hospital. When a member desires to draw pension outside the jurisdict of the RO/SRO, the Medical Certificate should be obtained and then the application should b forwarded to the transferee RO/SRO.

CONDITIONS

7.7.5 Before authorising the disabled pension, the following guidelines should be followed:-

(a) The disablement should have occurred on or after 1.4.1993.

(b) The disablement should have occurred while in service.

(c) The Form 10 / Form 5 (PS) should indicate the reason for leaving service as permane and total disablement and the consequent date of leaving service;

(d) The Regional Provident Fund Commissioner should refer the member to the Medic Board of a State/Central /Local body hospital located nearer to his residence or est lishment as may be convenient to the member;

(e) The disablement should be before attaining the age of 50 years;

(f) Where the disablement is after attaining the age of 50 years and having rendered minimum of 10 years eligible service, the Medical Certificate is not required (as Monthly Member Pension is allowed in such cases, at reduced rates).

ELIGIBILITY

7.7.6 The member should have contributed to the Fund at least for a month (i.e. - one mont contribution including part of a month). He should have been permanently and totally incapacitate while in service.

SCRUTINY FOR SANCTION

7.7.7 The Medical Certificate should be thoroughly scrutinised and ensured that the requirements are per para 15 of the Employees' Pension Scheme, 1995 is fulfilled. In case of any doubt, the matter should be referred to Regional Provident Fund Commissioner/Controller of Pension for a decision. The sanction of disabled pension should, however, be with prior approval of the Regional Provident Fund Commissioner of Sub-Regional Office/Controller of Pension of Regional Office.

7.7.8 **QUANTUM OF PENSION**

The quantum of disabled pension is to be determined with reference to the formula prescribed for Monthly Member's Pension.

The determination of pension payable shall be the same as applicable to a member who retires on the date of invalidation. This will be subject to a minimum of Rs. 250/- per month. The member who is entitled for disbaled pension is also eligible to avail the commutation of pension and the benefit of Return of Capital.

DISABLEMENT PENSION:

Wherever Disablement Pension is payable under Para 15 of the Employees' Pension Scheme, 1995, it should be ensured that the reason for leaving service was on account of total and permanent disablement. A medical Certificate to this effect obtained by the member, if any, and forwarded through the employer should be furnished alongwith the Form 10-D to the Pension Section. The Pension Section has to ensure that the case deserves consideration under Para 15 of the Employees' Pension Scheme, 1995 and issue authority letter to the Medical Board concerned and obtain the medical certificate, in the following format:

Employees' Provident Fund Organisation
(Ministry of Labour - Government of India)
R.O/S.R.O. ________________

No.

Date:

To

Sir,

Sub: Issue of Medical Certificate for claiming the disablement pension under Employees' Pension Scheme, 1995 on account of permanent ahd total disablement - Reg.

Shri/Smt. ____________________________ S/o / D/o / W/o ____________________
...ed ______ years who was employed in M/s. ____________ is to be medically examined for consid-...ing his application for payment of Disablement Pension under Employees' Pension Scheme, 1995 ... the ground that he/she is permanently and totally unfit for the employment which he/she was doing ... the time of such disablement.

2. It is requested that a Medical Board may be constituted to examine Shri/Smt. and issue a Medical Certificate in the enclosed format. The Certificate may please be forwarded directly to the undersigned. Cost of the Medical examination, if any, will be borne by the employee.

3. A slip containing photograph and identification marks of the employees is enclosed.

4. The date and time for medical examination may be intimated to the member at the following address so as to enable him/her to appear before the Medical Board.

Encl: As above

ASSTT. PROVIDENT FUND COMMISSIONER
(Pension)

Copy forwarded to:

Shri/Smt. ______________________________ (Full address)

On receipt of intimation from the Hospital authorities, he/she may appear before the Medical Board on the date and time indicated in their letter.

PROFORMA

MEDICAL CERTIFICATE ISSUED FOR CLAIMING THE MONTHLY DISABLEMENT PENSION UNDER THE EMPLOYEES' PENSION SCHEME, 1995 ON ACCOUNT OF PERMANENT AND TOTAL DISABLEMENT

Certified that Shri/Smt. ______________________ S/o / D/o / W/o __ ______________________ aged __________ years who was employed in M/s.______ _ ____ _ __ _ ___________(Name of the Estt. & address) till ____ (date)_____ appeared before us on (__ Date____).

We have carefully examined Shri/Smt. ______________________ and that he/she is suffering from ______________________ and that he/she is permanently and totally unfit for the employment which he/she was doing at the time of such disablement.

Nature of disablement:

Place

Signature (Chairman & Member of the Medical Board)

Date:

Seal

7.7.9 Wherever the member opts for Return of Capital, the actual pension payable shall be re-duced by 1% and the return of capital shall be further reduced by Rs. 1,000/- for every year by which the age at the commencement of pension falls short of 50 years. This reduction in the quantum of pension and Return of capital should be made applicable only in the cases where the member is disabled before attaining the age of 50 years, and is opted for return of capital. This 1% reduction in pension is in addition to reduction of pension @ 3% for every year the age fall short of 58 years till 50 years as per sub-para 7 of paragraph 12 of the Employees' Pension Scheme, 1995.

7.7.10 COMMENCEMENT

The disabled pension is payable from the day following the date of disablement and consequent exit from the employment. The pension is payable for life time of the member followed by family pension to widow and children.

7.7.11 Calculation of disabled pension:

Step 1. Arrive at monthly member pension (applying the regular reduction factor etc.) Ref. Para 7.5.21

Step 2. Provide minimum Rs. 250/- if the M.M.P.is below Rs. 250/-.

Step 3. If the member opted for return of capital, reduce the M.M.P. by 1% for every year to actual age falls as on exit short of 50 years.

Step 4. Work out return of capital on the M.M.P. as reduced by 1% - depending upon option.

Step 5. Reduce the return of capital by Rs. 1000/- for every year the age on the date of exit falls short of 50 years.

7.8 COMMUTATION OF PENSION

7.8.1 Every member pensioner is eligible to commute a portion of pension not exceeding one third of his original monthly pension for a lump sum one time payment, i.e. commuted value of pension. On commutation of pension, a member shall receive hundred times pension, so commuted as commuted value of pension. The balance of pension i.e. original pension less commuted pension shall be paid on monthly basis. In case pensioner opts for Return of Capital, the amount of pension shall be further reduced to the extent of the percentage as indicated against the alternative he has chosen for availing the benefit of return of capital.

7.8.2 The benefit of commutation will be available only after a period of 3 years from the commencement of the Employees' Pension Scheme, 1995. Accordingly, the pensioners are eligible to opt for commutation only from 16.11.1998 onwards. The pensioners who are alive as on 16.11.1998 and thereafter could alone opt for commutation.

7.8.3 The members who are eligible to draw pension on or after 16.11.1998 should indicate their option for commutation specifically in the application claiming pension in Form No. 10-D (Pension). itself. The option once exercised in the application is final. As the commutation of pension is admissible only from 16.11.1998, members eligible to draw pension from the date prior to 16.11.1998 may apply for commutation of pension on or after 16.11.1998. On receipt of the application from the pensioner, Pension Section should check up whether the pensioner has earlier opted for Return of Capital. Pension Section should prepare a Input Data Sheet and send it to E.D.P. to work out the commuted value of pension, and the revised pension due to commutation of pension, reduced amount of Return of Capital and further reduced pension due to Return of Capital. EDP should print out the "Corrigendum PPO" in triplicate indicating therein commuted value of pension, due date for its payment, reduced amount of pension due to commutation of pension and revised amount of return of Capital and further reduced pension on account of commutation of pension and return of Capital. EDP should also make necessary corrections in the Pensioner's Master file. The Asst. Accounts Officer/Asst. Provident Fund Commissioner (Pension) should verify the "Corrigendum PPO" and the Asst. PF Commissioner should sign the "Corrigendum PPO" and affix his embossing seal. Simultaneously, he should attach the corrigendum PPO with the original PPO with the Pension Section. Two copies of the "Corrigendum PPO" should be sent to Paying Branch through Link Branch with a request to attach one copy with the original disburser's portion of the PPO with the endorsement therein indicating the receipt of "Corrigendum PPO" and hand over one copy to the pensioner.

7.8.4 The benefit of commutation is however not available to beneficiaries other than the member.

7.8.5 **CALCULATION OF COMMUTED VALUE OF PENSION:**

The original (normal) pension	:	Rs. 600/-
Option for commutation	:	1/3 of monthly pension
Commuted value	:	1/3 x 600 x 100
	:	= Rs. 20,000/-
Balance of pension p.m.	:	Rs. 400/-*

* This will be subject to further reduction, where Return of Capital is opted.

The quantum of commutation shall be calculated through Computer and indicated in the Pension Payment Order.

7.9 **RETURN OF CAPITAL**

7.9.1 A member pensioner can forego a portion of his monthly pension and in lieu thereof he/his nominee is entitled to get 90/100 times or original monthly pension, after a specified period or on occurrence of specified contingencies;

7.9.2 The pensioner, who opts for Return of Capital, is required to indicate his choice out of the alternative given in Para 13 of the Scheme. This option should be exercised in the application seeking pension through Form-10D (Pension) itself. If no option is exercised in the application for Return capital, the member shall be deemed not to have exercised any option for Return of Capital.

7.9.3 The quantum of return of capital to be paid to the member or to the nominee as the case may be and the details of the nominee should be indicated in the P.P.O. itself.

7.9.4 The Return of Capital shall be paid to the member or nominee, as the case may be, through the disbursing agency by credit to his Saving Bank Account. Where a pensioner opts for Return of Capital and also for commutation, Return of Capital payable in his case will be calculated with reference to the pension payable after commutation. Similarly, the revised pension payable on account of Return of Capital to such pensioner will be on the percentage of pension payable after commutation.

7.9.5 Since the benefit of commutation will be effective only from 16.11.1998, the member pensioner drawing the pension on this date are eligible to opt for commutation from 16.11.1998 or thereafter. If such pensioners are already drawing revised pension by virtue of their option for Return of Capital, the quantum of revised pension and also the amount payable as Return of Capital will be modified with reference to the reduced pension payable after commutation. The modification should be incorporated in the Employees Pension Master file stored in the Computer and to ensure that the disbursing bank also make similar modification in their records and disburser's portion of the Pension Payment Order. The pensioner concerned should also be communicated about the change in the revised pension and also the quantum of Return of Capital.

NOMINEE FOR DRAWAL OF RETURN OF CAPITAL:

7.9.6 The Return of Capital is payable either to the member or to his nominee. The nominee shall mean a person nominated by the member only. The nominee should be the one falling under the definition of "family" as defined in Para 2(vii) of the Scheme i.e. spouse, sons & daughters only.

7.9.7 If the member has no family i.e. spouse, sons and daughters (irrespective of their age) he can nominate any other person of his choice. The member/pensioner can alter the nomination during his life time.

7.9.8 If there is no valid nomination on the day of death of the pensioner or spouse, as the case may be, the benefit shall be payable as per the Succession Certificate issued by the Court of Law.

7.9.9 EXPLANATION TO ALTERNATIVES IN PARA 13

ALTERNATIVE - 1

The pensioner himself will get 90% of the original monthly pension or commuted pension, whichever is less during his life time. On his death, the nominee will get the Return of Capital to the extent of 100 times of original monthly pension or commuted pension whichever is less.

A pensioner who opts for Alternative 1 of the Return of Capital and dies, his spouse and children are eligible for normal widow/children/orphan pension as admissible under Para 16 of the Employees' Pension Scheme, 1995. This is in addition to Return of Capital payable to nominee.

ALTERNATIVE - 2.

A pensioner who opts for Alternative - 2 will get 90% of original pension or commuted pension whichever is less, for his Life time. On his death, the spouse will get 80% of the original monthly pension or commuted pension whichever is less. In addition, the spouse and children are eligible f normal widow/widower/children/orphan pension as admissible under para 16 of the Employees' Pension Scheme, 1995. On death or remarriage of the spouse, the nominee will get 90 times of origina monthly pension or commuted pension whichever is less, as Return of Capital. If the spouse pred ceases the member pensioner, the Return of Capital shall be paid to the nominee, on death of th member. In addition, children are eligible for normal orphan pension, as admissible under Para 16 o the Employees' Pension Scheme, 1995.

ALTERNATIVE - 3 :

A pensioner who opts for Alternative 3 will get 87.5% of original or commuted monthly p sion, whichever is less. This is only for a fixed period of 20 years. The pension will cease thereafte Immediately after the fixed period of 20 years, Return of Capital to the extent of 100 times of original or commuted pension whichever is less, will be released. Where the pensioner dies before years, the nominee will get pension, as payable to the pensioner, from the day following the date death of the pensioner till the completion of 20 years from the date of commencement of pension member. Thereafter, the nominee will get 100 times of original or commuted member's pens whichever is less, as Return of Capital.

The benefit of Return of Capital or pension for a fixed period to a nominee will not affect entitlement of widow and children in drawing pension under Para 16 of the Scheme.

In case of death of pensioner either during or after the fixed period of 20 years, the spo and children are eligible for monthly widow pension and children pension as per Para 16 of the Sche

ENTITLEMENT OF DISABLED PERSONS IN CASE OF OPTION FOR RETURN OF CAPITA

7.9.10 Pension to disabled persons is payable even before attaining the age of 50 years. Where the disabled pension commences before attaining the age of 50 years, the payment of revised pe and Return of Capital under Para 13 of the Scheme will be further reduced as under:-

a) Determine the revised pension payable (i.e. original amount of pension detern under the provisions of Para 12 of the Employees' Pension Scheme, 1995 less muted amount of pension, if any, further reduced based on the alternative for Retu Capital 10% / 20% / 12.5%);

b) On the amount arrived at as above, calculate 1% for every year by which the age at commencement of pension falls short of 50 and deduct this amount from the amount of revised pension due as at (a) above to arrive at the actual pension payable to disabled pensioner.

c) Return of Capital payable shall be reduced @ Rs. 1,000/- for every year by which the age at commencement of pension falls short of 50 years.

NOTE :

As per Para 15, the Disabled Pensioner is entitled for pension for his life. However, Alternative 3 for return of capital prohibits life pension, as it restricts pension only for a fixed period of 20 years.

7.10.1 **WIDOW / WIDOWER PENSION:**

Benefits to the family on the death of a member:

7.10.1.1 On death of a member, the family (spouse and children below 25 years) is entitled to receive monthly family pension.

7.10.1.2 The pension is payable from the date following the date of death of the member to the date of death or remarriage of the widow / widower, whichever is earlier.

7.10.1.3 The occurance of death is divided into three categories and accordingly the quantum of pension payable to each category is specified.

7.10.1.4

OCCURANCE OF DEATH	CONDITION FOR PAYMENT
(a) Death while in service (before attaining the age of 58 years)	Having paid atleast 1 month or part of a months' contribution.
(b) Death after the date of exit. (During out of employment) (Before attaining 58 yrs.)	With 10 years eligible service or below 10 years eligible service
(c) Death after commencement of pension (as a pensioner)	--

NOTE: Commencement of pension should be reckoned from the date the pension is due and payable and not the actual drawal of pension.

7.10.1.5 **QUANTUM OF PENSION**

Death while in service

(a)	After attaining the age of 50 but not 58 years	With 10 years eligible service.	Notional MMP or Rs. 450/ or Amount in Table -C whichever is more
(b)	After attaining the age of 50 C but not 58 years	Without 10 years eligible service	Rs. 450 or amount in Table whichever is more.
(c)	Before attaining the age of 50	with or without 10 years eligible service	Rs. 450/- or amoun table -C whichever i more

Death after the date of exit:

Before attaining the age of 58	with 10 years eligible service	Notional MMP or Rs. 250/- or amoun Table -C whichever is more
- do -	Less than 10 years eligible service	Amount in Table -C
After commencement of pension	--	50% of MMP subje to minimum of Rs. 2

Note: The amount payable under Table-C will be restricted to Rs. 1750, even where the salary on which pension contribution paid exceeds Rs. 4200/-

7.10.1.6 Wherever the member, without having eligible members of family, draw MMP and o subsequently, his/her nominee is not entitled for pension. Thus, after commenceme MMP, the nominee is ineligible for pension.

The eligibility of pension to nominee would arise only when a member who does not h any living spouse and or eligible child dies while in service or after the date of exit (befc 58 years). Further in the case of death after leaving service, before 58 years of age, member should have rendered 10 years eligible service.

7.10.1.7 Where the deceased member had not rendered the requisite service for the eligibilit Monthly member's Pension as on the date of leaving service, the nominee shall be titled to return of Capital, only under para 13(1) of the Scheme.

10.1.8 <u>Member died without leaving a family:</u>

In the event of death of a member who is not married,

or

who does not have any living spouse and/or an eligible child, the nominee appointed by the member will be paid pension.

The quantum of nominee pension will be equivalent to the widow pension, as under:-

In case of death while in service	Notional MMP or Rs. 450/- or Amount in Table -C whichever is more.
Death after the date of exit with 10 years eligible service before 58 years of age.	Notional MMP or Rs. 250/- or in Table-C whichever is more.

7.10.1.9 Additional Pension to widow

Wherever a member opted for Return of Capital under alternative-2 under Para 13(1) of the scheme, and died as a pensioner, the widow is entitled for normal widow pension and also reduced pension to the extent of 80% of the original monthly member pension.

7.10.1.10 Pension to nominee

Wherever a member opted for return of capital under alternative 3 of Para 13(1) of the scheme, and died before drawal of pension for the fixed period of 20 years, the nominee is entitled for 87.5% of the original monthly member pension for the period after the death of the member, restricted to the fixed period stipulated.

PENSION TO MORE THAN 1 WIDOW

7.10.1.11 In cases, where there are 2 or more widows, Widow Pension shall be payable to the eldest surviving widow (i.e. seniority with reference to the date of marriage). On her death, it shall be payable to the next surviving widow. However in case of children, Pension shall be payable to first two eligible children in the order of their date of birth, irrespective of the fact whether they are children through the first or second wife or deceased wife followed by other children in the order of their date of birth.

10.1.12 If a female or male member dies leaving behind a judicially separated widow or widower, as the case may be, and no eligible child or children, widow/widower pension shall be paid to surviving judicially separated widow/widower as the case may be. However, if the judicial separation is granted on the ground of adultry and the death of the member takes place during the period of such judicial separation, widow/widower pension shall not be payable to surviving widow/widower as the case may be, if such person surviving was held guilty of committing adultry, and it shall be paid to the nominee of the deceased member.

7.10.1.13 Where a female or male member dies leaving behind a judicially separated widower or widow with a child or children, the widower/widow pension shall be payable to the widower or widow as the case may be. The children pension shall be payable to eligible children. However, if the judicial separation is granted on the ground of adultry and the death of the member takes place during the period of such judicial separation; widow/widower pension shall not be payable to the widow/widower as the case may be, if such person surviving was held guilty of committing adultry. However, the orphan pension shall be payable to the eligible children.

7.10.1.14 A widow gave birth to an illegitimate child. According to legal opinion, as there has been no remarriage, the pension should be allowed to continue

The term 'child' includes a posthumous child of the member.

7.10.1.15 **PENSION TO POST RETIRAL SPOUSE/CHILDREN**

The Post retiral spouse and the children are not eligible for widow/widower pension children pension, as the case may be. Similarly a child adopted after drawal of pension is not eligible.

7.10.1.16 **WHEN A MEMBER OF THE FAMILY FOREGOES HIS CLAIM**

Pension is payable only to eligible person and his/her dues cannot be passed on to the next eligible person under any circumstances.

SECOND WIFE NOT ENTITLED TO THE WIDOW'S PENSION AS A LEGALLY WEDDED WIFE UNDER HINDU MARRIAGE ACT

7.10.1.17 An extract of the relevant advice given by the Ministry of Law in the matter in the case of a Government employee is given below. Similar action may be taken in the case member of the Employees' Pension Scheme, 1995.

It is specifically a question arising under the Hindu Marriage Act, 1955. Section 11 of the Act provides that any marriage solemnized after the commencement of the Act shall be null and void and can be annulled against the other party by a degree of nullity, if the same contravenes any of the conditions specified in clauses (i), (iv) & (v) of section 5 of the Act. Section 5(i) stipulates that the marriage can not be legally solemnized wherein the party has a spouse living at the time of such marriage. Therefore any second marriage by

Hindu male after commencement of 1955 Act during the life time of his first wife will have a nullity and have no legal effect. Such marriage can not be valid on the ground of any custom. In fact, a custom opposed to the expressed provisions of law is of no legal effect. So under these circumstances, the second wife will not be entitled to the family pension as a legally wedded wife.

7.10.2 **CHILDREN PENSION**

CONTINGENCY FOR PAYMENT

7.10.2.1 The Children Pension is payable in addition to the widow/widower pension (as in the case of widow pension)

CONDITIONS FOR ELIGIBILITY

7.10.2.2 On the date of death of the member, the children should not have attained the age of 25 years. Legally adopted children shall also be eligible for pension. The entitlement of Children Pension, will depend with reference to the age in the order of date of birth irrespective of whether the eligible child is through first or second wife and so on.

7.10.2.3 QUANTUM OF PENSION

Monthly children pension, shall be equal to 25% of the Pension admissible to the Widow to each child subject to a minimum of Rs. 115/- per month for each child.

7.10.2.4 COMMENCEMENT OF PENSION:

The commencement of Pension shall be as in the manner explained in Para 7.10.1. Two eligible children would be entitled to receive Pension simultaneously. First two eligible children happens to be twins there is no difficulty in releasing the pension payable to both the children, as no other child would be eligible. Where the first child being alive and eligible for pension and second and third child happens to be twins, the first child will get the entitled pension and 2nd, 3rd child will share between them the pension admissible to the second child. The pension will pass on from oldest to the youngest.

7.10.2.5 CESSATION OF PENSION

The payment of Pension will be terminated, on attaining the age of 25 years or on death of the children whichever is earlier. On the death or remarriage of the widow/widower, the children pension will be converted as Orphan pension, the entitlement of which is explained in following Paragraphs.

7.10.2.6 Pension to minor children:

Pension to minor children is payable through the guardian.

7.10.3 Orphan Pension

7.10.3.1 'Orphan' is defined in the scheme as " none of whose parent is alive".

7.10.3.2 Orphan pension is payable in the following contingencies:

(a) Where none of the parent is alive;
(b) Member died without a spouse
(c) Widow/Widower died as a family pensioner.
(d) On remarriage of widow/widower being a family pensioner.

7.10.3.3 Quantum:

The quantum of orphan pension for each such child will be 75% of the pension admissib to widow/widower, subject to a minimum of Rs. 170/- per month.

7.10.3.4 The orphan pension may or may not follow children pension.

7.10.3.5 The Orphan pension will commence only after exhausting widows, where pension is lowed for more than one widow.

7.10.3.6 Similar to children pension, orphan pension is also restricted to two orphans.

7.10.3.7 The orphan pension will commence from the date following the date of death of the mei ber (without leaving a spouse) or widow/widower, or remarriage of widow/widower.

7.10.3.8 The orphan pension will cease on attaining the age of 25 years or death whichever earlier.

COMPUTATION OF WIDOW/WIDOWER PENSION
PART - C

In the case of Death of the Member after commencement of payment of monthly pension

(i)	50% of the amount of monthly member pension as per Part -B	: Rs. 177
(ii)	An amount of Rs. 250	: Rs. 250
	Whichever is higher of i,ii	: Rs. 250
	Plus the amount of widow pension at the rate of 80% of member pension in case opted for reduced pension option 2	: Rs. 0
	Total	: Rs. 250

CHILDREN PENSION

Amount of Children Pension 25% of widow/widower pension subject to Min. of Rs. 115/- per child Max. to two children at a time : Rs 115

ORPHAN PENSION

Amount of Orphan Pension 75% of widow/Widower pension subject to Min. of Rs. 170/- per child Max. to two children at a time : Rs 118

NOMINEE PENSION

In the case of Death of the Member while in service/ after date of exit but before attaining the age of 58 years and holding Scheme Certificate

DISABLEMENT PENSION

Disablement pension determined as per part - B or Rs. 250/- whichever is more : Rs.

APPROVED

D.A. H.C. A.A.O. APFC

PENSION TO DISABLED CHILDREN

7.10.4 If the deceased member is survived by disabled children within the definition of family and the disablement is such that it incapacitates the child with earning capacity for his life time then on certification by competent medical authority, such children shall be entitled to a monthly children pension subject to following conditions that -

a) such pension to disabled children shall be payable irrespective of their age for their life time ; and

b) the pension shall be admissible to all such children irrespective of their number and restriction of pension to two children at a time.

The medical certificate as prescribed in para 7.6 is required to be obtained before sanction.

NOTE: The above provision will be given effect after the amendment to the scheme providing pension to disabled children.

7.10.5 **NOMINATION AND NOMINEE PENSION**

7.10.5.1 The family of a member includes spouse, sons and daughters (including legally adopted children). The children whose age is beyond 25 years also falls under the definition of family. A member is required to execute nomination in Form 2 (Revised) in favour of a person to receive pension/return of capital under certain contingencies. A member who is not married or who does not have a living spouse and children below the age of 25 years shall nominate a person of his choice. The nomination should be in favour of one person only. The person nominated should fall within the scope of definition of family. In the event of member acquiring a family subsequently, the nomination made in favour of a person not falling within the family shall become void. Nomination in favour of spouse has no relevance as he/she is an automatic beneficiary for family pension.

7.10.5.2 Normally, children who attained the age of 25 years are not eligible for children pension.

7.10.5.3 However, if the member has no living spouse and all children attained the age of 25 years, he should nominate any one of his children, irrespective of their age and marital status to receive the monthly pension.

7.10.5.4 The particulars of member along with his family member and nominee details should be maintained in the Employees' Master file and stored in the Computer.

7.10.5.5 **Pension to Nominee**

Eligibility for Entitlement	Quantum of Pension	
1. Death while in service having contributed for 1 month under EPS		
a) married member not survived by spouse & children below 25 years. b) On death of unmarried member	Notional MMP - Rs. 450/- or as per table-C	Whichever is more
2. Death after date of exit but before attaining 58 years of age		
a) Member should have rendered 10 years eligible service entitled to MMP b) Should not have availed reduced MMP	Notional MMP- Rs.250/- or as per Table -C	Whichever is more

Where the deceased member had not rendered the requisite service for eligibility of Monthly Member Pension on the date of his leaving service, his Nominee is not entitled to Nominee pension. However, he is entitled to Return of Capital only under para 13 (1) of the Scheme.

3. Where a member opted for the 3rd alternative of Return of capital and dies before the fixed pension payment period of 20 years.	MMP as drawn by member for the specified period

7.10.6 PAYMENT OF PENSION TO THE GUARDIAN (ON BEHALF OF MINOR OR LUNATIC PERSON, FOR PENSION UNDER EMPLOYEES' PENSION SCHEME, 1995)

7.10.6.1 If the person to whom the pension is to be paid is a minor, the payment shall be made to the guardian of the minor, if any, appointed by the member during his life time as indicated in the Form 2 (Revised) or Form 10-D (P.S). Where no such guardian has been appointed, it shall be paid to the natural guardian of the minor. The term ' natural guardian' has been explained in Part II of the Manual of the Accounting Procedure. In the absence of natural guardian, it shall be paid to the guardian appointed under the Guardian & Wards Act, 1890.

PAYMENT OF PENSION TO THE GUARDIAN ON BEHALF OF LUNATIC PERSON

7.10.6.2 If the person to whom the pension is to be paid is a lunatic, the payment shall be made to the guardian of lunatic person, appointed by the member during his life time as indicated in Form 2 (Revised) / Form 10-D (P.S). Where no such guardian has been appointed, it shall be paid to the natural guardian/managers appointed under Indian Lunacy Act, 1912.

PAYMENT OF PENSION IN THE CASE OF THE MEMBER'S WHERE ABOUT AR NOT KNOWN

7.10.7.1 In the normal course, unless a period of 7 years has elapsed since the date of disappearance of the employee, he can not be deemed to be dead and the pensionary benefits cannot be paid to the family. The matter has been under consideration of the Government for some time, as withholding of the benefits under CCS Pension Rules due to the family has been causing a great deal of hardship. It has been decided by the Government that when an employee disappear leaving his family, family pension may be granted to the family after a lapse of one year, subject to the fulfillment of the following conditions:-

(i) The family must lodge a report with the concerned Police station and obtain a report that the employee has not been traced after all efforts has been made by the Police

(ii) An indemnity bond should be taken from the family members/nominee of the employee that all payments will be adjusted against the payment due to the employee in case he appears on the scene and makes any claim.

(iii) The family can apply to the concerned authority for grant of family pension after one year from the date of lodging the FIR with the Police;

(iv) The date of disappearance of the employee/ pensioner shall be reckoned from the date of FIR is lodged with the police and the period of one year after which the benefits of family pension is to be sanctioned will also be reckoned from that date However, the benefits of family pension will accrue from the date of lodging the FIR or on expiry of the leave granted to employee, if any, whichever is later. While sanctioning the payment of pension to family it will be ensured by the concerned authorities that family pension is not authorised for any period for which payment of pay and allowance in respect of disappeared employee has been made.

(v) The benefits to be sanctioned to the family of the missing employee shall be based on and regulated by the emoluments drawn by him and the rules/orders applicable to him as on the last date he/she was on duty including authorised period of leave.

In the case of missing persons, the family pension at the rates indicated in the PPO shall be payable.

7.10.7.2 The payment of pension to widow/widower, children (including disabled), orphan, nominee, as the case may be under the Employees' Pension Scheme, 1995 may be regulated on the above lines. If the member/pensioner is missing and the spouse is not alive remarried, orphan pension may be paid to eligible children. The indemnity bond to be obtained for this purpose from the family members.

7.10.8 DEBARRING A PENSIONER FROM RECEIVING BENEFITS:

7.10.8.1 If a person , who will be the beneficiary under Employees' Pension Scheme, 1995, in the event of the death of the member/pensioner, is charged with the offence of murdering the member/pensioner or for abetting in the commission of such an offence, his claim for pensionary and other benefits shall remain suspended till the conclusion of the Criminal proceeding but the benefits to other eligible persons shall not be suspended and they shall be paid to them. If on the conclusion of criminal proceedings, the person is convicted for the offences charged above, the benefits otherwise normally payable to him under the Employees' Pension Scheme, 1995 shall not be paid to him, but the benefits should be equally divided among other persons eligible to receive the benefits for the relevant period and paid to them. If the person is acquitted of the above offence, the benefits under Employees' Pension Scheme, 1995 should be paid to him.

7.10.8.2 If a husband is charged with the offence of murdering his wife, who was a member of Employees' Pension Scheme, 1995 or for abetting in the commission of such offence, his claim for pensionary benefit under Employees' Pension Scheme, 1995 shall remain suspended till the conclusion of the proceeding initiated against him but children pension payable to eligible children shall not be suspended and they shall be paid to them. In the conclusion of the criminal proceedings, if he is convicted, his share of pension will not be paid to him but will be paid equally to the children eligible to receive the pension for the relevant period along with the pension they are normally eligible.

7.10.8.3 If a son is charged with the offence of murdering his father, who was member of Employees' Pension Scheme, 1995, or person drawing pension under Employees' pension Scheme, 1995, on the date of his death or for abetting in the commission of such offence, his share of children pension for the period for which he is eligible shall remain suspended till conclusion of the criminal proceedings. Other eligible children will draw their share of pension. In the conclusion of criminal proceedings, if he is acquitted, his share of children pension for the period for which he is eligible including the arrears will be paid to him. If he is convicted, children pension will be paid to the other eligible child, if any for the period for which the convicted person would have been eligible to draw the children pension, till the eligibility of the other child ceases i.e. the other child attains the age of 25 years and thereafter it will pass on to the other eligible child, if any.

The effect of transfer should be conveyed to the pensioner both by the transferor Regional Office/Sub-Regional Office and transferee Regional Office/Sub-Regional Office.

8.8 In cases where a member takes up employment in an uncovered establishment or Government service or leaving for abroad before attaining 50 years with 10 years eligible service such member is entitled to Scheme certificate only, which they can surrender and avail pension on attaining 50 years of age or more.

transferor Re-
office.

nment or Gov-
igible service,
l avail pension

ANNEXURE

OFFICE OF THE REGIONAL PROVIDENT FUND COMMISSIONER, ____________

No.

Dated, the

To

The Assistant Provident Fund Commissioner (Pension)
(By name to)

Subject Employees' Pension Scheme' 95 - Transfer of application in F/10D in respect of Shri/Smt. ____________________ A/c No. ____________ Regarding.

The application in Form 10-D received from the eligible claimant as per the details given below, is forwarded herewith along with the input data sheet duly approved by Assistant PF Commissioner (Accounts) and verified by Assistant P.F. Commissioner(Pension).

2. The claimant has sought for the drawal of pension from the Bank falling in your jurisdiction.

3. You are therefore requested to issue PPO from your end to the link branch of the designated bank in your RO/SRO, under intimation to this office and to the claimant.

4. The claimant has been advised to open a S.B. A/c in the designated bank of your region and to convey the same to you.

DETAILS OF PENSIONER:

Name of the Member	:
Code No. & A/c No.	:
Name of the Claimant	:
Station at which pension to be paid	:
Name of the Bank	:
S.B. A/c No./s	:
Date upto which pension already paid	:
Date from which pension due and payable by the transferee Regional/Sub-Regional Office	:

LIST OF ENCLOSURES:

a) Claim in Form 10-D (EPS)

b) Approved input data sheet.

c) Specimen Signature/ Identification marks card (in duplicate).

d) Photographs, duly attested (in duplicate).

The receipts of this communication may please be acknowledged.

Yours faithful

(

ASSISTANT PF COMMISSIONER (PENSIO

Encls: (As above)

Copy to: -

1) Shri / Smt.

He/She is advised to await further communication from the Regional Commissione Assistant Commissioner, EPFO; Sub-Regional Office, regarding the issue of pension payme order.

2)

CHAPTER 9

CLAIM FORMS

9.1.1 The benefits under the Employees' Pension Scheme, 1995 shall be authorised through the forms prescribed below for the purpose indicated against each:-

By Member/ Beneficiary	Form 10-C	1. Withdrawal benefit or 2. Scheme Certificate	
By a Member	Form 10-D	1. Monthly Member Pension 2. Monthly Disabled Member Pension	with or without the option for commuted value of pension and /or Return of Capital
By eligible family member	- do -	3. Widow/Widower Pension 4. Children including Disabled /Orphan Pension 5. Nominee Pension	

9.1.2 It is sufficient to obtain a single application in the prescribed form, irrespective of the number of beneficiaries. If the place of payment falls outside the jurisdiction of Regional Office/Sub-Regional Office, the application in Form 10-D should be obtained, in duplicate.

9.1.3 The format of the claims are as under:-

P.F. A/c. No.

POST CARD

ACKNOWLEDGEMENT

Received Form 10 - C (EPS) / 10 -D (EPS)

Regn. No.
&
Dated
Office Seal :

Postage Prepaid

From:

Employees' P.F. Organisation

____

Regional Office / Sub Accounts Office :

____

____

Pin:

To

____

____

____

____

PIN CODE :

Back Side of Acknowledgement

Instructions to Members / Claimants

1. In case of delay, substandard service or harassment, the members / claimants may write/meet the Regional Provident Fund Commissioner / Officer-in-charge of the P.F. Office.
2. In case, no intimation is received within a month, the member /claimant may make a complaint to the aforesaid officer.
3. At the time of making a complaint, the member should write / quote their Registration Number, date of submission of claim form and the Provident Fund Account Number.
4. In the case of delay in the settlement of EPF claim, the members are entitled to amount of interest on their deposits upto the date of settlement.
5. In case the matter still remains unsettled or in the event of harassment, the member / claimant may approach the Central Provident Fund Commissioner;
   Bhavishya Nidhi Bhawan, 14- Bhikaiji Cama Place, New Delhi - 110 066
   Telephone No. : 6172671, 6172673
   Telefax No. : 6172666.

****

Note: Please complete the address portion of his form. This will be returned at the Cost of Regional Provident Fund Commissioner. Do not affix Postal Stamp.

FORM: 10 - C (EPS)

(Supplied free of cost)

THE EMPLOYEES' PENSION SCHEME, 1995

Form for claiming WITHDRAWAL BENEFIT / SCHEME CERTIFICATE

INSTRUCTIONS

Who can apply ?

1. A member of the Employees' Family Pension Scheme, 1971 / Employees' Pension Scheme, 1995

   - (a) who has left the employment before completion of 10 years service;
   - (b) who has attained the age of 58 years before completion of 10 years service - whether in service or left the service.

2. A member, who has completed 10 years, service on the date of leaving the service and has not attained the age of 50 years on the date of filing this application or has attained the age of 50 years or more, but less than 58 years and not willing for reduced pension.

NOTE: 1. To determine the period of 10 years, service rendered from 1.3.1971 to 15.11.1995 (if any), shall also be taken;

NOTE: 2. (i) A member who has completed 10 years service and attained the age of 58 years, whether in service or not, is eligible for Monthly Member's Pension.

(ii) A member, who has completed 10 years service and also attained the age of 50 years is eligible to draw Pension at reduced rate, after leaving the employment;

(iii) A member, who has left the service on account of total and permanent disablement, irrespective of his age and period of service, is eligible for monthly disablement pension.

(iv) To claim the monthly pension, application in Form 10-D (EPS) should be submitted.

3. **Type of benefit eligible**

A member falling under Item 1 above is eligible to get the amount towards withdrawal benefit.

A member falling under item 2 is eligible to get Scheme Certificate only.

However, a member falling under Item - 1(a) above is advised to opt for the Scheme Certificate on account of following advantages:

(i) On taking up employment in another establishment, his earlier service period will be carried forward and clubbing both the spells together pension entitlement shall be regulated.

(ii) If the member does not take up employment and dies before attaining the age of 58 years, his family will get family pension. On his survival, he will get withdrawal benefit with weightage as may be prescribed.

(iii) While availing a Scheme Certificate, there is no bar to withdraw the P.F. accumulations by the member.

4. **<u>Guidance for filling the application</u>:**

(Sl. No. given below refers to the one given in the application)

Sl. No. 1 (a) Write your name in Capital letters as given in the service records of your establishme

1 (b) To be furnished only when the application is preferred by a person other than th member himself (i.e. Nominee / family member).

2. The exact date of birth of the member should be given.

3 to 7 Particulars should be written clearly without any overwriting or cutting. Correct if any, be attested.

8. The option is to be given by the member only if he has not rendered 10 years serv and eligible for withdrawal benefit.

9. Complete particulars of nominee and family (spouse and all children) should be g without fail.

10. To be furnished when the claim is preferred by the nominee or the family member

11. To be completed only when a member is eligible for withdrawal benefit and opted fo in lieu of Scheme Certificate (not applicable to those who are entitled for Sche Certificate or opted for Scheme Certificate in lieu of withdrawal benefit).

12. In case, the member is drawing Family Pension/Pension under the Employees' Per. Scheme, 1995, the details should be furnished.

13. <u>Advance Stamped Receipt</u>: To be given where the withdrawal benefit is admis and opted for payment by cheque (The Advance Stamped Receipt need not be sig by member, if the payment is opted through Money order).

4. <u>Attestation of claim form</u>: The claim should preferably be attested by the employer under whom the member was last employed.

If for any reason, the claimant is unable to get the application attested by his ex-employer, he may forward the claim to the Provident Fund Office duly clarifying the position, after getting it attested by any one of the following authorised officials:-

(i) Manager of the Bank wherein the member is holding an account;

(ii) Head of Educational institution;

(iii) A Gazetted Officer;

(iv) Sub-Post Master

(v) The Magistrate

(vi) Member of Central Board of Trustees, Employees' Provident Fund or Regional Committee.

(vii) Chairman/Secretary/Member of the Municipal/ District/Local Board;

(viii) President of the Village Union/Panchayat/Member of Parliament/Member of Legislative Assembly.

(ix) Any other officer approved by the Regional P.F. Commissioner.

5. For Further guidlines/ clarifications required, if any the Public Relations Officer in the nearest Provident Fund Office (including Provident Fund Inspectorates) may be contacted.

****

Serial No.:

FORM 10-C (EPS)

(Supplied free of cost)

For Office use only: Inward No. and date

EMPLOYEES' PENSION SCHEME, 1995
FORM TO BE USED BY A MEMBER OF THE
EMPLOYEES' PENSION SCHEME, 1995 FOR CLAIMING
WITHDRAWAL BENEFIT/SCHEME CERTIFICATE

(Read the instructions before filling up this form)

1.	a)	Name of the member (in block letters)	:
	b)	Name of the claimant(s)	:
2.		Date of birth	: D D / M M / Y Y Y Y
3.	a)	Father's Name	:
	b)	Husband's Name (if applicable)	:
4.		Name & Address of the Establishment in which, the member was last employed	:
5.		Code No. & Account No.	Region/SRO Code Estt. Code A/c No.
6.		Reason for leaving service & Date of leaving	:
7.		Full Postal Address (in Block letters)	: Pin:
8.		Are you willing to accept Scheme Certificate in lieu of withdrawal benefits	(a) Yes (b) No

9. Particulars of Family (Spouse & Children & Nominee)

Name	Date of birth	Relationship with member	Name of the Guardian for minor
a) Family members			
b) Nominee			

10. In case of death of member after attaining the age of 58 years without filing the claim :

a) Date of death of the member :

b) Name of claimant(s)/ and relationship with the member :

11. MODE OF REMITTANCE [PUT A TICK IN THE BOX AGAINST THE ONE OPTED]

a) By postal money order at my cost to the address given against item No. 7 ☐

b) Account payee cheque sent direct for credit to my SB A/c (Scheduled Bank) under intimation to me) ☐

S.B. Account No.: ____________________

Name of the Bank
(In Capital letters): ____________________

Branch
(In Block letters): ____________________

Full address of the Branch
(in capital letters) ____________________

____

____

12 Are you availing Pension under EPS, 1995 ? if so,
Indicate PPO No. ____________ By whom issued ? ____________

CERTIFIED THAT THE PARTICULARS ARE TRUE TO THE BEST OF MY KNOWLEDGE

Date:

Signature or left Hand
Thumb impression of the
member/Claimant(s)

13. ADVANCE STAMPED RECEIPT

(To be furnished only in case of 11(b) above)

Received a sum of Rs.* ____________________ (Rupees ______________________________
__________________ only) from Regional Provident Fund Commissioner/Officer-in-charge of Sub-Regional Office, ________________________ by deposit in my Savings Bank A/c towards the settlement of my Pension Fund Account.

*(The space should be left blank which shall be filled by Regional Provident Fund Commissioner / Officer-in-charge)

Signature or left hand thumb impression of the member on the stamp

Re. 1 Revenue stamp

14. ATTESTATION OF EMPLOYER

Certified that the particulars of the member Shri/Smt./Kum. ______________________
A/c No. ________________________ are correct and the member has signed/thumb impressed before me

The details of wages and period of non-contributory service of the member are as under:-
(Form 3-A/7 (EPS) enclosed for the period for which it was not sent to Employees' Provident Fund Office.)

Wages (Basic + D.A.) as on 15.11.95 (if applicable) :

Wages as on the date of exit :

Period of non contributory service

Year/Month No. of days

Signature of Employer/
Authorised Official
with seal

Date:

(FOR THE USE OF COMMISSIONER'S OFFICE)

(Under Rs. ______________________________

P.I. No. ______________________________ M.O. / Cheque

Passed for payment for Rs. ______________________________

M.O. Commission (if any) ____________________ net amount to be paid by M.O. ______

____________________ towards withdrawal benefit.

D.H. S.S. A.A.O

(FOR USE IN CASH SECTION)

Paid by inclusion in cheque No. ____________________ Date ______________ vide cash Book (Bank) Account No. 10 Debit item No. ____________________

S.S. AC(CASH)

For issue of S.C.; IDS is enclosed with Form 2 (Revised).

D.H. S.S. A.A.O. APFC(A/cs)

(FOR USE IN PENSION SECTION)

Scheme Certificate bearing the Control No. ____________________ issued on ______ ____________________ and entered in the Scheme Certificate Control Register:

D.A. S.S. A.A.O. APFC(PENSION)

P.F. A/c. No.

POST CARD

ACKNOWLEDGEMENT

Received Form 10 - C (EPS) / 10 -D (EPS)

Regn. No.
&
Dated
Office Seal :

Postage
Prepaid

From:
Employees' P.F. Organisation
____

Regional Office / Sub Accounts Office :
____
____

Pin:

To
____
____
____
____

PIN CODE :

Back Side of Acknowledgement

Instructions to Members / Claimants

1. In case of delay, substandard service or harassment, the members / claimants may write/meet the Regional Provident Fund Commissioner / Officer-in-charge of the P.F. Office.

2. In case, no intimation is received within a month, the member /claimant may make a complaint to the aforesaid officer.

3. At the time of making a complaint, the member should write / quote their Registration Number, date of submission of claim form and the Provident Fund Account Number.

4. In the case of delay in the settlement of EPF claim, the members are entitled to amount of interest on their deposits upto the date of settlement.

5. In case the matter still remains unsettled or in the event of harassment, the member / claimant may approach the Central Provident Fund Commissioner;
Bhavishya Nidhi Bhawan, 14- Bhikaiji Cama Place, New Delhi - 110 066
Telephone No. : 6172671, 6172673
Telefax No. : 6172666.

****

Note: Please complete the address portion of his form. This will be returned at the Cost of Regional Provident Fund Commissioner. Do not affix Postal Stamp.

FORM 10-D (EPS)
(Supplied free of cost)

THE EMPLOYEES' PENSION SCHEME, 1995
APPLICATION FOR MONTHLY PENSION

INSTRUCTIONS

TE: To be submitted in two copies in case pension is to be drawn in other Region/SRO

LANATORY NOTE FOR THE APPLICATION:

al No. given below relates to the corresponding No. given in the application.

By whom the pension is claimed ?
Indicate any one of the following under Sl. No. 1.

MEMBER	WIDOW	WIDOWER	MAJOR/ORPHAN	GUARDIAN	NOMINEE

Type of Pension claimed - Indicate any one of the following.

a) On attaining 58 years whether in service or not	SUPERANNUATION PENSION
b) Attained the age of 50 years but below 58 years and left service	REDUCED PENSION
c) Left Service on account of total and permanent disablement	DISABLEMENT PENSION
d) On death of the Member	WIDOW & CHILDREN PENSION
e) On death of parents or on remarriage of the spouse, after the death of the member	ORPHAN PENSION
f) On death of the member and in the absence of spouse and eligible children below 25 years on the date of death of the Member	NOMINEE PENSION

to (e). 4 & 5

Please furnish the particulars relating to the member correctly.

Indicate the actual date of leaving service. This need not be filled by a member who has attained 58 years and continued to be in service. Indicate, " still in service".

If the reason for leaving service was on account of total and permanent disablement, as indicated by the establishment to the P.F. Office through Form 10/ Form 5 (PS) then only the member is entitled for Disablement Pension. In all other cases the actual reason for leaving service may be given. However, a member who continues in service beyond the age of 5 years may indicate "still in service".

8. If the present address is temporary one, also indicate permanent address.

9. Sl. No. 9 is applicable only to a member of the Pension Scheme and not for his family. The applicant is eligible to commute upto a maximum of 1/3 of his pension so as to receive 100 times of the pension commuted. If a pensioner who is getting an original pension of Rs. 600 - commutes 1/3 of it, he will get Rs. 20,000/- as commuted value. The commutation will b effective only from 16.11.1998. The applicant may give his option for commutation in the application and this will be effective and paid only if the member-pensioner continues to draw his pension as on 16.11.1998. On opting for commuted value of pension, the origin pension mentioned for Return of Capital will be the balance of pension after commutation

10. The member can give his option for return of Capital. Option once exercised is final. He may choose any one of the following and indicate the No. shown under alternative against Sl. No. 10 of the application.

Alternative	Quantum of Pension	Return of Capital
1.	90% of original pension	On member's death 100 times the original monthly pension to nominee
2.	90% of original pension to member. On his death 80% of pension to widow/ widower.	On death or remarriage of widow/ widower whichever is earlier. 90 times of original pension to nominee.
3.	87.5% of original pension for a fixed period of 20 years to member. On his death before 20 years, nominee will get pension for balance period.	At the end of 20 years, 100 times of origina pension to member, if he is alive, otherwise to nominee.

11. The member is required to furnish the details of his/her nominee for receiving the Return of Capital. A member can nominate his/her spouse or sons or daughters. A married member who is not survived by any member of his family (spouse/sons/daughters) and a bachelo spinster may nominate a person of his/her choice to receive the return of Capital/Pension due if any, under Alternative 3 as per Sl. No. 10 above.

12. This should be completed by the member. In his absence, by the spouse/children. The li of surviving family members of the Member, covering his spouse, all children should be furnished. The particulars of Guardian should be given in respect of each minor child, as o

the date of application. In support of the age of children, age proof certificate obtained from the school or Registrar of Birth-death or E.S.I. Record, or Municipal authorities should be enclosed. In the case of Guardian other than natural guardian, a Guardianship Certificate should be enclosed.

13. Applicable only in case the member is not alive. In support of the date of death, death Certificate should be enclosed.

14. The details of Bank S.B. A/c No. should be given.

In case the claim is preferred by spouse, he/she should give his/her S.B. A/c No. and also separate S.B. A/c No.s in respect of each child. S.B. A/c No.s of children who are below the age of 25 years (as on date of death of the member) should be given. On behalf of minor child, S.B. A/c opened in the name of minor and operated by the guardian of the minor and A/c No. should be given.

Pension is payable through any branch of the (Name of the Banks ______________) on the specified day of each month by credit to the S.B. A/c. of eligible pensioners. Hence, S.B. A/c should be opened only in the said Bank(s). Necessary guidelines have been given to all the branches of the said Banks to open a S.B. A/c for the pensioners. The applicant may approach any branch of the said Bank(s) to open the account.

The member, the spouse and children (minor or major) should necessarily open S.B. A/cs in the same branch of the Bank.

Whenever pension is opted from a place beyond the jurisdiction of the region in which the member was last employed, he should ascertain the name of the designated bank applicable in that Region and open a S.B. Account therein.

On sanction of Pension, intimation will be sent to the pensioner to contact the bank.

14. A In case of death of the member before attaining 58 years without leaving any eligible family members to receive the pension, the nominee as appointed by the member through the Form 2 (Revised) already sent to the P.F. Office may apply, giving his particulars against this column.

In case the member was working in different establishments and obtained Scheme Certificate, the details should be furnished against this column. In case, no Scheme certificate was received or not applied for the same, the details of past employment may be indicated in this column.

16. If the applicant is already receiving pension under Employees' Pension Scheme, 199! claim pension, the details should be furnished against this column.

17. <u>List of documents to be enclosed and specified under Column No. 17:</u>

a) Descriptive role of pensioner and his/her specimen signature/Thumb impressi duplicate; (Form enclosed)

b) 3 pass-port size photographs (if claimed by the member Joint photo with spous the pension is claimed by member, there is no need to send photograph of the dren. If claimed by widow/widower the photograph should be sent for widow/widc and his/her two children (below 25 years) separately. The photographs are attested by the employer or his authorised official, indicating the person to whor photograph relates and also the P.F. Account No. of the member, written on the verse and placed in a separate envelope.

c) In the case of a member, who is permanently and totally disabled during the emp ment, he/she should undergo a Medical Examination before the Medical Boar advised by the E.P.F. Office. However, the disablement should occur while in er ment.

d) The application should be forwarded through the establishment in which the me last served/died. The establishment should furnish the certificate and wage par lars duly attested by the authorised officer.

e) Only if the establishment is closed, the application should be forwarded throu Magistrate/Gazetted Officer/Bank Manager/ any other authorised officer as ma approved by the Commissioner.

18. Please complete the address portion in the enclosed acknowledgement card.

-nsion Scheme, 1995

17:

re/Thumb impression

it photo with spouse)
l photograph of the c
sent for widow/widow
photographs are to
the person to whom
nber, written on the

bled during the empl
the Medical Board
occur while in empl

in which the mem
cate and wage parti

forwarded through t
ised officer as may

ent card.

Serial No.:

FORM: 10-D (E

(Supplied free

For Office use only
EDP Inward No. & date

FORM 10-D (EPS) (PENSION)

EMPLOYEES' PENSION SCHEME, 1995
APPLICATION FOR MONTHLY PENSION.

(Read **INSTRUCTIONS** before filling in this Form)

1. By whom the Pension is claimed?

2. Type of Pension claimed.

3. a) Member's name (In BLOCK LETTERS) :

   b) Sex :

   c) Marital status :

   d) Date of Birth/Age : D D / M M / Y Y Y Y

   e) Father's/Husband's Name :

4. EPF Account No. :

R O	SRO	Establishment Code No.	Member's A/c. No.

5. Name & address of the Establishment in which the Member was last employed. :

6. Date of leaving service :

7. Reason for leaving service :

8. Address for communication :

PIN

9. Option for commutation of 1/3 of pension (If Option is for lesser commutation indicate the quantum) : YES [ ] NO [ ] If yes, QUANTUM [ ]

10. Option for Return of Capital (Please refer Sl. No. 10 of INSTRUCTIONS) YES [ ] NO [ ] 1 [ ] 2 [ ] 3 [ ]
Put a tick (✓) If yes, indicate your choice of alternative

11. Mention your Nominee for Return of Capital :

Name :
Relationship :
Date of Birth :
Address :

12. Particulars of family:

Sl. No. (1)	Name (2)	Date of birth/age (3)	Relationship with Member (4)	Indicate against Minor Guardian name (5)	Relationship with member (6)

Note: If any child is physically handicapped, please indicate "DISABLED" below the name.

13. Date of death of Member(if applicable) : D D | M M | Y Y Y Y

14. Details of Savings Bank Account opened :

Name of the Bank :

Name of the Branch :
Full Postal address :

PIN CODE :

Sl. No.	Name of the Claimant/s	S.B. A/c No.
1.		
2.		
3.		
4.		
5.		

14.A If the Claim is preferred by Nominee, indicate his/her

NAME

Relationship with the deceased member

15. Details of Scheme Certificate already in possession of the member, if any Put a tick (✓)

Scheme Certificate received & enclosed ☐

Not received ☐

Not applicable ☐

If received, indicate:-

Sl No.	Scheme Certificate Control No.	Authority who issued the Scheme Certificate

16. If Pension is being drawn under E.P.S,1995

PPO No.	Issued by RO / SRO

17. Documents enclosed (indicate as per the Instructions)

1.
2.
3.
4.
5.
6.

Certified that i) I am not drawing Pension under EPS, 1995.

ii) the particulars given in this application are true and correct.

Place:
Date:

Signature / Left Hand Thumb
Impression of applicant

(TO BE FILLED IN BY THE EMPLOYER/AUTHORISED OFFICER OF THE ESTABLISHMENT)

Certified that

i) the particulars of the member are correct;
ii) the particulars of Wages and Pension Contribution for the period of 12 months preceding the date of leaving service are as under:-

(In case, the wage is not earned for all 12 months, the block of 12 months will commence backwards from the last pay drawn)

year	Month	Wages		Pension contribution due	Details of period of Non-contributory service. If there is no such period, indicate "NIL"	
		No. of days	Amount		Year	No. of days of which no wages were earned.
(1)	(2)	(3)	(4)	(5)	(6)	(7)

Encl: 1. Documents as given in the Instructions.
2. Form of descriptive role and specimen signature.

Signature of Employer/
Authorised Official of the
Establishment with seal & Date

(TO BE SUBMITTED IN DUPLICATE IN RESPECT OF EACH PERSON ELIGIBLE FOR PENSION)

Descriptive roll of Pensioner and his/her Specimen signature/Thumb impression.

Name of the member :

E.P.F. Account No. :

Details of Pensioner

1. Name of the Pensioner :
2. Father/Husband Name :
3. Sex :
4. Nationality :
5. Religion :
6. Height :
7. personal marks of identification : 1. ____________ 2. ____________
8. Specimen signature of pensioner : 1. ____________ 2. ____________ 3. ____________

11. (Only in the case of illiterate Claimant (Pensioner) Left hand finger impression:

THUMB	INDEX	MIDDLE	RING	SMALL

lace:

ate:

Signature :
Name of the
Attesting
Authority

FOR OFFICE USE ONLY
(PENSION SECTION/ACCOUNTS SECTION)

Certified that the particulars in the application have been verified with the relevant concerned documents. The claimant is eligible for Pension. The Input Data Sheet is placed below for approval.

Entered in Form 9/F/3 (PS), Master Ledger Card/ Claim Inward Register.

Form 2 (R) enclosed alongwith the documents furnished by the claimant.

Clerk	**S.S.**	**A.A.O.**	**A.P.F.C. (Pension)**
Dt.	Dt.	Dt.	Date.

(FOR USE IN PENSION PRE-AUDIT CELL)

The Input data sheet verified with reference to the application and the documents and found correct. PPO may be generated through computer.

Clerk	**S.S.**	**A.A.O.**	**A.P.F.C. (Pension)**
Dt.	Dt.	Dt.	Date.

(FOR USE IN PENSION DISBURSEMENT SECTION)

PPO No. : Bank:
Date of issue to the bank:-
Intimation sent to the claimant and also to Accounts Branch on:
(Date)

Clerk	**S.S.**	**A.A.O. (Pension)**	**A.P.F.C.**
Dt.	Dt.	Dt.	Dt.

9.2 ATTESTATION OF CLAIM APPLICATION

9.2.1 The claim application in Form 10D (EPS) should be accepted only if the same is attested by the employer of the establishment in which the member was last employed. Only where the establishment is closed down and the employer is unable to attest the form, the claim may be attested with official seal and date by the Magistrate or Gazetted Officer or any other officer notified as duly approved by the Commissioner.

9.2.2 The claim in Form 10-C (EPS) should also be attested by the employer under whom the member was last employed. If for any reason, the claimant is unable to submit through the employer, the claim may be got attested with official seal by any one of the following officials:-

> The Magistrate/Gazetted Officer/President of the Village Union/Panchayat /MP/MLA/ Member of Central Board of Trustees/ Regional Committee (Employees' Provident Fund Organisation) / Bank Manager (where the S.B. Account opened) / Head of educational institution / Post master / Sub-Post master / Chairman /Secretary /Member of the Municipal District Local Board or any other authorised Officer as may be approved by the Commissioner.

9.3 PROCEDURE FOR RECEIPT AND DISPOSAL OF CLAIMS UNDER EPS-1995

9.3.1 The following procedure should be adopted in the receipt of claims from the beneficiaries under the EPS, 95 and its expeditious disposal.

All the applications in Form 10-C (EPS) & Form 10-D (EPS) received in the dak section, including the one recd. through PRO, are required to be sorted out claimwise, and section wise. The applications should be affixed with the dated office seal on the date of its receipt. The acknowledgment card appended to the claim applications should be detached at the dak stage and returned to the claimant through despatch section. The acknowledgment card shall be handed over in person, whenever claims are received by PRO section.

9.3.2 The claims shall then be transmitted to the EDP section for its registration in the computer. The inward section should ensure that all the claims received during the day are sent to EDP on the following day before 11.00. AM.

9.3.3. The EDP section will generate a separate output report in respect of Form 10-D (EPS) claims, section-wise. The claims in Form 10-C (EPS) shall be included in the output report generated in respect of each section, which consists of EPF claims for advances, transfers, settlements & EDLI claims also

9.3.4 The EDP shall assign a registration No. in respect of each claim.

9.3.5 The list of claims received on each day as generated by EDP shall be returned to the dak section alongwith the claims on the same day. The list of claims shall be prepared in triplicate, which is known as 'Claim inward register'. The dak section should verify the list and then transmit the claims to the concerned section along with the original of the daily claim inward register.

9.3.6 The duplicate shall be sent to the APFC (A/cs) concerned and the triplicate bearing the acknowledgments shall be preserved in the dak section for a period of one year and then weeded out. This procedure as applicable to the claims received under EPF and EDLI schemes will be followed in respect of claims in form 10C (EPS) also. In the case of claims in form 10D (EPS) also a similar procedure is to be followed except for a change that the claim inward register will be separate output report and the duplicate of it will be sent to the pension section.

9.3.7 The computer is stored of all the claims received and data preserved till the disposal of the claims. The PRO section, and APFC (Pension)/Controller of Pension should be provided a terminal to retrieve the date as and when necessary. To facilitate the PRO in ascertaining the present stage of disposal of claims, the data should be made available to the EDP at the following stages:-

a) Registration of claim at entry stage.

b) Approval of Payment Scroll for authorising the withdrawal benefit through Form 10-C (EPS) alongwith P.I. No.

or

Approval of Input data sheet for release of Scheme certificate by APFC (A/cs)

or

Approval of Input data sheet by A.C (A/cs) & Form 10D for transmission to Pension section for issue of P.P.O

c) Despatch of M.O./ Cheque in respect of withdrawal benefit by cash section with cheque No. & date of despatch.

or

Release of scheme certificate by pension section with Control No.

Release of PPO by pension section with PPO No. Amount of benefits, date of despatch to Bank etc.,

d) Date & reason (in brief) for rejection of claims or return of claims or cases under correspondence to be furnished by the APFC (A/c's.)

Disposal of Claims:

9.3.8 The claims in Form 10-D (EPS) are to be processed for payment of benefits due to the eligible claimants in the accounts branch. The cash section will release the withdrawal benefit in accordance with the amount authorised in Form 10-C (EPS) and pension section shall release the scheme certificate to the member through F/10-C and the PPO to the pensioner as well as to the disbursing Bank, through the Form 10-D (EPS).

Account Section:-

Form 10-C (EPS) - Withdrawal benefit

9.3.9 On receipt of Form No. 10-C (EPS) along with the claim inward register, the section supervisor in accounts section will arrange to distribute the claims to the concerned dealing assistant, duly obtaining the initials in token of having received the claim. The dealing assistant will immediately make necessary entries in the personal register. The claims will then be taken up for scrutiny as provided for in para 9.4 of this manual. On ensuring that the claimant is eligible for withdrawal benefit, the approval of the AAO will be obtained and on completion of the payment authority portion in the claim application, the authorised claim will be entrusted to the personal clerk attached to the AAO/APFC. On inclusion of the authorised claim in the payment scroll, the triplicate copy of the payment scroll will be forwarded by the PC to AAO, to the EDP cell for recording the date of authorisation and payment item number in the claim inward register in the computer. The triplicate scroll will then be forwarded to the concerned accounts branch, based on which the withdrawal register and the claim inward register in the section will be linked for the payment item no.

9.3.10 Whenever the claim in form 10C is not found in order and is required to be returned or rejected on account of ineligibility, the fact of return/rejection should be conveyed to EDP Cell for linking the relevant entry in the claim inward register.

9.3.11 The cash section, on receipt of the authorised claim will arrange payment either by Money Order/A/c payee cheque after generating subsidiary cash book through computers.

Immediately on despatch of money order / cheque the duplicate scroll known as schedule of payment will be forwarded to the concerned accounts branch, for making necessary entry in the claim inward register as well as withdrawal register . At the close of each month, the computer will generate a list of pending claims, accounts sectionwise, and forward the same to the APFC concerned for follow-up action in expediting the disposal of the claim.

Form 10-C (EPS) Scheme Certificate

9.3.12 Since the claim application in Form 10-C (EPS) is also adopted for issue of scheme certificate, wherever due, the initial processing of the Form 10-C and the eligibility for issue of Scheme Certificate will be examined by the Accounts Section concerned in the manner explained above.

9.3.13 If the Scheme Certificate is to be issued, an Input Data Sheet is required to be submitted to the Section Supervisor/Assistant Accounts Officer/Assistant Provident Fund Commissioner for approval. On approval, the Input Data sheet should be transmitted to the Pension Section for issue of Scheme Certificate. On introduction of revised software, the entitlement of Scheme Certificate and generation of data will be processed by EDP with reference to Form 10-C (EPS). Then, the preparation of Input Data Sheet may be dispensed.

9.3.14 The Pension Section, on receipt of Input Data sheet along with form 10-C (EPS) for issue of Scheme Certificate and after making necessary check on the input data sheet, shall obtain Scheme Certificate from the EDP. The scheme certificate bearing the control number should be indicated in the letter forwarding the scheme certificate to the claimant under intimation to the concerned Accounts branch. The Accounts branch, on receipt of the control number of the scheme certificate, will make necessary entries in the form No. 9(Revised) /Form 3 (PS).

9.3.15 The EDP Section shall maintain a record to show the number of scheme certificates issued along with the control number and preserve the same till such time the scheme certificate is received in any of the RO/SRO of the organisation. Simultaneously, the issue of scheme certificate is also required to be indicated in the Employees' master file stored in the computer.

Form 10-D (EPS) / Issue of PPO

9.3.16 The form 10D is prescribed for issue of PPO to make monthly pension to the member and family pension to the family of the member of the EPS Scheme-95. As explained above, the Form 10D will be given special attention at all levels, so that no delay is occurred at any point in the process of sanction.

9.3.17 The Accounts section on receipt of form 10D will observe the procedure prescribed for Form 10-C and process the claim for its disposal. The accounts section will strictly adhere to the procedure prescribed for scrutiny of claim explained in para 9.4 of this part of the manual.

9.3.18. On approval of form 10-D and the input data sheet the same will be forwarded to the pension section. The pension section after making necessary pre-audit shall obtain the approval of the APFC (Pension) and then forward the input data sheet to the EDP section for generating a worksheet, preparatory to the issue of PPO. On verifying the worksheet, the Pension Section will obtain a final PPO from the computer. The PPO as approved by Assistant Provident Fund Commissioner (Pension) will be forwarded to the designated bank. Under the existing arrangement, the PPOs that are generated between 11th of the preceding month to the 10th of the current month will be sent to the bank by 20th of the current month. Thus the forwarding of PPOs to the bank is only on monthly basis. In consultation with the bank, the forwarding of PPOs on fortnightly basis should be adopted to expedite the release of pension

9.3.19 On introduction of revised software, the Form 10-D as approved by Accounts Section will be processed by EDP directly and the preparation of worksheet and Input Data sheet will be dispensed with.

9.3.20 After issue of PPO the copy of the letter forwarding the PPO to the bank will be endorsed to the Pensioner and also to the concerned Accounts Group and on its receipt, the Dealing Assistant in the Accounts Section will make necessary entry in the Form 9(Revised) / Form 3 (PS) / ledger card duly indicating the PPO No.

9.3.21 Any return or rejection of form 10D will be intimated to the EDP section as well as pension section for linking the claim inward register stored in the computer and also kept in the pension section.

GUIDELINES FOR RETURN / REJECTION OF CLAIMS

9.3.22 All possible steps should be taken to accept the claims and unless it is absolutely necessary, the claims should not be returned. Any information required from the claimant, only the claimant should be addressed and not the employer. Similarly, the particulars due from the establishment should be obtained only from the establishment and not from the member. Before returning the claim, all discrepancies and wanting information should be checked and intimated correctly so as to avoid piecemeal objections. Only the cyclostyled /approved proforma should be used for obtaining the information/rejection of any defective claim application. Wherever ineligible claims are received, the same may be rejected under due intimation with reasons thereof, to the claimant concerned. If any information is to be obtained from the employer, the claimant concerned should also be informed of the position. No claims should be returned / rejected below the level of APFC (Accounts). The APFC before approving the claim for its return / rejection should examine the case thoroughly and any possible minor omissions/discrepancies that can be waived, he may do so, avoiding delay in settlement of claims. The services of the area Enforcement officer should invariably be availed in collecting the requisite particulars from the employer, if it will expedite the processing of claims.

9.3.23 Wherever the claims are received in person, the PRO/officers in the reception/May I Help You counter or in the grievances cell, should scrutinise the claim and ensure that the claim is free from any omissions and prima facie acceptable. These sections will render necessary guidance to the claimants in completing the applications and explaining the benefits due, etc.

9.3.24 **TIME LIMIT FOR DISPOSAL OF CLAIMS IN FORM 10-C/10-D**

Job elements	Form 10-C (EPS)		Form 10-D (EPS)
	Withdrawal benefit	Scheme Certificate	Pension
	Working days	Working days	Working days
Inward Section	1	1	1
Distribution in Accts. Section	1	1	1
Processing by clerk (including Ret./Rej.)	3	1	2
Checking - Sec. Supervisor	*2	2	1
Approval - A.A.O.	*2	2	1
Approval - A.P.F.C.	-	1	1
Scroll preparation	1	-	-
Processing in Cash	1	-	-
Writing of M.O. *Manual)/ Preparation of cheque	1	-	-
Writing of Cash Book & forwarding letters intimation to member through computer (EDP)	1	-	-
Checking - Section Supervisor	1	-	-
Checking - A.A.O.	1	-	-
Cheque/Cash Book signing by A.P.F.C.	1	-	-
Despatch in Cash Section	1	-	-
* For any correction/ rectification of defects by clerks, noticed at the level of S.S./A.A.O	3	-	-
TOTAL	20		

Job elements	Form 10-C (EPS) Withdrawal benefit	Scheme Certificate	Form 10-D (EPS) Pension
	Working days	Working days	Working days
Forwarding of Input data sheet	-	1	-
Receipt & Pre-audit of Input data sheet in Pension Pre-audit Section	-	2	-
Generation of Scheme Certificate through Computer	-	1	-
Registering in Control Register & lamination	-	1	-
Despatch of Scheme Certificate to claimant and intimation of Accts.	-	1	-
		15	
Receipt & Pre-audit of Pension claims in Pension Pre-audit Section	-	-	2
Approval of Input data sheet by APFC (Pension)	-	-	1
Generation of Worksheet on Pension by Computer & approval of AAO (Pension)	-	-	1
Generation of Pensioner's & Disbursers portion of PPO through Computer	-	-	1
Affixing seal/photo etc.	-	-	1
Approval of PPO by APFC (Pen)	-	-	1
Issue of intimation to Pensioner on Pension sanctioned, etc.	-	-	1 (15 days)
Documentation & registration of PPO in Bank Scroll through Computer	-	-	1
Reconciliation of Payment to Bank & MIS data on Pension	-	-	2
Despatch of PPO to the Paying Branch through link branch of disbursing bank(s)	-	-	(As per agreement with Bank - to be sent to link branch on 20th of each month (10 days in advance of disbursement)

The claims complete in all respects submitted along with the requisite documents shall settled and benefit amount paid to the beneficiaries within 30 days from the date of its receipt by the Commissioner. If there is any deficiency in the claim, the same shall be recorded in writing and communicated to the applicant within 30 days from the date of receipt of such application. In case the Commissioner fails without sufficient cause to settle a claim complete in all respects within 30 days, the Commissioner shall be liable for the delay beyond the said period and penal interest at the rate of 12% per annum may be charged on the benefit amount and the same may be deducted from the salary of the Commissioner.

The underlined intention of the above provision is to ensue that the claimant is given the benefit or to convey the shortcomings/deficiencies within the prescribed number of days. The time limit given above is only the upper limit and it should be ensured that the shortfall/deficiencies in the application should be intimated during the third stage of processing of claims by the Dealing Assistant. Any delay in disposal of claims within 30 days will attract the action provided in the above paragraph for which responsibility may be fixed at each level for follow up action.

Wherever the dealing official/Section receives claims in bulk, the RPFC (F&A) / RPFC incharge of Sub-Regional Office /APFC (Accounts) will immediately make necessary arrangements to distribute the claims among the clerks in the Section and among other Sections in the Accounts Branch, so as to adhere to the prescribed time schedule.

9.4 AUDIT AND ACCEPTANCE OF CLAIMS FOR SANCTION OF BENEFITS UNDER EMPLOYEES' PENSION SCHEME, 1995

9.4.1 The persons, who are entitled to receive the benefits in the nature of monthly pension and withdrawal benefits/scheme certificates, are required to submit their claim in Form 10-D (EPS) and Form 10-C (EPS) respectively, as explained in para 9-2 of this part of the Manual.

WORKSHEET

9.4.2 The accounts section should prepare a work sheet in the form prescribed (Annexure I) for determining the nature of benefit eligible and to arrive at the quantum of withdrawal benefit. The worksheet should be prepared by the dealing assistant and checked 100% by S.S. and A.A.O.

9.4.3. In the case of Form 10-D (EPS), the accounts section should furnish the data in Input Data Sheet with reference to the approved worksheet for the purpose of authorising pension by pension section. The Input Data Sheet should be prepared only after the approval of worksheet by A.A.O. The IDS should be verified and checked 100% by the S.S. and AAO before its submission to APFC.

9.4.4 The APFC on the basis of approved worksheet, and the particulars given in the Input Data Sheet, should ensure the entitlement of pension and then approve the IDS.

9.4.5 The preparation of worksheet can be dispensed with on introduction of revised software for deciding the entitlement of benefits on the basis of the particulars in the claim.

AUDIT OF FORM 10-C (EPS) IN ACCOUNTS SECTION:

9.4.6 The Form 10-C (EPS) is meant for authorising the withdrawal benefit and Scheme certificate to the member of the EPS 1995 only. It should therefore be ensured that the claim is preferred by a member of EPS-95 or it relates to EPS member.

(1) On receipt of claim, the dealing assistant will ensure that the application bears the control inward registration number and included in the list of claims generated by EDP.

(2) The receipt of claim should be recorded in the personal register by the dealing assistant, indicating the date of receipt, inward registration number, account No. **on the same day** of receipt. After ensuring that the claim is attested or forwarded **by the employer**, the signature should be verified with the specimen signature of the employer or his authorised official kept on record. This should be ensured by dealing assistant and S.S. and certified in the claim.

(3) The particulars in the claim should be verified for its correctness with reference to Form No. 9 (Revised) Form 3 (PS) with particular reference to S.No. 1 to 6 of the application.

(4) Wherever the claim is preferred by the member, the particulars against S. No. 10 will be nil. This will enable the dealing assistant to know the beneficiary to whom the benefit is payable. In case the claimant furnishes the details of death of the member, it should be examined, whether it is a fit case for entitlement of monthly pension. This is due to the fact that a member who has died before withdrawing the withdrawal benefit due to him and whose death occurred before attaining the age of 58 years, the family is eligible for monthly pension. However, when the death of the member occurred on or after attaining the age of 58 years, the applicant is eligible only for the withdrawal benefit.

(5) Column No. 8 of the application should be examined carefully to ensure whether the member has opted for Scheme Certificate or withdrawal benefit. Further, this option is applicable only in cases where the member is eligible for withdrawal benefit. Where the eligible service is 10 years and above, the member is eligible only for Scheme certificate and accordingly, the same should be issued irrespective of his option against the Scheme certificate.

(6) If the Scheme Certificate is to be issued to the member, the particulars of bank account No. etc. against Sl. No. XI may be ignored.

(7) The worksheet should be completed to determine whether the member is eligible for withdrawal benefit or Scheme certificate and to determine the quantum of benefit with reference to Scheme provisions and manual provisions.

(8) While authorising the withdrawal benefit, it should be ensured that the member has not possessed eligible service of 10 years. This aspect should be verified from the worksheet.

(9) The worksheet should be got approved by the S.S. and A.A.O.

(10) It should be ensured that the particulars of Postal address for M.O. cases and the details of bank account number for deposit into payee's account are complete. It should be ensured that the advance receipt in the Form 10C is duly signed by the member claimant (Stamped where the amount exceeds Rs. 500/-). Except for the mode of payment provided in the claim, no other mode is acceptable.

(11) To determine the quantum of withdrawal benefit, the wages drawn by the member at exit is required. This information should be taken from Form 3A/ 7(PS). However, the particulars of the wages furnished by the employer in the claim application should be verified for correctness. In the absence of Form 3A/7(PS), the wage particulars furnished by the employer may be relied upon, unless there are reasons for not doing so, which can be decided by Assistant Provident Fund Commissioner.

(12) Similarly, the period of non-contributory service should be extracted from the data stored in the computer and reflected in Form 24. In the absence of the details of non-contributory service in Form 24, the details on non-contributory service as furnished in the claim and certified by the employer may be accepted

(13) Whenever the Scheme Certificate is to be issued, the particulars furnished by the member in respect of his family/nominee against S. No. 9 of the application should be verified for names/ Date of Birth with reference to the Employee's Master file stored in the computer. Since the particulars of the family/nominee is normally upto date, the list may be relied upon. An input data sheet in the prescribed form should then be prepared by dealing assistant in Accounts which should be checked by S.S. and A.A.O. and approved by APFC.

(14) The endorsement regarding issue of Scheme certificate and authorisation of payment of withdrawal benefit should be made in the claim itself under the signature of APFC/AAO respectively.

On verifying the particulars in the claim and satisfying the entitlement of pension, the worksheet along with the Input data sheet, duly filled in, should be submitted to the SS and AAO for 100% check. Thereafter, the Input data sheet should be submitted to APFC for his approval.

20) On approval of the Input Data sheet, the Form 9 (Revised)/3 (PS) ledger card and claim inward register should be linked. The claim in Form 10-D along with its enclosures and Input Data Sheet should then be forwarded to pension section for issue of PPO.

21) On receipt of letter forwarding the PPO to the bank from Pension section, the PPO number should be indicated in the Form 9 (Revised)/3 (PS) and Ledger Card.

22) Incomplete particulars in the claim, non-submission of requisite documents or enclosures to the claim should be obtained in full and the claim should be forwarded to pension section in complete shape. The APFC who approves the Input Data Sheet should verify the eligibility for pension and the availability of all supporting document. A certificate should be furnished in the Input Data Sheet for verifying the correctness of particulars given therein.

23) Ineligible claims should be returned to the claimant indicating the reasons therefor.

24) Claims which are incomplete and not supported by the required documents should be thoroughly scrutinised so as to obtain the wanting particulars/ documents, to the extent feasible without returning the claim. Whenever it is absolutely necessary to return the claims, it should be sent to the claimant/employer from whom the particulars required, after obtaining the approval of APFC.

25) As and when a claim is returned, or rejected a copy of the letter forwarding the claim should be sent to the EDP Section/Pension section.

26) On adoption of a revised software, the computer, with the particulars given in the Form 10-D (PS) will decide the entitlement of pension and determine the pension due The preparation of worksheet and Input Data sheet may thereafter be dispens with.

Maintenance of Pension accounts and disposal of claims in respect of establishments exempted from the operation of Employees' Provident Fund Scheme

9.4.8 In each Regional/Sub-Regional Office, the maintenance of pension accounts of employee of the establishments exempted from the operation of Employees' Provident Fund Scheme 19 shall be entrusted to a section or to a separate staff, to the extent required.

This section shall receive the monthly/annual returns prescribed for such establishments. will maintain the Form 3 (PS) and Form 8 (PS) and take follow up action. It will also maintain the D Register and initiate action to recover the dues and also to levy penal damages, wherever due.

It will maintain the pension accounts in Form 21-B (Ledger card) and keep the data on non-contributory service of the members till such time the Employee's Master is maintained for all members.

It will receive the claims in Form 10-C and Form 10-D from the members and process them in the same manner as prescribed for the claims of the un exempted establishments in Accounts Branch.

it will reconcile the receipts at the close of each year with reference to Form 4 (PS) and Forms 7/8 (PS).

Annexure - I
Para: 9.4.2

EMPLOYEES' PENSION SCHEME, 1995
WORK SHEET

Accounts Section
Task No.
Claim 10-D
10-C

✓

Account No. & Name: ....
Reason for leaving service (FORM: 10/5(PS): ....

1. **AGE:** (w.r. to Form 9/3(PS)

a) On leaving service

D	M	Y

Date of leaving service or Date of death: ....

Date of Birth : ....

b) On the date of application

D	M	Y

Date of application : ....

Date of Birth: ....

c) Attaining 58 years on

D	M	Y

Date of Birth : ....

Add: 58 yars 0 0 58

II. SERVICE: (Need not be calculated for Widow/Disabled/Nominee Pension)

Past Service (EFPS-71)
(All breaks to be regularised)

A) Date of cessation :......................
B) Date of Joining :......................
C) (A) - (B) :......................
D) **Rounded Past Service** :......................

:..........................

Actual Service
(EPS-95)

(E) Date of Cessation :..........................
(F) Date of Joining :..........................
(G) (E) - (F) :..........................
(H) Period of Unemployment :..........................
(I) (G) - (H) :..........................
(J) **Rounded Actual Service**

(K) (-) Non Cont. Service: :..........................
(Not to be regularised) :..........................
(L) **Pensionabale Service** :..........................

Eligible Service (D+J)	**Years**	**Pensionable Service (L)**	**Years**

III. **WAGES: Rs.**	a) As on 15.11.1995	b) As on leaving service	c) Average Monthly pay (MMP only)

IV. **BENEFIT PAYABLE**	**Scheme Certificate/Pension IDS Submitted**	**Withdrawal benefit**	**Refund of EPS Cont.**
		(As per the details on Page 2)	
	☐	☐	☐

DH **SS** **AAO** **APFC**

V. REFUND OF CONTRIBUTION:

Where the period of past Service/ Actual Service (excluding the period of Non Cont. Service) is less than 6 months, the actual contribution (single share) shall be refunded.

Month	Past Service Contribution Rs.	Actual Service Contribution Rs.

Total Refund of contribution due ______ + ______ = ______

VI. **QUANTUM OF WITHDRAWAL BENEFIT:**

(Where the service is 6 months or more - separately under past service and Actual Service)
For Past Service (upto 15.11.1995)

1. No. of full years contribution paid :
2. Proportion of Pay (Table A(2) w.r. to (1) above :
3. Pay as on 15.11.95 or on exit / (w.r. to III (a)) :
4. Benefit (Table -A) (2x 3) :
5. No. of years (from 16.11.95 to date of exit) :
6. Factor (Trable -B) w.r. to (5) above :
7. Past Service benefit (4x6) Rs. :

For Actual Service (from 16.11.95 / Date of joining):

8. years of service (w.r. to II(L) :
9. Proportion of wage in Table -D (w.r. to (8) above) :
10. pay as on exit (w.r. to III (b)] :
11. Actual Service benefit (9x10) Rs. :
12. Withdrawal benefit (7+11) Rs. :

Claim admitted Entered in form: 9 (Revised)/3 (PS) & withdrawal Register

A sum of Rs. .... (Rupeees) .... only) may be sanctioned as withdrawal benefit/Refund of contribution for payment from Account No. 10

D.H.
P.I. No.

S.S.

Date:

A.A.O. / A.P.F.C.

P.C. TO A.A.O.

HINTS TO DETERMINE THE NATURE OF BENEFIT DUE:

Refer Item No. IV - Work Sheet

1. Eligible Service is below 10 years irrespective of age 2. Not Opted for Scheme Certificate 3. Claim received from the member	Withdrawal Benefit through Form 10-C Calculate the amount due. Member to be convinced to avail Scheme Certificate.
1. On the date of application, the age is between 50-57, but opted for Scheme Certificate 2. Eligible Service is less than 10 years but opted for Scheme Certificate 3. Eligible Service is 10 years & above and not attained the age of 58 years.	Only Scheme Certificate. (Form 10-C) Furnish Input Data Sheet.
1. Member - with 10 years Eligible Service attained the age of 58 years as on date. 2. Member not in service with 10 years. Eligible Service attained 50 - 57 years of age and not opted for Scheme Certificate. 3. Member disabled & left service (irrespective of age & service) 4. Member died while in service / after leaving service (irrespective of age & period of service)	Pension through Form-10D Prepare Input Data Sheet.

9.5 PREPARATION OF INPUT DATA SHEET

9.5.1 The Pension is calculated through Computer. For this purpose, an Input Data Sheet has been prescribed (Annexure II). This should be completed by the Accounts branch with reference to the records viz. Ledger Card, Form 9 (Revised)/Form 3 (PS)/Form 2 (Revised) / Form 3A / Form 7 (PS) / Employees' Master file. No column should be left blank and no overwriting/ cutting is allowed. All corrections should be authenticated by Assistant Provident Fund Commissioner concerned.

9.5.2 Before the preparation of Input Data Sheet, the entitlement for pension should be examined with reference to the application in Form 10-D and records kept in the office, through a worksheet.

9.5.3 The Section Supervisor /Assistant Accounts Officer/ Assistant Provident Fund Commissioner should give a special attention for the determination of age, service and salary, which are the main parameters for determining the eligibility and quantum of pension and this should be checked 100%.

9.5.4 The Input Data Sheet should be prepared within 2 working days of the receipt of Form 10D and forwarded to Pension Section through a separate register by Accounts Section. Through this register the issue of Pension Payment Order by Pension Section should be watched. On issue of Pension payment order, the Pension Section will endorse a copy of the letter forwarding the Pension Payment Order to the Paying Branch to the Accounts Section. On its receipt, Ledger Card and Form 9(Revised)/Form 3 (PS) should be linked indicating therein the Pension Payment Order No. and date of issue.

9.5.5 The Pension Section will monitor the receipt and disposal of Form 10D through Computer. All Form 10D received from Accounts Section along with Input Data Sheet and copy of letter returning/rejecting the claim Form 10-D received from Accounts Section will be fed to the Computer to extract the position relating to claims received, authorised, returned, rejected and pending.

9.5.6 On receipt of Input Data Sheet together with the claim in Form 10D, the same will be entrusted to the clerk incharge of scrutiny of Input Data Sheet. The Input Data Sheet should be thoroughly checked with reference to the particulars given therein and also with the claim and its enclosures. On ensuring that all the requisite particulars/ documents are received and found in order, the Input Data Sheet should be sent to Section Supervisor/Assistant Accounts Officer/ Assistant Provident Fund Commissioner (Pension) for approval. At this stage 100% check should be made by all the said supervisor officials. Any Input Data Sheet returned to Accounts Section for want of particulars/ documents, etc. should be watched by Pension section for its receipt and disposal.

9.5.7 The approved Input Data Sheet should be forwarded to EDP for generating worksheet for pension payment.

9.5.8 The Input Data Sheet along with the claim and the PPO should be preserved in the PPO file for verification of Audit.

9.5.9 On introduction of revised software to calculate the entitlement of benefits on the basis of the particulars in Form 10-D (PS), as verified by Accounts section, the preparation of Input Data Sheet may be dispensed with.

ANNEXURE
(Para: 9.5)

EMPLOYEES' PENSION SCHEME, 1995
INPUT DATA SHEET

Accounts Group

1. Estt. Code
2. Estt. Extn.
3. P.F. Account No.
4. Name of the member
5. Sex — M F
6. Father's/Husband's Name
7. Date of birth — D D M M Y E A R
8. marital Status
9. Permanent Address — Postal Address
10. Date of joining EFPS/EPS
11. Details of breaks: — a) Under EFPS (Yr. Mon. Day) — b) Under EPS (Yr. Mon. Day)
12. Date of Exit
13. Reason for exit
14. Pensionable Service — Years
15. Past Service — Years
16. Pensionable salary — Rs.

16. a Salary as on 16.11.95/Exit prior to 16.11.95 Rs.

ANNEXURE -II
(Para: 9.5)

ounts Group:

R

PS

Mon. Day

17. Capital Return Option (I /II/III) ☐

18. Option for commutation — Yes / No

19. Pension opted before 58 yrs. — Yes / No

20. Scheme certificate opted — Yes /No

21. Beneficiary Name for Capital Return ☐☐☐☐☐☐☐☐☐☐☐☐☐☐

22. I.D. Marks of beneficiary ☐☐☐☐☐☐☐☐☐☐☐☐☐☐

22.a Date of application in F/10D

23. Status of Claimant — Member/Widow/Widower/Orphan/Nominee

24. Pension paying agency ☐

25. Account No. (P.P.O.) ☐☐☐☐☐☐☐☐☐☐

26. Name of the Bank ☐☐☐☐☐☐☐☐☐☐☐☐☐☐

Branch ☐☐☐☐☐☐☐☐☐☐☐☐☐☐

City ☐☐☐☐☐☐☐☐☐☐☐☐☐☐

Pin Code ☐☐☐☐☐☐

27. DETAILS OF OTHER FAMILY MEMBERS/NOMINEES:

Sl.No.	Name	Relation	Date of Birth	Address	ID Marks
1.					
2.					
3.					

Certified that the particulars furnished above have been verified from records and found correct

Clerk SS AAO Signature of the APFC with seal

Date:

FOR OFFICE USE (GAG) ONLY

Form 10-D (EPS) preaudited
w.r.t. to I D.S and enclosures
are in order

Clerk	S.S.	A.O.	APFC

CHAPTER 10

EMPLOYEE'S MASTER FILE

10.1.1 An Employee's Master File shall be kept in Computer in respect of each member of Employees' Pension Scheme, 1995. This is a vital document for rendering prompt service to the members and their family. This will be under the control of Assistant Provident Fund Commissioner (pension) and operated through a secret pass word. Any correction or modification to the master file should be made under the direct supervision of Assistant Provident Fund Commissioner (Pension) and correctness of changes verified, through a print out. The EDP should be in a position to extract the corrections made to the master file on monthly basis, through a programme. The format of Employees' master File is given in the Annexure.

10.1.2 This master file should be generated with reference to the source documents mentioned in the Annexure and updated as and when change is intimated by the member. The data should be checked before its registration to the master file. This should be consulted as and when any application is received claiming the benefit. A print out of this should be attached to the claim before its submission for authorisation.

10.1.3 When the payment of benefit is authorised/transferred, the data in the master file except the data relating to name of the member, code No., PPO No., date of issue may be deleted after the expiry of 3 years from the date of completion of Audit. The other data should be retained in the master file.

Wherever the Scheme Certificate is issued, the master file should be preserved till the acknowledgement of the registration of Scheme Certificate by other Regional Office/Sub-Regional Office.

10.1.4 The Employee's master is essential, particularly for the issue of PPO and to ascertain the period of non-contributory service as well as the period of out of employment between two spells of employment. The period of non-contributory service in every year should be added with reference to Form 3A/ Form 7(PS) /Form 6A (revised) / Form 8 (PS) to provide the aggregate NCS as on 31st march of each year to determine the period of service of the member. When a member leaves the service of one establishment and joins another establishment after sometime, the period of out of employment should be taken to the master file on his joining the new establishment or rejoining the same establishment.

10.1.5 The Employee's master file should be available on screen only to the Public Relations Officer/Grievances Officer so as to guide the visiting members. Once the Employee's master file is built up in respect of all Employees' Pension Scheme members, the pensionary benefits can be released by the Pension Section itself without the dependence of Accounts Sections. Till then the data on employees is required to be obtained from Accounts Sections only.

ANNEXURE

EMPLOYEES' PENSION SCHEME 1995 - EMPLOYEE MASTER FILE

	Information	Source
1.	Account No.	Form 9 (Revised) / 24
2.	Name of the subscriber	Form 9(Revised)/3 (PS) /5/4(PS)
3.	Date of birth of subscriber	- do - & Form 2(Revised)
4.	Father's / Husband's name	- do -
5.	Permanent address of member	Form 2 (Revised)
6.	Family member details on - a) Name b) Date of birth c) Relationship d) Sex e) Age	Form 2 (Revised)
7.	P.F. Date of joining	Form 9(Revised)/3 (PS)/ Form 5/4 (PS)
8.	F.P.F.	- do -
9.	Pension Scheme	- do -
10.	Total break in service under Family Pension Scheme prior to commencement of Pension Scheme	Form 3A / Form 7 (PS)
11.	Break in contributory service during the year and update the total period of non-contributory service as on given date	Form 3A / Form 7 (PS)
12.	Date of exit	Form 10 / Form 5 (PS)
13.	Date of re-entry in the same establishment or any other covered establishment	Form 5 / Form 4 (PS)
14.	name of previous establishment	Form 5/4 (PS)
15.	Account No. of the member in the previous establishment	Form 5/4 (PS)
16.	Date of leaving previous establishment	Form 10/5 (PS)
17.	Name of nominee for pension	Form 2 (Revised)

ANNEXURE

Information	Source
18. Relationship of nominee with the member	Form 2 (Revised)
19. Wages as on 15.11.1995 (if applicable)	Form 3A / 7 (PS)
20. Issue of Scheme Certificate	Scheme Certificate

Date :

Control No. :

21. Scheme certificate received

From RO/SRO :

Control No. :

Date :

22. Extract of Scheme certificate received from other RO/ SRO

23. Nature of benefit allowed :

PPO/ Payment Item No. :

Amount :

Date :

Pensioner Master file No. :

24. Transfer of PPO details :

PPO No. :

Bank :

25. Remarks

Option for contribution in excess of Rs. 5000/-

Option Date :

Date on which pay exceeded of Rs. 5000/- :

/5/4(PS)

ised)

Form 5/4

PS)

10.2 PENSION PAYMENT ORDER

10.2.1 On receipt of the application in Form 10-D (EPS) along with Input Data Sheets from the Accounts branch for releasing the monthly member pension or family pension, the Assistant Provident Fund Commissioner (pension) will authorise the issue of Pension Payment Order, after verifying the Employee's Master file ensuring that no Pension Payment Order is issued earlier. The PPO will be generated by computer as per the data furnished in the Input Data Sheet. EDP Section should also verify the Employees' master file to ensure that no PPO is issued earlier before generating the PPO. Proforma of PPO is given in Annexure. The computer will calculate the pension admissible as per the programme developed with reference to the provisions of the Employees' Pension Scheme, 1995. A worksheet will be generated by computer which will be approved by Assistant Accounts Officer in pension Section. On receipt of this, the final PPO will be released indicating the PPO No. The computer will release only one PPO in duplicate i.e. Pensioner's portion, Disburser's portion and an office copy. The PPO should be in a pre-printed format on a durable paper and laminated before its release (keeping one end open) along with a fly-leaf instructions giving the description of the codes used for the guideance of the disburser.

10.2.2 The completed PPO with photo should be signed by the Assistant Provident Fund Commissioner (Pension) under his full signature duly affixing his embossing seal. The specimen signature of Assistant Provident Fund Commissioner (pension) should be lodged with the concerned Link branch of the designated bank. The PPO will be generated and authorised only if the pension is to be disbursed within the link branch attached to the concerned Regional Office/Sub-Regional Office.

10.2.3 Whenever pension is opted through a branch falling outside the Link branch of the Regional Office/Sub-Regional Office, the approved Input Data sheet alongwith the claim in Form 10-D (EPS) and enclosures should be sent to the concerned Regional Office/Sub-Regional Office, duly retaining one copy of Form 10-D (EPS) and Input Data Sheet for releasing the PPO by them. The letter forwarding the Form 10-D (EPS) and Input Data sheet in given in Annexure for uniform adoption.

10.2.4 The Paying branch of the bank, which holds the Disburser's portion of the PPO in its safe custody, is responsible to ensure payment of pension by deposit into the pensioner's S.B. A/c. on due date and only to the extent entitled.

10.2.5 On the basis of particulars in PPO, a pensioner's master file is opened in the Computer. The office copy of the approved PPOs should be kept in a separate file along with claim and connected documents and preserved safely in a locked almirah in pension section.

10.2.6 The PPOs generated from 11th of the preceding month to the 10th of the current month are known as new PPOs. These PPOs are to be sent to the Link branch on 20th of each month, through a letter addressed to the bank (See Annexure), alongwith a summary of branchwise and pensionerwise pension due in the form of a floppy disc. Simultaneously, the computer will generate the summary of PPOs (See Annexure).

10.2.7 The summary of PPOs should be preserved in a separate file and submitted to RPFC/ Controller of Pension on 18th of every month. The PPOs issued to the bank are not to be withdrawn for the purpose of making changes therein in future with respect to quantum of benefits. For such purpose, a "corrigendum PPO" may be issued to the bank communicating the modifications, under intimation to the pensioner. The receipt of acknowledgement from the bank confirming receipt of "corrigendum PPO" and making necessary changes in the disburser's portion of PPO, should be watched by pension Section. In case of any contingency for withdrawal of PPO, the Assistant Provident Fund Commissioner (Pension) should obtain written prior orders of the Regional Provident Fund Commissioner in charge of Sub-Regional Office/Controller of Pension concerned.

10.2.8 The PPO should be returned by the bank when the payment of pension is ceased due to exhausting of all eligible persons. As per the Pensioner's Master file, this should be watched to ensure the prompt compliance by the Bank. On receipt of PPO from the bank, the same should be cancelled under the signature of Assistant Provident Fund Commissioner (Pension) duly linking the same in the Pensioner's master file.

ISSUE OF DUPLICATE PENSION PAYMENT ORDER

10.2.9 If both the halves of a PPO are reported to have been lost in transit due to flood, etc., before commencement of Payment of pension or worn or torn, the Paying branch to which the matter is reported, will address the concerned Employees' Provident Fund Office through the usual channel i.e. Link Branch, requesting for issue of a duplicate. PPO in favour of the concerned pensioner in terms of the provisions of Rule 332-A of Central Treasury Rules. Before initiating action in this behalf, the paying branch, will, however, verify from the register of payment of pension kept with them that no payment has already been made to the pensioner and confirm the fact to the Employees' Provident Fund Organisation, while writing for a duplicate PPO. On receipt of request form the Bank, the Pension Section will arrange for issue of duplicate PPO with due endorsement after linking the Pensioner's master file. The paying branch should be advised to take the following further action before commencing payment in such cases on receipt of duplicate PPOs : -

a) The fact that no payment is to be made against the original PPO will be prominently mentioned in the 'remarks' column of the Register of Payment of Pension while noting therein the particulars of the duplicate PPO.

b) A declaration from the pensioner to the effect that he has not already received any payment against the original PPO and also an under-taking from him to the effect that he will surrender to the paying branch the original PPO, if traced out later, and will not claim any payment on it strength, will be obtained from the pensioner and kept on their record.

c) It will ensure that no payment has been made to the pensioner on the basis of original PPO during the period following the report made to the EPF Organisation as regards its reported loss.

10.2.10 <u>UNDRAWN PENSION:</u>

In case where pensioner did not appear before the disbursing agency for drawal of pension, or not produced the life certificate for a period upto three years, such P.P.O.s can be invalidated and payment may be made by the paying branch subject to their jurisdiction after due verification of the reasons for non drawal of pension. In case while the pension is not disbursed for more than 3 years the P.P.O. should be returned to R.P.F.C for revalidation after thorough certification of the genuineness of the pensioner and the reasons for not drawing the pension for more than 3 years.

EMPLOYEES' PENSION SCHEME, 1995
PENSION PAYMENT ORDER

[Disburser's / Pensioner's Portion)

Authorisation

Until further notice, on due date, be please to pay the Pensionery benefits, as authorised hereunder, after due identification of pensioner adhering to the procedure set out in the Scheme on Disbursement of Pension under EPS-95 through Nationalised Bank.

Photo

Photo

Date:

Signature of
Assistant P.F. Commissioner/
Pension Paying Authority

Seal:

Pension Payment Order No. :
Name of the Member :
Father's/Husband's Name :
Address :

Paying Branch/Bank : (Code)
Savings Bank A/c. No. :

To

____________________ Bank

____________________ Branch

Personal identification marks of the Pensioner

1.

2.

Signature of Pensioner/L.T.I.

LIST OF FAMILY MEMBERS: (in case of Disabled - indicate 'D' below the name)

Sl No.	Name and address	Date of birth	Relationship with the member	Date of birth (Age)	Guardian	
					Name	Relationship
(1)	(2)	(3)	(4)	(5)	(6)	(7)
Particulars of Nominee						

BENEFITS OTHER THAN MONTHLY PENSION:

Nature of Payment	Code	Amount due	Due on	Payable to	Paid on
(1)	(2)	(3)	(4)	(5)	(6)
Commuted value of pension					
Return of Capital					

MONTHLY PENSION - TO MEMBER:

Class of Pension (Code)	Entitlement	Amount	Date of commencement	Date of Cessation
	Normal Pension			
	Reduced Pension			

FAMILY PENSION:

Sl No.	Class of Pension	Code	Name	Pension payable	Amount	Date of Commence-ment	Date of cessation
(1)	(2)	(3)	(4)	(5)	(6)	(7)	(8)
1. (a)	Widow/ Widower			Enhanced			
				Normal			
(b)	Nominee			Normal			
2.	Disabled child			Normal			
				Enhanced			
3.	Child -I			Normal			
				Enhanced			
	Child- II			Normal			
				Enhanced			

ANNEXURE

EMPLOYEES' PROVIDENT FUND ORGANISATION

RO / SRO: ______________________

Ref. No. Date:

To

The manager
(Pension paying Branch)

____

Through: __________________________________ Link Branch
____

Sir,

Sub: Payment of Pension under Employees' Pension Scheme 1995 - Forwarding of Pension Payment Order.

The Pension Payment Order (Pensioners & Disbursers portion) in respect of the pensioner named below is forwarded herewith alongwith the following documents:-

a) Specimen signature of Pensioner, duly attested;
b) Left hand thumb impression of the Pensioner;
c) Joint photograph of the Pensioner and his/her spouse.

2. On satisfying the identity of pensioner and after obtaining the signature on the disburser's portion of Pension Payment Order please hand over the pensioner's portion of the PPO to the pensioner.

3. As per the arrangement entered into with your Bank, please arrange to disburse the pension as per the Pension payment Order. The pension is required to be credited to the S.B. Account of the pensioner on the last working day of every month.

4. Details of Pensioner:

Member's PF A/c. No. ______________ PPO No. ____________________

Name of the member ________________ Pensioner's name: ________________

Pension to be credited to

S.B. A/c. No. ____________________

Amount of pension payable Rs. __________

With effect from : ________________

Yours faithfully,

Encl: As in Para 1 above

ASSISTANT PROVIDENT FUND COMMISSIONER
(PENSION)

(S E A L)

Copy to:-

(i) Shri/Smt. ________________________ (Pensioner), (address) __________ ____ ______ with a request to contact the Bank immediately on receipt of intimation from them and obtain the pensioners copy of PPO. Any difficulty in drawing the pension may be reported .

(ii) Accounts Section ___________, with a request to note the PPO No. etc. in the master ladger card/Form-9(Revised)/3 (PS).

(iii) RO/SRO ___________, with reference to the transfer of claim in Form 10-D (EPS) received vide letter No. _____________________ dated ___________ for information and necessary action.

ANNEXURE

To

The Manager
Link Branch ____________________

____

____

By Special Messenger

Sub: Forwarding of list of Pension Payment Orders alongwith floppy disc and Payment towards disbursement of Pension for the month of ____________________

Sir,

I am forwarding herewith the following documents for disbursement of Pension as per the existing banking arrangements:-

a) Pension Payment Orders (Disburser & Pensioners portion) alongwith a letter addressed to the paying branch.

b) pensioner's master file covering the pensions added during the month through a floppy disc. / payment scroll (in Triplicate).

c) Statement on deletions / changes in the existing Pension Payment Orders for incorporation in your records.

d) Branchwise summary ______ on No. of Pension Payment Orders.

e) Account payee Cheque No. ____________________ date for Rs. ______________.

f) Statement of Pension released for the month

Please acknowledge receipt.

Yours faithfully,

ncls: as above

ASSISTANT PROVIDENT FUND COMMISSIONER
(PENSION)

SUMMARY OF PENSION PAYMENT ORDERS

RELEASED TO THE LINK BRANCH

(PPOs authorised from 11th of the preceding month to 10th of current month)

MONTH: ____________________

Bank ____________________ Regional/ Sub_Regional Office: ____________________

Link Branch
(Name & Code) ____________________

S. No.	PPO No.	Class of Pension (Code)	Paying Branch Code	Paying Branch Name	S.B. A/c No.	Pension	Arrears

SUMMARY - I

Paying Branch Code	No. of PPOs	Total Amount

SUMMARY - II

Class of Pension	No. of PPOs.	Total Amount

10.3 PENSIONER'S MASTER FILE

10.3.1 A pensioner's master file is to be kept in computer in each Regional Office/Sub-Regional Office. The format of this file is given in Annexure. This master file is to regulate the monthly payment of pension and to update the entitlement and the beneficiary. In addition, this file will be used to generate monthly pensioner-wise and branch wise payments due so as to release the amount of pension and other dues to the link branch in advance.

10.3.2 A similar master file is required to be kept in the link branch to which the new pension cases received from Regional Offices/ Sub-Regional Office will be added every month and also keep the data updated including the contingencies on stoppage of pension and enhancement of pension, period upto which pension paid etc.

10.3.3 On releasing of the PPO by computer, the Pensioners' master file is opened. All the PPOs that are generated in a month are to be taken to pensioner's master file and a floppy of which will be sent to the concerned link branch on 20th of each month. A branchwise summary showing the No. of PPOs and amount of pension to be released for the ensuing month will be generated. On the basis of this statement, the amount due to the link branch will be assessed and released on due date.

10.3.4 The bank will add the new PPOs every month to their computer and generate a paying branchwise and pensioner wise scroll every month.

10.3.5 Any changes/ modification as and when received by Regional Office/Sub-Regional Office and also through the duplicate scroll (voucher copy) received from the paying branch, the pensioner's master file will be updated. The life certificate received in November should be fed so as to regulate the payment.

10.3.6 This file also will be very vital for reconciling the pension due and released by the bank every month. The file will serve as audit register, as this will reflect the period upto which pension is paid by the bank and the reasons for non-payment of pension, if any. For this purpose, this file will be updated in the Regional Office/Sub-Regional Office every month with reference to the vouchers received from the link branch. Further, only through this file the PPOs which are current are categorised class of pensionwise, amount paid etc.

10.3.7 This file is required to be preserved in respect of each pensioner till the last eligible person is ceased to receive the pension and thereafter for a period of three years from the date of completion of test audit, or till the later period specified by the Regional Provident Fund Commissioner for specified reasons. On cessation of pension payment, the receipt of PPO from the bank should be ensured.

10.3.8 The updation of this master file and incorporation of any change should be with the prior knowledge of Assistant Provident Fund Commissioner (Pension) and the pass word for entering the data should be with him only so as to maintain safety of data.

ANNEXURE

PENSIONERS' MASTER FILE

PPO No. :
Bank :
Branch :
Paying Branch :
S.B. A/c No. :

Scheme - 1971/1995 :
Members Pension A/c No. :
Employment: Part time/Full time :
Name of the member :
Name of the Nominee :
Address: :

Link PPO No.: if any :

Life Certificate: Recd./NR
Commutation (Code) ROC (Code)

Amount - Effective Date | Alternative (Code) | Amount | Name of beneficiary

Pensioners				Commencement	Cessation		Amount of Pension			Revaluation additions	Paid to Bank	Dt. upto which credited to pensioner
Class of Pension Code	Name	Date of birth	S.B. A/c. No.	Date	Contingency	Date up-to	Normal	Enhanced	Reduced	Rate w.e.f.	(Month year upto)	

CHAPTER 11

11.1 DISBURSEMENT OF PENSION AND OTHER BENEFITS

11.1.1 In accordance with the provisions of Para 33 of the Employees' Pension Scheme, 1995 with the approval of Central Board, the Regional Provident Fund Commissioner incharge of the Regions are empowered to enter into arrangement with one or more Nationalised Banks to disburse the monthly pension to the member and family pension to the widow/widower and children. In addition to monthly pension, the commuted value of pension and Return of Capital shall also be disbursed through the designated Banks. The Scheme provides for disbursement of pension through Post Offices and Treasuries also.

11.1.2 At present, the arrangement for disbursement of pension has been made with the selected Nationalised Bank/s). The benefits of pension etc., authorised on or after 16.11.1995 should be paid through a Nationalised Bank. The family pension under the ceased Employees' Family Pension Scheme, 1971 will, however, continue to be paid through Post Offices, unless the beneficiary opts for payment of pension through Nationalised Banks.

11.1.3 The disbursement of family pension through Money order or by cheque under the ceased Employees' Family Pension Scheme, 1971 shall hereafter be made through the Nationalised Bank after obtaining the Bank Account No. etc. from the family pensioners.

11.1.4 Apart from monthly pension, the Scheme provides for payment of withdrawal benefit to the members. These benefits are one time payment and as such the payment, may be made in accordance with the provisions of para 72 (5) (e) of the Employees' Provident Fund Scheme, 1952, invoking the provisions of Para 38 of the Employees' Pension Scheme, 1995. Thus the benefit of withdrawal benefits may be paid restricting the mode of payment by Money Order or by cheque depositing directly into the S.B. Account of the claimant. On no account the cheque should be delivered in person.

11.1.5 The Money Order commission in case of benefits payable upto Rs. 500/- and other cost of remittance (inclusive of postage) should be charged to the pension Fund.

11.1.6 ARRANGEMENT WITH AGENCIES:

The Regional Provident Fund Commissioner incharge of the regions have entered into agreement with Nationalised Banks which are having wider network of branches in their region. The details of Banks selected for disbursement of pension are given below:

S.NO.	NAME OF THE REGION	NAME OF THE NATIONALISED BANK
1.	Andhra Pradesh	Andhra Bank and State Bank of India
2.	Bihar	Punjab National Bank
3.	Delhi	Punjab National Bank and State Bank of India
4.	Gujarat	Dena Bank & State Bank of India
5.	Haryana	Punjab National Bank & State Bank of India
6.	Kerala	Canara Bank & State Bank of India
7.	Karnataka	Canara Bank
8.	Maharashtra	Bank of India & Punjab National Bank
9.	Madhya Pradesh	Punjab National Bank & State Bank of India
10.	North East Region (Assam)	Punjab National Bank & State Bank of India
11.	Orissa	Bank of India & State Bank of India
12.	Punjab	Punjab National Bank
13.	Himachal Pradesh	Punjab National Bank
14.	Rajasthan	State Bank of Bikaner & Jaipur and P.N.B.
15.	Tamil Nadu	Indian Bank & State Bank of India
16.	Uttar Pradesh	Punjab National Bank & State Bank of India
17.	West Bengal	Punjab National Bank and United Bank of Inc

11.1.7 In order to provide wider choice to the pensioners, the Organisation has also entered into an arrangement with State Bank of India. Whenever the need arise the Regions can enter into arrangement with other banks also.

11.1.8 If any pensioner drawing pension through Post Office desires to draw the pension through the designated bank, he may be permitted. In such cases the PPO should be withdrawn from the Postal department and after making necessary entries in the Post Office Audit Register and Pensioner's Master file (EPS 1995) the P.P.O. should be sent to the concerned Bank. Before doing so, it should be verified from EDP and ensured that the software used for the PPOs under Employees' Pension Scheme, 1995 to generate the monthly statement will accept the PPOs issued prior to 1.4.1993

11.1.9 Commission and other charges incidential thereto are payable to the disbursing agencies viz. Post Office and Nationalised Banks should be charged to the pension fund account only.

11.1.10 The Scheme for disbursement of Family Pension through Post Office under the ceased Employees' Family Pension Scheme, 1971 is valid only in respect of the cases of death occurred prior to 1.4.1993. The Rules to regulate the procedure for payment by Post Offices as given in Part III of the Manual of Accounting Procedure (Vol-1) 1982 edition should be adopted.

11.1.11 A separate scheme has been framed to disburse the pensionary benefits under the Employees' Pension Scheme 1995 through the Nationalised Banks. This booklet has been supplied to the designated banks to regulate the payment of pension. The entire operation of disbursement of pension is only through the Computer. A booklet viz. "Scheme for payment of Pension under the Employees' Pension Scheme , 1995 through Nationalised Banks" has been circulated to all Regional Office/ Sub-Regional Offices for guidance and operation.

11.1.12 In addition to disbursement of monthly pension, the other benefits viz. commuted value of pension, return of capital, relief on revision of pension etc. will also be disbursed to the pensioners through the designated Nationalised Banks only.

11.2 DISBURSEMENT OF PENSION THROUGH CURRENT/ SAVING BANK ACCOUNT IN THE DESIGNATED BANK

11.2.1 As per the agreement entered into with the designated Nationalised Bank, the amount of pension due for disbursement to the pensioner every month is required to be paid in advance to the Link Branch of the Bank. The amount paid to the Bank will be kept in an account opened by the Regional Provident Fund Commissioner of the Regional Office/ Sub-Regional Office concerned.

11.2.2 The nature of account to be opened in the designated bank may be Current Account or Saving Bank Account. Wherever more than one bank is designated, Account may be opened in each Bank. The account is to be opened in the name of " Employees Pension Scheme, 1995 Regional Office/ Sub-Regional Office ______________" after adhering to the Rules governing the opening of Current Account. The Controller of Pension of the Region will authorise the Assistant Provident Fund Commissioner incharge of Pension Section in Regional Office/ Sub-Regional Office to operate the account. The current account is operated only for the purpose of depositing the advance pension payment and to reimburse the amount of pension to the Paying Branches by the Link Branch. The Current account will be debited as and when the amount is reimbursed to the Paying Branches.

11.2.3 Any surplus amount lying in the current account should be adjusted against the future deposits to be made to the Bank. As such there is no necessity to make any withdrawal/transfer from this account. Hence, no cheque book should be obtained against this Current Account.

11.2.4 The Link Branch of the designated Bank will furnish a Bank statement on 7th of every month. On its receipt, the transactions therein will be fed to the computer to ensure matching of reimbursement made to the Paying branches with reference to the actual pension disbursed as intimated by the Link Branch through the branchwise summary of payment scroll (duplicate). Any discrepancy noted should be taken up with the Bank for rectification.

11.2.5 The balance lying in Current / Saving Bank Account on the last day of each calender month should be specifically noted with particular reference to the extent of quantum of surplus / deficit shown as closing balance.

11.2.6 The position of closing balance should be examined at the level of Assistant Provident Fund Commissioner (Pension) and after careful consideration, the surplus amount may be adjusted. Similarly, if the amount shown as closing balance is found much below the amount assessed on account of the reconciliation of bank statement with the summary of scrolls, it should be taken up with Bank.

11.2.7 On 20th of every month the advance payment of pension due as shown in computer output statement should be remitted to the Bank. Before doing so, any excess/short should be adjusted against the amount assessed as dues payable for the current month and balance released.

11.2.8 The net amount due for payment should be deposited to the said Current /Saving Bank Account through an Account Payee Cheque drawn in favour of Employees' Pension Scheme 1995 Regional/ Sub-Regional Office Current Account No. ________________. The sanction and payment authority should be prepared in the prescribed format (See Annexure). The cheque should be forwarded to the Link branch along with a computerised statement positively before 20th of every month.

11.3 COMMISSION AND SERVICE CHARGES PAYABLE TO PENSION DISBURSEMENT AGENCIES

11.3.1 PAYMENT OF COMMISSION TO POSTAL DEPARTMENT:

The Family Pension sanctioned under the Employees' Family Pension Scheme, 1971 was disbursed through the disbursing agency viz., Post Office. Prior to introduction of Employees' Pension Scheme, 1995 the commission payable to Post Office (which was initially met from Employees' Provident Fund Administrative Account No. 2) was treated as Administrative expenditure charged to Employees' Family Pension Scheme, 1971. With effect from 16.11.1995 the commission payable

Post Office including arrears dues payable, if any, should be straight away charged to the Employees' Pension Fund and paid from Employees' Provident Fund Account No. 10. The payment of commission paid to Post Office should not be treated as Administrative expenditure.

SERVICE CHANGES PAYABLE TO NATIONALISED BANK

11.3.2 [illegible] entered into with Nationalised Banks for disbursement of Pension, [illegible] pay service charges to the bank @ 2.5% (all inclusive) on the [illegible] disbursed.

11.3.3 The service charges is to be paid to the bank from Employees' Pension Fund (Employees Provident Fund A/c No. 10). The payment of service charges to the bank should not be treated as administrative expenditure. Under no circumstances the Bank should not adjust the service charges out of the pension amount deposited with them.

11.3.4 The designated bank will submit a claim towards service charges on or before 15th of every month to the concerned Regional Office/ Sub-Regional Office, duly enclosing a statement of pension actually disbursed by various paying branches. On the basis of the claim, a payment authority (See Annexure) should be prepared after due verification on the correctness of the amount claimed for sanction of the Assistant Provident Fund Commissioner (pension). The payment authority should be signed by Assistant Provident Fund Commissioner (Pension) duly affixing his embossing seal. The service charge should not be released without receiving the vouchers from the Bank.

11.3.5 The Pension Section should forward the sanction order to the Cash Section for issue of an A/c Payee Cheque in favour of the Link Branch of the designated banks. It should be ensured that the service charge is not paid to the current Account viz., Employees' Pension Scheme, 95 Regional Office/ Sub-Regional Office maintained in the Link Branch which is kept only for depositing the pension amount due to pensioners and for making payment to Pensioners.

11.3.6 The service charges should be paid within 7 days from the date of receipt of claim from the link branch. The cheque towards service charges to be paid, drawn in favour of the Bank and this should not be credited to the account kept in the Bank.

11.3.7. A separate register should be maintained in Pension Section to record the amount of service charges in the following format:-

Sl. No.	Bank claim date	Month	Service charges (Amount) Claimed	Paid	Sanction Dt.	Initials	Date of of cheque	Date of despatch
(1)	(2)	(3)	(4)	(5)	(6)	(7)	(8)	(9)

Month	Amount of pension paid to Bank	Total value of voucher received	Balance for which voucher due	Remarks
[illegible]	(2)	(3)	(4)	(5)

[illegible] claim received from the Bank and office copy of the sanction order / payment authority should be preserved in the pension Section for production to Audit.

ANNEXURE

PAYMENT OF SERVICE CHARGES TO THE LINK BRANCH
_________________ BANK, _______________ (STATION)

SANCTION AND PAYMENT AUTHORITY

Sanction is hereby accorded to pay a sum of Rs. ________ (Rupees ____________ only) towards service charges to the ____________ Bank for the month of ____________.

2. Certified that sanction is made after due verification of the claim received from the Bank, bearing No. ______________ dated ____________.

3. The cheque may be drawn in favour of the Manager, ___________ (Link branch) ____________ Bank.

4. The cheque may please be forwarded to Pension Section within 2 days.

Signature of APFC
Name
Seal

Date: ________

(For use in Cash Section)

Paid by A/c Payee cheque bearing No. ____________ dated __________ from Employees' Provident Fund A/c No. 10 for Rs. __________ (Rupees ____________ ____ only) drawn in favour of the Bank as detailed above.

Payment Item No. ____________
Cash Book Item No. ____________

CLERK | SECTION SUPERVISOR (CASH) | ASST. PROVIDENT FUND COMMISSIONER (CASH)

CHAPTER 12

12.1 **STRUCTURE OF PENSION WING**

REGIONAL PROVIDENT FUND COMMISSIONER INCHARGE OF THE REGION

CONTROLLER OF PENSION

REGIONAL OFFICE | **SUB-REGIONAL OFFICE**

ASSTT. P.F. COMMISSIONER (EDP)

ASST. P.F. COMMISSIONER (PENSION)

ASST. ACCOUNTS OFFICER (PENSION)

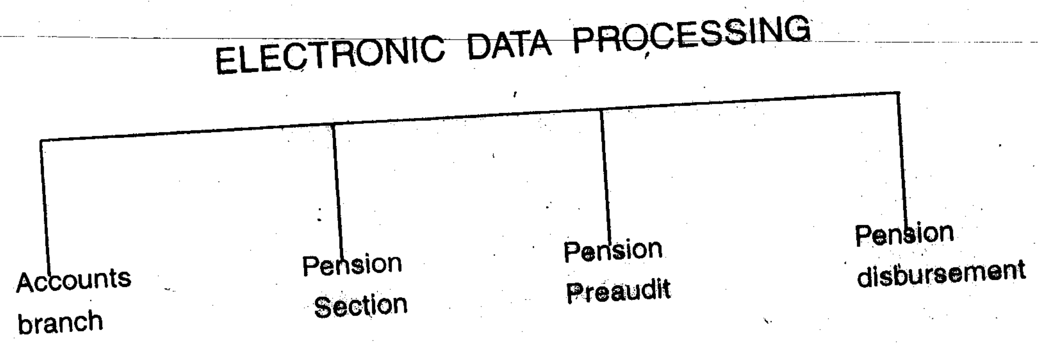
SECTION SUPERVISOR

PENSION SECTION / PENSION AUDIT / PENSION DISBURSING SECTIONS

OPERATION OF EMPLOYEES' PENSION SCHEME, 1995
(PENSION WING IN REGIONAL OFFICE / SUB-REGIONAL OFFICE)

12.2.1 The operation of EPS, 1995 in RO / SRO is fully computer oriented with the data support of other sections. Keeping this in view the set up of the pension wing will comprise the following:-

i) Electronic Data Processing Cell
ii) Account Branch
iii) Pension Section
iv) Pension pre-audit section
v) Pension disbursement section



The electronic Data processing cell set up in a RO /SRO (preferably an exclusive system) shall play a vital role in the operation of Pension Scheme, 1995.

12.2.2 The Computer will cover the following work areas in the Pension Scheme implementation:

a) Creation of master file of employer
b) Creation of master file of employee
c) Receipts and Payments of Employees' Pension Fund
d) Monitoring of claims received, settled, returned, rejected and pending with duration analysis, showing disposal at different levels and final data on benefits allowed.
e) MIS reports.
f) Determination on entitlement of benefit - with reference to claim received and Employees master file and data from Pension / Accounts sections.
g) Generation of PPO
h) Generation of Scheme Certificate.
i) Generation of payment authority for releasing the withdrawal benefit
j) Creation of Pensioner's master file.

k) Output report on Monthly Pension due statements, Bankwise and branchwise, PPO-wise and nature of paymentwise with amount involved showing the progressive for the year.

l) Pension - account in Bank - Reconciliation

m) Payment of service charges to Bank

n) Data on pension credited to each pensioner with period upto which paid and Extract of pension un-drawn cases.

o) To capture data for actuarial valuation through the source documents.

p) PPO control register.

q) Data on scheme certificates registered, released & watching of registration in other RO / SRO.

r) Redressal of grievances machinery.

Development of software

12.2.3 The software that are developed for the existing PF computer system and pension system does not cover the entire work areas specified above. The areas that are presently brought under the EDP are discussed in chapter 15.

12.2.4 The existing PF computer system provides for maintenance of master files of employees and employers, establishment-wise . For the pension scheme master files have to be created for employees of the PF exempted establishments also. Till the completion and updation of these master files, and developing of software for other areas, the pension wing will rely on the data support from the existing accounts branch in the RO/SRO.

12.2.5 In order to ensure the total computerisation of the operation of pension scheme, suitable software will have to be developed, requisite staff will have to be trained for operation and necessary hardware support will have to be extended to each RO/SRO. Similarly, the disbursing agencies viz. Bank should also computerise their operation for efficient performance in the disbursement of pension to the best satisfaction of pensioners. The functioning of the pension wing should be so transparent that a pension member or a pensioner should have an access to any data through the PRO or grievances machinery. To achieve this objective, the computer should be effectively deployed to store the requisite data and to retrieve by the user. It is therefore necessary to aim at total computerisation within the possible shortest period and only through this method the RO/SROs will be in a position to cope up with the growing number of pensioners and increase in the volume of transactions.

12.2.6 Pending total computerisation in effective terms, the operation of pension scheme will be partly on manual basis and partly through computer. To suit this, the following arrangement will be in vogue:-

The accounts branch shall maintain the basic data on members and provide data support to the pension section. The pension section shall handle the claims towards the issue of PPO and scheme certificate and monitor the disbursement of pension through the disbursing agency-viz-bank. The benefits towards payment of withdrawal benefit shall continue to be processed by accounts branch.

12.2.7 **Functions of accounts branch for operation of pension scheme:-**

1) The particulars of pension members and their nominees are required to be fed to the computer so as to create and update the Employees' master file.

2) The records such as Form 9 (Revised) & 10/3,4&5 (PS), 2 (Revised) 3A/7 (PS) 12-A (PF) are to be maintained and updated.

3) The D.C.B. register is maintained to ensure the realisation of pension fund dues.

4) To receive and process the claims in F10-C/10-D (EPS) and determine the benefit payable through the prescribed worksheet.

5) Forwarding of Input data sheet to pension section for issue of PPO and scheme certificate.

6) To process the form 10-C (EPS) and to release the withdrawal benefit.

7) To monitor the receipt and disposal of claims in F/10-C and 10-D (EPS).

8) To provide data kept in account sections for actuarial valuation.

RPFC(F&A) in RO and RPFC in charge of SROs shall ensure that the above job elements are completed and data supplied to the pension section promptly and accurately.

12.2.8 **Functions of pension section:**

1) The pension section shall oversee the receipt and disposal of claims received in RO/SRO for issue of scheme certificate and to authorise the pension through PPO.

2) The claims in Form 10-C (EPS) (Scheme certificate) and 10-D (EPS) alongwith worksheet and input data sheet are received and pre-audited before its approval by APFC (Pension).

3) To liaison with EDP and obtain the worksheet on PPO and ensure correctness of data and benefit arrived at and obtain the approval of AAO (Pension).

4) To remit back the approved worksheet to EDP so as to generate final PPO.

5) To receive the Input data sheet towards transfer to other RO/SROs and forward the same after its approval by APFC (Pension).

6) To receive the approved input data sheet along with F 10-D (EPS) from other RO/SROs and issue PPO for disbursement of pension falling within the jurisdiction.

7) To receive the input data sheet and process them for issue of scheme certificate.

8) To receive the scheme certificate & register them in the computer and forward the acknowledgement to the RO/SRO concerned.

9) To process the claim in Form -10A under the ceased FPF-71 for issue of PPO.

10) The pension section shall maintain the following register/file, preferably through computer:-

a) Claim inward register (Form 10-D/10-C (EPS)) b) Input Data Sheet receipt & disposal register. c) Transfer in/out PPO register d) Scheme certificate control register.	See Annexure A to E

11) The pension section shall function under the control and supervision of SS, AAO and APFC (Pension)

12) This section shall maintain a daily progress report on the receipt and disposal of claims and submit to C O P/RPFC in charge of SROs. (Format given in the annexure F &G)

12.2.9 Pension Disbursing Section

Pension disbursing section in a RO/SRO is responsible for disbursing pension through the disbursing agency and maintain a close liaison with the link branch of the designated bank.

To enter into an agreement with bank/s for disbursement of pension.

To open a current account in the link branch and maintain its operation.

To forward the approved PPOs to the bank on due date and to intimate the pensioner, accounts group and the establishment.

To generate the list of pensioners for whom pension is authorised during the current month.

To generate list of PPOs authorised, PPOwise, class of pensionwise, paying branchwise alongwith the amount of pension due.

To forward to floppy disc covering the pensions authorised in a month along with a output report on the amount of pension due to each paying branch and the no. of PPOs.

To assess the amount of pension due for payment to the link branch for disbursement to all eligible pensioners through paying branch.

To adjust the surplus amount in the current account after proper examination and reconciliation of bank statement, every month.

To forward the cheque towards pension due to the link branch on 20th of every month; for credit to the current account.

To watch for the vouchers from the paying branch and to update the Pensioner's master file, with reference to contingencies on the cessation of pension or any modification. To furnish the statement on additions/deletions in the PPOs to the link branch.

To watch for the bank statement on the due date and to reconcile the cash book (Current A/c)

To release the service charges on receipt of demand from bank and after ensuring the procedure prescribed.

To ensure completion of the monthly cycle on "Disbursement of pension through Bank".

To ensure that the procedure for disbursement of pension is followed by the designated bank strictly in accordance with the manual on Disbursement of Pension through Nationalised Banks.

To enquire into grievances of the pensioners and to take prompt action in ensuring proper and prompt payment of pension.

To arrange for transfer of PPO from one bank to the other or from jurisdiction of one link branch to another.

To monitor the payment of Family pension by post offices under the ceased EFPS-71.

To pay advance pension payment and reimbursement of the dues to postal department promptly including payment of commission to postal department.

To ensure the receipt of vouchers from post office and posting them to the audit register.

To issue clarification/guidance on implementation of pension scheme to the accounts branch, and to furnish the statistical data on the disbursement of pension, etc.

The pension disbursement section shall maintain the following registers/files in the computer:

a) List of designated banks, with bank code, and paying branch code and address.

b) Cash book/s for current accounts kept in designated banks. (manually operated)

c) Monthly list of PPOs authorised - PPO No. wise paying branchwise, class of pensionwise (No. of pensioners and amount)

d) Pensioner's master file.

e) List of additions/deletions to the PPOs.

f) Service charges account.

g) Monthly cycle on disbursement of pension

h) Register on transfer of PPOs.

i) Register on corrections/modifications to pensioners master file.

j) Register on payment of pension dues to postal department.

k) Register on payment of commission to postal department

l) PPO control register.

m) Audit Register (Through Pensioner's Master file)

12.2.10 The Pension disbursing Section will be under the charge of one Section Supervisor who will ensure 100% check of all the job elements listed above.

12.2.11 The Assistant Accounts Officer and Assistant PF Commissioner (pension) will supervise the functioning of the Pension & Pension disbursing Sections and ensure 100% compliance on the job assigned and arrange for prompt disbursement of Pension.

12.2.12 a) Pension Section in the Regional/Sub-Regional Office will prepare a Monthly Reconciliation Statement in the form annexed (H) so as to determine the number of PPOs issued, the amount due & paid to the Bank every month. It should be submitted to the concerned Officer-in-charge of the Sub-Regional Office/ Controller of Pension in respect of regional office on the first working day of each month. This will be subject to verification by Controller of Pension during Pension Review.

b) A Monthly Return covering the implementation of Pension Scheme should be sent by all the Sub-Regional Offices/Assistant PF Commissioner (Pension) in the Regional Office to the Controller of Pension on 5th of every month in the annexed Formats (Part I to VII) This will be consolidated and submitted to the Regional P.F. Commissioner in charge of the Region for review.

The monthly return should be sent to Central office by C.O.P. by 12th of the following month.

Set up of Pension Cell - Central Office

I Pension Legislation & Development Section - I
(Previously known as Acturial Cell)

II Pension Administration & Control Section - II
(Previously known as Pension Section)

2. The work distribution in these two sections will be as under:-

I Pension (Legislation & Development) Section - I

1. Acturial Valuation Work

- Appointment of Actuary /Team of Acturies & related matters for Payment of Fees/TA/DA Bills etc.
- Correspondence with the Actuary on Actuarial Valuation work
- Furnishing of data to Actuary
- Processing the valuation report submitted by Actuary & follow up action thereon
- Designing and development of software programme or processing data for valuation work

2. Creation of Data Base for Actuarial Valuation

- Collection of data compilation, processing & forwarding to the Actuary and others concerned as may be prescribed
- Follow up action in conveying decisions for periodical pension wise/revision and work connected therewith

3. MIS Reports/Monitoring

- Weekly Progress Report on number of different category of Pensioners EPS,1995
- Weekly Report on collection of information in Form-2/9 and data base creation
- Monthly Report on Receipt, Disposal and Pendency of 10D/10C cases
- Monthly Report on Compliance position with regard to contribution under Employees' Pension Scheme, 1995

- Classification of Pensioners on the basis of Wage-slab-Monthly Return.
- Details of Pensioners under the old Scheme (Employees' Family Pension Scheme, 1971) as well as the new Scheme (EPS, 1995)- Monthly Return.
- Disposal of exemption applications - Monthly Return

4. **Amendments/Modification of the provisions of the Employees' Pension Scheme, 1995.**

- Processing of proposals for amendment
- Preparing papers for meetings of Pension Implementation Committee/C.B.T.
- Follow up action on the decisions taken in PIC/CBT meeting with regard to amendment/modifications of the EPS, 1995
- Correspondence with the Actuary/Govt.
- Clarification/interpretation of the Scheme provisions.

5. **Prrocessing of proposals relating to Exemption under the Employees' Pension Scheme, 1995**

6. **Computerisation.**

- Hardware/EDP Centre maintenance in Head Office.
- Review of the Hardware requirements at Regional Offices and Interlinking introducing of systems for on-line Acturial data.
- Software development (CEPS)
- Providing clarifications by liaisoning with NIC/Director (Computer).

7. **Miscellaneous matters**

- Maintenance of various registers
- Preparation of weekly/monthly/Review reports/Rreturns
- Furnishing of O&M returns & other weekly/monthly returns to Adm (L) Section and other Sections like O&M Section etc.

8. **Any other matter that will be assigned from time to time.**

II. **Pension (Administration & Control) Section -II**

- Holding of Meeting of Pension implementation Committee. Minutes, follow up actions, Action taken reports on monthly basis etc.
- Banking Arrangements & Investments related matters. Post Office arrangements for disbursement of Pension.
- Monitoring of Reimbursement of Pension disbursed amounts to Postal Authorities.
- Court cases.
- Co-ordinating with the Employers' Organisations & Workers unions to create awareness.
- Responding to Parliament Questions and a like querries.
- Review Meeting with Controllers of Pension Minutes, Follow up actions etc.,
- Review meeting with RPFCs, Follow up action on Minutes, Action taken reports etc.
- O&M Meeting statements, consolidation of both the sections statements, Minutes, follow up action etc.
- Review meeting of sections, Minutes, follow up action etc.,
- Grievances of individuals/Unions in respect of all regions.
- Supervision, monitoring & control of subordinate offices.
- Conducting test audit at Regional levels
- Training programmes on Pension Scheme
- General co-ordination.
- Miscellaneous matters as mentioned at item 7.
- Any other matter that will be assigned from time to time.

ANNEXURE - A
(Para: 12.2.8)

DATA INPUT SHEET - INWARD REGISTER - (Pension Pre-audit Section)

Date:

Inward No.	Group	Regn. No.	Date of Receipt of F.10D in office	Member's Name	Estt. Code No. & A/c. No.	Nature of benefit			Sent to EDP for Check list	Computer No.	Sent to EDP for PPO	PPO No. & Dt. of Despatch to Pension Disbursement Section	Remarks
						(MMP/WMP/ CP/OP/ Dis.Pension	Scheme Certificate	Transfer in & transfer out					
(1)	(2)	(3)	(4)	(5)	(6)			(7)	(8)	(9)	(10)	(11)	12)

ANNEXURE - B

PENSION PAYMENT ORDER REGISTER

Sl. No.	Pension Code	Pension Inward	P.P.O. No. / S.B. A/c.	Account No.	Name	Pensioner		Period of arrears	M.M.P.				W.M.P.					O.P.		ROC Com.	Initials
						Age	Wage slab		57 Yrs		58 Yrs		Arr.	WMP	CP	OP	Total	Arr.	Mth		
									Arr	Mth	Arr	Mth.									
(1)	(2)	(3)	(4)	(5)		(6)		(7)	8(a)	8(b)	8(c)	8(d)	9(a)	9(b)	9(c)	9(d)	(10)	11(A)	11(B)	(12)	(13)

ANNEXURE - C

TRANSFER - IN - REGISTER

Sl. No.	Code No.	Account No.	Date	Name	Region (RO/SRO)	Remarks	PPO No.	Amount	Sent to Pension Disbursement Section
(1)	(2)	(3)	(4)	(5)	(6)	(7)	(8)	(9)	(10)

ANNEXURE - D

PENSION SECTION

REGISTER FOR TRANSFER-OUT CASES

Inward No.	Date of Receipt of F/10-D	Sl. No.	Name	A/c No.	Type of Pension	RO/SRO to which sent	Date of despatch	Remarks
(1)	(2)	(3)	(4)	(5)	(6)	(7)	(8)	(9)

Annexure - "E"
Para 12.2.8

SCHEME CERTIFICATE CONTROL REGISTER

Inward No.	Group	Regn No.	Date of receipt	Member's name	Estt. Code No. & A/c. No.	I.D.S. sent to EDP on	Control No. of S.C.	Date of despatch	Date of receipt of ACK.	RO/SRO in which surren-dered	Date of surrender (D.O.J. of estt.)	Date of surrender intimation sent to RO/SRO on	Date of returning of S.C.	Date of issue of of PPO	Remarks
(1)	(2)	(3)	(4)	(5)	(6)	(7)	(8)	(9)	(10)	(11)	(12)	(13)	(14)	(15)	(16)

Annexure - F
(Para: 12.2.8)

Pension Section, RO/SRO ____________

DAILY PROGRESS REPORT

Input Data Sheet	O.B.	Receipt	Total	Disposal		No. of I.D.S. Ret./Rej. to Accts. Group	Closing Balance	due for Pre-audit	Analysis of Pending Claims		
				PPO/SC/ Tr. Out approved	Last PPO/ SC/Tr. Out No. allotted				With EDP	Awaiting approval of APFC(P)	No. of cases ready for despatch
(1)	(2)	(3)	(4)	(5)	(6)	(7)	(8)	(9)	(10)	(11)	(12)
Form 10-D (including Tr. in cases)											
Form -10C (Scheme Certificate)											
Transfer out											

Verified the above Data with reference to the relevant Registers

D A SS AAO APFC (Pension)

Regional P.F. Commissioner
Sub-Regional Office

C.O.P.

Annexure -G
(Para: 12.2.8)

Regional Office ____________

For the Week ending ____________

WEEKLY PROGRESS REPORT

Nature of claim	Opening Balance	Receipt	Total	From Accounts Group		Disposal		Balance		Remarks
				Returned	Rejected	Transfer out	issued	Pending in Accts. Group	Pending in Pension Section	
(1)	(2)	(3)	(4)	(5)	(6)	(7)	(8)	(9)	(10)	(11)
Form 10D							PPO			
Form 10C							SC			
Bank Letters etc. Pen. I										
Pen. II										

DA SS AAO APFC (Pension)

Annexure - "H"
Refer: Para 12.2.12(a)

REGIONAL OFFICE/
SUB-REGIONAL OFFICE:

I **DISBURSEMENT OF PENSION FOR THE MONTH OF:** ____________

1. No. of PPOs for which payment released during the last month :

2. (-) No. of PPOs ceased for which no pension is to be renewed :
   (-) PPOs transferred to other link branch in the same bank/ and other RO/SRO :
   (-) For want of Life Certificate/Re-marriage Certificate :

3. No. of PPOs to be renewed for the current month :

II **PENSION AUTHORISED FOR THE CURRENT MONTH**

4. No. of PPOs issued on account of conversion (i.e. conversion of mode of payment from cheque/MO/PO to S.B. A/c. of designated bank) :

5. No. of fresh PPOs authorised for the first time including transferred and revalidated PPOs withheld for want of Life Certificate/ Remarriage Certificate :

6. Total No. of PPOs released to the Bank for the first time (including transfer cases received from other RO/SROs) (4+5) :

7. Total No. of PPOs alive with the bank's on the last date of the current month (3+6) :

8. PPO Nos. released during the month
   From :
   To :

III **CATEGORISATION OF PPO** (Current year)

	No. of cases						
	M.M.P		W.P.	C.P	O.P.	Nominee Pension	Total
	50 to 58 yrs	58/ Disable-ment					
(April to) Till last month							
Current month							
Total							

(No. of PPOs as on 31st march renewed in April: ____________)

"H"
12(a)

FICE/
CE:

IV **NO. OF PENSIONERS**

i) Return of Capital not opted :
ii) Opted for ROC - Option 1 :
iii) Opted for ROC - Option 2 :
iv) Opted for ROC - Option 3 :
v) Opted for commutation :

V **SCHEME CERTIFICATE** (Current year)
(April - to -)

a) Issued till last month :
b) Current month :

c) Total ________

========

d) No. of Scheme certificate received from other RO/SRO (current month) :

VI **TRANSFER CASES**

1. No. of Input data sheets transferred to other RO/SROs for issue of PPO :

2. No. of Input data sheets received from other RO/SROs for issue of PPO :

VII. **AMOUNT AUTHORISED**

a) Amount paid to the bank during the last month :

ADD:
Amount increased on account of change in the beneficiaries :

b) **LESS:**
i) Arrears paid for the fresh cases of the previous month (including conversion cases, if any) :
ii) Amount reduced on account of cessation of PPOs :
iii) Change in the beneficiaries :________

Amount due to the bank in the current month for the renewed cases :

Amount adjusted towards excess/short authorised (as per enclosed list) :

Net amount due :

c) PENSION DUE FOR THE CURRENT MONTH

i) Arrears payable for the fresh cases :
ii) Pension due for the current month :
iii) Amount payable towards ROC during the month, if any :
iv) Amount due towards Commutation during the current month :
v) Revalidated PPO (including arrears) :

vi) Total ________

========

vii) Adj. to balance (excess/short in the current account as per Bank statement) :

viii) Net amount to be released :________

VIII AMOUNT AUTHORISED
(April _____ to _____)

	For renewed PPOs	M.M.P. PH	W.P Others	C.P.	O.P.	Nominee	ROC Pension	Commutation	Total
Till last month									
Current month (with ref. to (c) (vi)									
Total									

IX Amount due to the
Bank (i) ________________
(ii) ________________

Amount deposited in the
(i) ________________ Bank and
(ii) ________________ Bank
till current month

Difference ________ :

S.S. AAO AC(P) OIC SRO/COP

MONTHLY STATEMENT SHOWING RECEIPT, DISPOSAL & PENDENCY OF CLAIMS (FORM 10D) UNDER EMPLOYEES' PENSION SCHEME, 1995

Region______________

Month______________

PART - I

Name of Office	Receipt			Disposal				Pendency				Reasons for cases returned (as at Col.5)	Reasons for cases rejected (as at Col.6)
	O.B.	Received during the month	Total Receipt (2+3)	PPO issued	Returned	Rejected	Total disposal (4+5+6)	Total pendency (3-7)	Less than one month	One month above but less than 3 months	More than 3 months		
	(1)	(2)	(3)	(4)	(5)	(6)	(7)	(8)	(9)	(10)	(11)	(12)	(13)
R.O.													
S.R.O.													
S.R.O.													
S.R.O.													
S.R.O.													
S.R.O.													
S.R.O.													
S.R.O.													
S.A.O.													
S.A.O.													
S.A.O													
Total													

Note:
1. The above data are to be furnished in respect of whole of the Region. It should contain office wise position in the Region.
2. The reason for return/rejection may be summarised and the general remarks be furnished either in relevant column of in the foot-note.
3. To be submitted every month to reach Central Ofice by 12th of the following month.

Name & Signature of Controller of Pension

To

RPFC (Pension) Hqars. Office

MONTHLY STATEMENT SHOWING RECEIPT, DISPOSAL & PENDENCY OF CLAIMS (FORM 10C) UNDER EMPLOYEES' PENSION SCHEME, 1995

Region_______________

Month_______________

PART - II

Name of Office	Receipt			Disposal				Pendency					Reasons for cases returned (as at Col.6)	Reasons for cases rejected (as at Col. 7)
	O.B.	Received during the month	Total Receipt (2+3)	Scheme Certificate issued	Withdrawal benefit cases sanctioned	Returned	Rejected	Total disposal (4+5+6+7)	Total pendency (3-7)	Less than one month	One month above but less than 3 months	More than 3 months		
	(1)	(2)	(3)	(4)	(5)	(6)	(7)	(8)	(9)	(10)	(11)	(12)	(13)	(14)
R.O.														
S.R.O.														
S.R.O.														
S.R.O.														
S.R.O.														
S.R.O.														
S.R.O.														
S.R.O.														
S.A.O.														
S.A.O.														
S.A.O														
Total														

Note:
1. The above data are to be furnished in respect of whole of the Region. It should contain office wise position in the Region.
2. The reason for return/rejection may be summarised and the general remarks be furnished either in relevant column of in the foot-note.
3. To be submitted every month to reach Central Ofice by 12th of the following month.

Name & Signature of Controller of Pension

To

RPFC (Pension) Hqars. Office

MONTHLY STATEMENT SHOWING CONSOLIDATED INFORMATION OF PENSIONERS WITH WAGE-SLAB UNDER THE EMPLOYEES' PENSION SCHEME, 1995

Region: ____________________

Month: ____________________

PART -III

WAGE SLAB	Up to Rs. 1000	Rs. 1001-2500	Rs. 2501-5000	Above Rs. 5000	Total
	(1)	(2)	(3)	(4)	(5)
No. of Pensioners (i) For the month (ii) Upto the month					

Note: 1. The above data are to be furnished in respect of whole of the Region. It should tally with the grand total figures reported for the Region in Part-I.

2. To be submitted every month along with monthly statement in Part-I to reach Central Office by 10th of the following month.

Name & Signature of Controller of Pension

To

RPFC (Pension) Hqrs. Office

PART -IV

CLASSIFICATION OF PENSION AUTHORISED

Month	Actual No. of PPOs sent to the Bank	Member Pension		Disable-ment Pension	Monthly Widow Pension	Monthly Children Pension	Orphan Pension	Return of Capital
		50 to 57 years	58 years					
(1)	(2)	(3)	(4)	(5)	(6)	(7)	(8)	(9)

( )
Controller of Pension

LE/ISSUE No. ________________

PART - V
Region: ________________
As on: ________________

PROGRESS IN THE MATTER OF COMPLIANCE UNDER EPS, 1995

No. of Establishments			No. of Establishments defaulting under EPS. 1995			Amount of contribution due in A/c. No. 10 as against Column (1)			Amount of contribution in default as against column (2)			Action taken details for for securing compliance from defaulting estts.
Un-exem.	Exempted	Total	Un-exem.	Exempted	Total	Un-exem. (in lakhs)	Exempted (in lakhs)	Total (in lakhs)	Unexem. (in lakhs)	Exempted (in lakhs)	Total (in lakhs)	

Note:
1. The above deatils are to be furnished by every month end regularly as the same is to be placed before the CPFC/Chairman PIC.
2. The first return as on 28.02.97 is due by 25.03.97.
3. The number of defaulting estts. on account of court interim orders and the amount in default against such estts. may be furnished in the footnote, wherever applicable.
4. Where "CRAS" is put into operation, the above particulars should be generated every month by the EDP and priority should be given to A/cs/Enforcement Sections.

The CPFC
(Ref.: Pension/11/(1)/97/Review)

( )
RPFC(Incharge)

PART VI

PROGRESS ON EXEMPTION APPLICATION UNDER EMPLOYEES' PENSION SCHEME, 1995

Regional Office:
Sub-Regional Office:
Month:

No. of applications at the beginning of the month	Applications received during the month	Total	No. of application returned/rejected	No. of application recommended to C.O.	Closing Balance	Remarks
(1)	(2)	(3)	(4)	(5)	(6)	(7)

Office-in-charge of S.R.O./
Assistant PF Commissioner (P)

Part VII

I.	Amount paid be the Bank		:
	i)	Towards Pension	:
	ii)	Towards Service charges	:
II	Other benefits - Withdrawal benefit and refund		:
	a)	No. of cases	:
	b)	Amount paid as per Cash Book	:
III	A)	Total Amount received in A/c No. 10	:
	i)	Contribution	:
	ii)	Penal damages	:
	iii)	Other receipt	:
	iv)	Total	:
	B)	Actual amount transferred from A/c No. 10 to 11 during the month (S.B.I., Mumbai) for investment account	:
	C)	No. of Scheme Certificates despatched	:
	D)	Transfer-out cases despatched	:

Signature of APFC (Pension)

12.3. Cash book reconciliation

12.3.1 The pension disbursing section in a RO/SRO shall maintain a cash book in respect of the account opened in one or more banks designated for disbursing the pension. A separate cash book should be maintained for each link branch of a bank. The format of cash book is given in the Annexure.

12.3.2 The APFC (Pension) is authorised to operate the current Saving Bank Account. He will ensure the proper maintenance of this, with upto date postings under his dated initials.

12.3.3 As and when a cheque is drawn in favour of the link branch of the designated bank for credit to the Saving Bank current account is received from the cash section, the receipt side of the cash book should be entered with reference to the date of receipt, cheque amount, Cheque No., and initialled by the APFC (Pension). The cheque is due to be delivered to the link branch on 20th of each month.

12.3.4 The payment entries of this cash book will be made on the basis of the daily debit advices received from the bank and verified with the monthly bank statements received from the Bank.

12.3.5 The cash book should be closed at the end of each month and balance brought down after due reconciliation. It should be submitted to RPFC in charge of SROs/COP on or before 10th of each month.

12.3.6 The balance lying in the current account should be examined for eventual adjustment in the payment due on 20th of the current month. The justification for non adjustment should be recorded specifying the reasons therefore by the APFC (Pension)

12.3.7 Under no circumstances the amount should be transferred from Current/Saving Bank Account to the EPF A/c. No. 10.

12.3.8 As there is no cheque book facility for operating this account, the question of withdrawal from this account does not arise.

12.3.9 The payment of service charges to the bank should not be recorded in this cash book. The bank is also not expected to debit the service charges in this account on their own. This should be examined while reconciling the cash book and any erroneous or excess debit should be adjusted.

12.3.10 This cash book shall be audited by the Zonal audit parties and test audit of the A.Gs office. This cash book is to be classified as permanent document, till a period is specified for its retention.

Annexure (Para 12.3.1)

(To be maintained by Pension disbursement section) Region / SRO:

CASH BOOK

Pension disbursement: Current / S.B. A/c. No. ________________ maintained at ____(bank)__________

________________________________ (link branch) ______________________________.

Month:

Sl. No.	Date	Particulars (cheque paid to current/S.B. A/c. in bank)	Dt. of credit	Amount Rs.	Sl. No.	Date	Particulars of payment (paid to paying branches)	Dt. of debit	Amount Rs.
(1)	(2)	(3)	(4)	(5)	(6)	(7)	(8)	(9)	(10)

EMPLOYEES' PENSION SCHEME, 1995
DISBURSEMENT OF PENSION THROUGH BANKS

FLOW CHART
(Monthly Cycle)

REGIONAL OFFICE/SUBREGIONAL OFFICE

FORWARD on 20th of each Month
- PPOs to Link Branch together with monthly statement of PPOs (in triplicate)
- cheque towards pension due to Link Branch.
- Summary sheet of all Paying Branch

LINK BRANCH OF THE BANK

On 20th	- Verify & Index PPOs
On 20th	- Credit the current/SB A/c of RO/SRO
On 23rd	- Forward statement & PPOs to paying Branch

PAYING BRANCH

On 25th	- Index PPOs & Link in ledger folio EPSM
On 26th	- Advice Pensioner to appear
Last day of month/ specified date	Deliver Pensioner's PPO Credit pension to SB A/cs & Complete statement
on 8th	- Return statement (in duplicate) to Link Brnach & Claim reimbursement of pension disbursed from link branch.

LINK BRANCH OF THE BANK

On 12th	- Reimburse amount to paying branch
On 12th	- Debit current / SB A/c of RO/SRO
On 15th	- Forward Bank statement to RO/SRO
On 15th	- Forward payment statement and branchwise summary
On 15th	- Claim service charges from RO/SRO

REGIONAL OFFICE/SUBREGIONAL OFFICE

On 17th	- Reconcile Bank Statement - Adjust the balance in current/SB Account
On 17th	- Forward Annexure 3 to EDP
On 17th	- Update Master file of Pensioners
On 17th	- Release service charges to Link branch

12.4 FUNCTIONS OF ASSISTANT PROVIDENT FUND COMMISSIONER (PENSION)

The Assistant Provident Fund Commissioner (pension will be in charge of Pension Wing in the Regional/Sub-Regional Office, who will work under the control and supervision of Controller of Pension/Regional PF Commissioner (Sub-Regional Office). His principal functions are us under:-

Assistant Provident Fund Commissioner (Pension) shall ensure:-

(1) proper supervision of Pension Sections under his charge;

(2) Receipt and disposal of claims for monthly pension and Scheme Certificate;

(3) Receipt of authorised Input Data-sheet from accounts and to monitor its expeditious disposal through daily progress report.

(4) Preparation of Weekly Progress Report of the receipt, return, rejection and authorisation for issue of Scheme Certificate and Pension Payment Order;

(5) Collection of statistical data on the progress of settlement, amount of benefits released etc., by the Assistant Provident Fund Commissioner (Pension) in Regional Office;

(6) Furnishing of statistical data to Central Office on pensionary benefits.

(7) Checklist, data entry, work sheet and final Pension Payment Order generated through computer are processed properly and promptly and to authorise the pension;

(8) to discharge the duties as Authorised Officer for issue of Pension Payment Order;

(9) Collection of actuarial data and furnishing them to the Central Office;

(10) Generation of output statement of list of Pension Payment Orders authorised from 11th of the preceding month to 10th of the current month on 11th of every month (in the order of PPOs and Paying Branch and class of pension wise) and also the Paying branchwise statement of pensions due for disbursement in the ensuing month;

(11) Collection of floppy disc from EDP covering the pensions authorised from 11th of the preceeding month to 10th of the current month (Pensioner's master file);

(12) Assessment of the amount due for payment from Link branch towards disbursement of pension after adjusting the surplus amount, if any;

(13) Releasing the Pension Payment Orders to Link branch of the bank on 20th on every month;

(14) Reconciliation of the paid scrolls received from Paying branches with the amount debited to current account of the Employees' Pension Scheme 1995 by Link Branch;

(15) Scrutinising paid scrolls and forward to the EDP for data entry;

(16) Reconciliation of the amount paid to Link branch with the Payment Scroll generated by Link branch.

(17) Incorporation of addition/deletion to the Pensioner's master file;

(18) Building up of Pensioner's Master file in respect of pension authorised;

(19) Releasing the service charges due to Bank every month and to maintain service charges payment register;

(20) Updating of the list of branches of the Bank;

(21) maintenance of the record on payment of pensions to pensioners and examine non-drawal of pension;

(22) Processing and arranging for expeditious disposal of transfer of Pension Payment Orders (transfer-in / transfer-out);

(23) Acceptance and release of the Scheme Certificate and maintenance of connected data;

(24) Maintenance of Cash Book on the account with bank and to draw monthly reconciliation;

(25) Liaision with bank for prompt disbursement of pension and sorting out of operational difficulties;

(26) Receipt of the vouchers from Post Offices in respect of pensions disbursed by Postal Department;

(27) Payment of advance pension to Postal Department and adjustment of balance;

(28) Payment of commission to Postal Department;

(29) Processing and release of Pension Payment Orders in respect of claims under Employees' Family Pension Scheme, 1971;

(30) Authorising Pension Payment Orders with his embossing seal;

(31) Giviing intimation to the Pensioners/Accounts/Establishment on the release of pension;

(32) Any other item of work connected for implementation of Employees' Pension Scheme, 1995.

12.5 FUNCTIONS OF CONTROLLER OF PENSION (COP)

A post of Controller of Pension at the level of Regional Provident Fund Commissioner (Gr.II) is created for each Region to ensure that the Employees' Pension Scheme, 1995 is implemented effectively and the benefits therein are extended to all eligible beneficiaries promptly and expeditiously. With this objective in view, the following principal functions are assigned to the Controller of Pension.

1. The Controller of Pension shall be overall incharge of Pension functions of the Region as a whole;

2. He will ensure uniform Pension disbursement procedure;

3. He will provide guidance to the lower level functionaries in the matter of settlement of pension cases and issuance of Scheme Certificates;

4. He will examine the exemption applications received from the establishments seeking exemption from the operation of Employees' Pension Scheme, 1995 and ensure its appropriate disposal;

5. He will ensure proper maintenance of statutory returns prescribed in Employees' Pension Scheme, 95;

6. He will ensure timely availability of funds with the disbursing agencies and its reconciliation in consultation with Regional Commissioner (F&A);

7. He will ensure prompt submission of returns to the appropriate authorities;

8. He will investigate cases of over payment and take suitable remedial steps;

9. He will be responsible for processing of replies of Audit Paras relating to pension matter and ensure further remedial action;

10. He will ensure uniform distribution of pension work among the lower level functionaries;

11. He will take necessary steps in defending Writ Petitions filed in various Courts in consultation with Regional Commissioner (Legal), Regional Commissioner-I incharge of the Region.

12. He will co-ordinate the activities relating to implementation of Employees' Pension Scheme, 1995 through the Pension Wing of all the Sub-Regional Offices and in the Regional Office;

13. He will study the need for computer applications in different spheres for efficient and smooth implementation of the Scheme;

14. He will implement a uniform computer oriented work procedure;

15. He will enter into banking arrangement with one or more disbursement agencies;

16. He will ensure timely disbursement of pension through the disbursing agencies;

17. He will monitor the receipt and disposal of claims for various benefits under the Scheme in respect of Regional Office/Sub-Regional Offices;

18. He will ensure proper maintenance of records, registers and cash books, reconciliation, etc., in Regional Office/Sub-Regional Offices;

19. He will collect, process, tabulate and consolidate the data on payment of various benefits.

20. He will convene periodical meetings with disbursing agency to ensure proper and prompt compliance on the agreement and remove the difficulties faced by pensioners, organisation and the agency;

21. He will ensure prompt compilation of statistical data on disbursement of pensionary benefits;

22. He will ensure furnishing a data for actuarial valuation;

23. He will study the working of Pension Wing in Regional Office/Sub-Regional Offices;

24. He will ensure furnishing of periodical reports relating to pension matters to the Addl. Central Provident Fund Commissioner (pension);

25. He will remove operational difficulties in implementing the Scheme;

26. He will be working under the superintendance and control of RPFC incharge of the Region and shall be responsible and accountable to Addl. Central PF Commissioner, Incharge of Pension in the Central Office for effective monitoring and reporting in regard to Pension Scheme work;

27. Any other work relating to pension, not specified above.

AUDIT SET UP

12.6 Since the entire operation of implementation of the Scheme is through computer, it is necessary to have a sound audit system and internal control unit at the Regional level. In consultation with the software personnel, computer audit system is required to be introduced and the audit check points that are framed is required to be verified by the Internal Audit party so as to ensure correctness of the amount of pension due/paid, the receipt of payment by the original claimant till the date of entitlement and that the system is free from any defects that may lead to wrong payments.

CHAPTER 13

VALUATION OF PENSION FUND

13.1 The Employees' Pension Scheme, 1995 provides for valuation of Pension funds by the Central Government through a valuer.

The Central Government is empowered to alter the rate of contribution to Pension Fund payable by the employer or the scale of pensionary benefits or the period for which such benefits are admissible. The valuation should be made annually. Accordingly the first valuation was due on 15.11.1996. The actuary appointed for valuation has developed actuarial data cards for collection of data on pension members, pensioners and exit members. These Valuation cards are given in the Annexure I to IV. These actuarial data are required to be collected from the source documents such as Form-9 (Revised) Form-10/ Form-3 (PS)/ Form-2 (Revised) / Form -3A/ PPO, in the prescribed format.

13.1.2 The cards developed for collection of data are as under:-

(i) EPM (Employees' Pension Member) cards for 10% of members, on 15th November of the year in which valuation is due. These cards should cover industries/class of establishments specified by actuary;

(ii) EPP (Employees' Pension pensioners) cards for pensioners (100%) as on 15th November of current year;

(iii) EPE (Employees' Pension Exit) cards for exits during the period 16th November of the preceding year to 15th November of the current year. These cards should cover the cases of Scheme Certificate and refund benefit given;

(iv) EPR (Employees Pension Reconciliation) cards for reconciliation on regional basis.

13.1.3 The data collected should be processed/consolidated/tabulated through in house Computer Programme for the region as a whole. The floppy together with a hard copy of the data should be supplied promptly to the Actuary through Actuary Cell, Central Office.

13.1.4 Since the valuation is an annual feature, it is necessary to set up a permanent actuarial cell in Central Office and also in each Regional Office/Sub-Regional Office to capture the data required by the Actuary from the source documents, as and when the documents are received through the prescribed reports/ returns from the establishments or pension payment and pensioners data through Pension Payment Order.

EMPLOYEES' PENSION SCHEME, 1995
MEMBERSHIP CARD - EPM

Following information to be extracted in case of each individual member of Employees Pension Scheme as at 15.11.1995

1.	Serial No.:	:
2.	Nature of Establishment	:
3.	Code No. of the Region	:
4.	Code No. of Establishment	:
5.	Name of the Regional/ Sub-Regional Office	:
6.	Member's Account No.	:
7.	Sex	: Male : Female
8.	Marital Status	: Unmarried(1) Married(2) Widowed(3) Not known(4)

9. Date of:

	M	M	Y	Y
Birth of Member				
Joining Provident Fund				
Joining Employees Family Pension				
Joining Employees Pension Scheme				
Exit				
Birth of Spouse				
Birth of Child 1				
Birth of Child 2				

10. Status of Membership

Contribution Payable	Contribution Payable but Not Paid From		Contribution Not Payable from	
	MM	YY	MM	YY

11. Wages for November, 1995 for Provident Fund purpose

12. Wages of November, 1996 for Provident Fund purpose

13. Scheme Certificate

	Y	M
Past Service		
Past Service Pension		

14. Non-contributory Service

Y	M

15. If a Seasonal worker

Yes	No

EMPLOYEES' PENSION SCHEME, 1995

EXIT CARD - EPE

Information in respect of Members ceasing to be members during 16.11 and 15.11.

1. Serial No. :

2. Nature of Establishment :

3. Code No. of the Region :

4. Code No. of Establishment :

5. Name of Regional/ Sub-Regional Office :

6. Member's Account No. :

7. Sex : Male : Female

8. Marital Status at the time of Cessation : Unmarried(1) married(2) Widowed(3) Not Known(4)

9. Dates of :

	M	M	Y	Y
Birth of member				
Joining Provident Fund				
Joining Employees Family Pension				
Joining Employees Pension Scheme				
Exit				
Birth of Spouse				
Birth of Child 1				
Birth of Child 2				

10. Wage at 15.11

11. Wage at date of Exit

12. Cause of Exit

short Service	Retirement	Super annuation	Early Retire-ment	Disable-ment Retire-ment	Death in Service	Death after Retire-ment	Death during Defer-ment	Cessation of service

13. Amount of benefit sanctioned

Monthly Pension	Commuted Pension	Capital Sum on death of Employee during deferment/ after Retirement	Withdrawal benefit

14. Advance Benefit paid

15. Scheme Certificate

	Y	M
Past Service		

	Y	M
Past Service Pension		

NB: if a member, who retires after 16.11.__ and dies before 16.11.__ should be accommodated both in EPE and EPP Cards

PENSION CARD - EPP

Information in respect of Pensioners as at 15.11.96 and Exits among Pensioners during 16.11. & 15.11

1. Serial No. :

2. Name of Regional Office/Sub-Regional Office:

3. Code No. of the Region :

4. Pension Order No. :

5. Account No. :

6. Sex : Male : Female

7 Marital Status : Married(1) Un-married(2) Widowed(3) Widower(4)

8. Dates of :

Birth of member	M	M	Y	Y
Joining Provident Fund				
Joining Employees Family Pension				
Joining Employees Pension Scheme				
Exit				
Birth of Spouse				
Birth of Child 1				
Birth of Child 2				

9. Status of the Pensioner

Member Pension	Member Pension Deferred	Widow Pension	Child Pension	Orphan Pension	Nominee Pension

10. Type of Pension

short Service	Retirement	Super annuation	Early Retire-ment	Disable-ment Retire-ment	Death in Service	Death after Retire-ment	Death during deferment

11. Amount of Pension Sanctioned : Date
Amount

12. Amount of Pension Increase : Date
Amount

13. Widow Pension Sanctioned : Date
Amount

14. Children Pension Sanctioned : Date
Amount

15. Whether the Pensioner continues to draw pension on 16.11.95 : Yes No

16. If pensioner has ceased drawing pension between 16.11.95 & 15.11.96 :

Death	Remarriage	Attainment of stipulated age	Not Relevant

17. Date of cessation of Pension : M M Y Y

18. Amount paid on cessation of Pension :

19. Amount of commuted Pension : Date:
Amount:

20. Pension Option : Option1 Option2 Option3

ACTUARIAL VALUATION AS AT 16.11.___
RECONCILIATION CARD EPR

For each Region following Reconciliation will be made and compounded on all India basis

A. Number of member as at 16.11. =

Number between 16.11. to 15.11. =
- Died in services =
- Superannuated =
- Retired =
- Short Service pension =
- Cession =
- Disablement Retirement =
- New Employees =

= Number of members at 15.11. --

B. <u>MEMBER PENSIONER</u>

Number of Pensioner as at 16.11. =
Number between 15.11. to 16.11 =
- Death of Pensioner =
- New Pensioner =

Number of Pensioner as at 15.11 --

C. <u>WIDOW PENSIONERS</u>

Number as at 16.11
Number between 15.11. to 16.11 =
- Death of Widow Pensioner =
- Remarriage of widow Pensioner =
+ New number of Widow =

= Number of widow pensioner as at 15.1 = ______________________

D. <u>Child Pensioner</u>

Number as at 15.11 =
- Death of child pensioner =
- Children pension being non eligible =
+ New Children pensioner =

= Children pensioner as at 15.11 = ______________________

E. <u>Orphan Pensioner</u> =

Number as at 15.11.95
- Death of Orphan Pension =
- Orphan Pension being non eligible =
+ New Orphan Pensioner =

= Orphan Pension as at 15.11 = ______________________

BENEFITS ON REVALUATION PROCEDURE

13.2 As per Para 32 of the Employees' Pension Scheme, 1995, the Central Government shall decide the revision on the quantum of benefits if any, under the Scheme.

In order to extend the benefit to the beneficiaries the disbursing Bank i.e. Link Branch concerned will be informed of the quantum of increase and the effective date and conditions attached, if any. Simultaneously, the Pensioner's Master file will also be modified suitably so as to generate the monthly list of pension at revised rate. The Link branch will also generate the scroll accordingly. As and when the increase in the quantum of pension is made a press note is to be issued for the information of pensioners.

On account of the first annual revaluation of the fund, an adhoc relief of 4% on pension in payment as on 15.11.96 is sanctioned to existing pensioners, widow pensioners and orphan pensioners. This relief shall be payable w.e.f. 15.11.1996 and is subject to adjustment on the basis of final valuation report.

The above relief is admissible to all the pensioner under the ceased EFP Scheme, 1971 i.e. after allowing the additional relief granted to them under the ceased EFP Scheme, 1971 as under:-

S.No.	Date of death	Per month %age of increase	Subject to minimum increase of
1.	Before 1.4.92	15%	Rs. 75/-
2.	1.4.92 to 31.3.93	12%	Rs. 60/-
3.	1.4.93 to 31.3.94	9%	Rs. 45/-
4.	1.4.94 to 31.3.95	6%	Rs. 30/-

(Ministry of Labour, order dated 27/8/97)

Extending of 1 year relief of 4% - Explanation:

(i) The pension relief @ 4% declared on valuation of Pension Fund on 15th Nov., 1996 as interim relief, is applicable to the existing pensioners as on 15th Nov., 1996 only. In other words, the pensioners under EPS, 1995 whose date of commencement of the pension falls during the period 1.4.1993 to 15.11.1996 are entitled for the said relief. The relief is payable for such pensioners from 16th Nov., 1996. This relief is not applicable for the pensioners, whose date of commencement of pension falls on or after 16th Nov., 1996.

(ii) The Pension relief is to be calculated on the 'original pension' applicable to the respective pensioners at the time of issue of PPO. In case of options for return of capital, reduced pension is the pension being paid on monthly basis. Pension relief, their cases is to be calculated on the original pension and not on the reduced pension while adding the relief to the monthly pension (reduced pension) being paid.

(iii) In case original pensioner dies on or after 16th Nov., 1996 the pension relief accrued to original pension (as on 15th Nov., 1996) will be passed on to the beneficiaries (spouse, children) on their entitled monthly pension amount. In other words, pension relief of 4% will equally apply to widow/children, orphan pension - such increased pension is payable wherever such pension vests on or after 16.11.96

(iv) This 4% relief is also applicable to pensioners under EFPS, 1971 as on 15th No., 1996. Such relief is payable for these pensioners also from 16th Nov., 1996. For computing the said relief, pension paid as on 15th Nov., 1996 (For pensioners under EFPS, 1971) shall be treated as the "original pension" for according the pension reliefs under EPS, 1995. (CEPS version 1.0.3 does not provide for capturing the details of pensioners under EFPS, 1971 and, therefore, such relief is to be released separately.

CHAPTER 14

TRAINING MODULE UNDER EPS, 1995

14.1.1 The officers and staff in Regional Office/ Sub Regional Offices should be given institutional training through the NATRSS & ZTI, in the operation of the Employees' Pension Scheme, 1995

14.1.2 The APFC (Pension) and staff posted to Pension Section and Pension disbursement section should be given an intensive training including practical workshop so as to equip them with uptodate knowledge and procedure in dealing with the pension matter. Since the operation of pension Scheme is fully computer oriented, a special thrust is to be given for computer application in the training institute. The training should be given to all the staff in accounts within the first two years and thereafter a refresher course on alternative years.

14.1.3 The training module should cover the following topics:

1. Overview on the Pension scheme, with special reference to coverage, funding quantum of benefits and beneficiaries.

   Provisions of the Act/Scheme in respect of Pension in nutshell, with special reference to recent amendments and dealing with applications seeking exemption.

2. Maintenance of Employee's master file and Nomination.

3. Monitoring of claims - procedure for Receipt and disposal.

4. Scrutiny of claims - Form 10-C (EPS)& 10-D(EPS)

5. Preparation of worksheet and Input Data Sheet .

6. Calculation of benefits (withdrawal benefit and pension) - Practical (including Computer)
7. Scheme Certificate - Format and procedure for issue.

8. PPO - contents, preparation, issue, safe custody etc. and Pensioner's Master file.

9. Operation of current account with disbursing Bank

10. Disbursement of Pension by Bank - Procedure

11. Payment of Pension dues to Bank and watching of vouchers
12. Payment of Service charges to Bank/Commission to Post Office -Procedure.
13. Set up of pension wing in RO/SRO - Job analysis .
14. Functions of Controller of Pension & APFC (Pension)
15. Maintenance of Cash Book (Pension current Account) and Reconciliation.
16. Transfer of Pension Account / PPO.
17. Computer programmes relating to EPS 1995 - Input and Output reports.
18. Actuarial valuation.
19. MIS Reports and returns
20. Clarifications.

14.1.4 During the course of training, a copy of the EPS-1995 and the manual of Accounting Procedure on Pension should be supplied for reference and return.

CHAPTER 15

Computerised Employees' Pension Scheme (CEPS)

15.1.1 The Employees' Pension Scheme 1995 has been computerised for capturing the details of existing members, existing pensioners under EPS and calculation of pension/generation of PPO with the help of National Informatics Centre - Labour Information System Division, New Delhi. It is known as EPFO Computerised Employees' Pension Scheme (EPF-CEPS).

15.1.2 The system is designed and developed for the following to cater to the immediate needs of EPF RO/SROs.

1. To capture the basic details of the subscribers who become member of the EPS as on 16.11.1995 and thereafter.
2. To capture the details of those pensioners settled under the EPS after 16.11.1995.
3. To capture and calculate pension of the cases registered for settlement of pension.
4. To generate work-sheet/PPO/Scheme Certificate for the cases as per 3 above.
5. Generation of Bank statement, monitoring of claims & MIS reports.

		Report generation
Member Master - Module (MEM)	-	Module 401
Pensioners Master - Module (PPO)	-	Module 402
Member details for Pension calculation	-	Module (225)
	-	Module 410
Bank Statement	-	Module 420

The operation guide (including revised version 1.0.3 for the above) has been supplied to EDP for proper application and generation of output reports.

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